

**IN THE HIGH COURT OF TRIPURA
AGARTALA**

W.P.(C) No.1392 of 2017
W.P.(C) No.1493 of 2017
W.P.(C) No.1494 of 2017
W.P.(C) No.1516 of 2017
W.P.(C) No.1634 of 2017
W.P.(C) No.1635 of 2017
W.P.(C) No.1638 of 2017
W.P.(C) No.1746 of 2017
W.P.(C) No.11 of 2018
W.P.(C) No.88 of 2018
W.P.(C) No.98 of 2018
W.P.(C) No.238 of 2018
W.P.(C) No.334 of 2018
W.P.(C) No.340 of 2018
W.P.(C) No.364 of 2018
W.P.(C) No.385 of 2018
W.P.(C) No.400 of 2018
W.P.(C) No.1153 of 2018
W.P.(C) No.25 of 2019
W.P.(C) No.26 of 2019
&
W.P.(C) No.122 of 2019

In W.P.(C) No.1392 of 2017

Sri Sahadeb Das,
son of late Amar Chan Das of Rajnagar
[Datta Bari Lane], P.O. Agartala,
799001

..... **Petitioner**

- V e r s u s -

1. **The State of Tripura,**
represented by the Secretary, Department of
Panchayet, Government of Tripura, having his
office at Secretariat Complex, P.O. Secretariat
Complex, P.S. New Capital Complex, PIN-
799010, Agartala, West Tripura
2. **The Director of Panchayet,**
Government of Tripura, Gorkhabasti, Agartala

3. **Sri Pradip Kumar Das,**
son of late Fanibhusan Das of Dasda Bazar,
Kanchanpur, P.O. Dasda, North Tripura
4. **Sri Pintu Sarkar,**
son of late Nirmal Sarkar, Vill. & P.O.
Karamcharra, Logtaraivalley, Dhalai District,
Tripura
5. **Sri Nirmal Das,**
son of late Ramani Mohan Das, Vill & P.O.
Lowgang, Santir Bazar, South Tripura
6. **Sri Madhab Das,**
son of Sri Durlav Das, Uttar Ramnagar, P.O.
Bimangarh, Mohanpur, West Tripura

..... Respondents

In W.P.(C) No.1493 of 2017

Sri Rakesh Bhadra,
son of Haripada Bhadra of North
Charilam, P.S. Bishalgarh, Sepahijala
District, Tripura

..... Petitioner

- V e r s u s -

1. **The State of Tripura,**
represented by the Secretary, Department of
Panchayet, Government of Tripura, having his
office at Secretariat Complex, P.O. Secretariat
Complex, P.S. New Capital Complex, PIN-
799010, Agartala, West Tripura
2. **The Director of Panchayet,**
Government of Tripura, Gorkhabasti, Agartala
3. **Sri Sayan Saha,**
son of Sri Sankar Chandra Saha of Aralia, P.O.
Aralia, Sadar, Tripura West
4. **Sri Ujjal Dhar,**
son of Uttam Dhar, Durbasha Khola, P.O. Nepal
Tilla, Longtarai Valley, Dhalai District, Tripura

..... Respondents

In W.P.(C) No.1494 of 2017

Sri Nitai Debnath,

son of Sri Jatindra Debnath of
Joorpukur, Bishramganj, Sepahijala
District, Tripura

..... **Petitioner**

- V e r s u s -

1. **The State of Tripura,**
represented by the Secretary, Department of
Panchayet, Government of Tripura, having his
office at Secretariat Complex, P.O. Secretariat
Complex, P.S. New Capital Complex, PIN-
799010, Agartala, West Tripura
2. **The Director of Panchayet,**
Government of Tripura, Gorkhabasti, Agartala
3. **Sri Sayan Saha,**
son of Sri Sankar Chandra Saha of Aralia, P.O.
Aralia, Sadar, Tripura West
4. **Sri Ujjal Dhar,**
son of Sri Uttam Dhar, Durbasha Khola, P.O.
Nepal Tilla, Longtarai Valley, Dhalai District,
Tripura

..... **Respondents**

In W.P.(C) No.1516 of 2017

1. **Sri Rakesh Dey,**
son of late Rabindra Kumar Dey, resident of
village- Arya Colony, P.O. Belonia, District-
South Tripura, PIN-799155
2. **Sri Sujit Roy,**
son of late Swapan Roy, resident of village-
Kamalnagar, P.O. Mohorcherra, P.S. Kalyanpur,
District- Khowai, Tripura
3. **Sri Malay Bhowmik,**
son of Sri Shimalendu Bikash Bhowmik, P.O. &
P.S. Amtali, District- West Tripura, Agartala

4. **Sri Koushik Malakar,**
son of Sri Kanu Malakar, resident of village-
Bairagipara, P.O. Ishanpur, P.S. Sidhai,
Agartala, West Tripura

..... **Petitioners**

- V e r s u s -

1. **The State of Tripura,**
represented by the Chief Secretary, Government
of Tripura, having his office at Secretariat
Complex, P.O. Secretariat Complex, P.S. New
Capital Complex, PIN-799010, Agartala, West
Tripura
2. **The Secretary,**
Employment Services Manpower Planning,
Government of Tripura, having his office at
Secretariat Complex, P.O. Secretariat Complex,
P.S. New Capital Complex, PIN-799010,
Agartala, West Tripura
3. **The Secretary,**
Department of Panchayet, Government of
Tripura, having his office at Secretariat
Complex, P.O. Secretariat Complex, P.S. New
Capital Complex, PIN-799010, Agartala, West
Tripura
4. **The Secretary-cum-Commissioner,**
Finance Department, Government of Tripura,
having his office at Secretariat Complex, P.O.
Secretariat Complex, P.S. New Capital Complex,
PIN-799010, Agartala, West Tripura
5. **The Director,**
Panchayet Department, Government of Tripura,
Pandit Nehru Complex, P.O. Agartala, P.S. New
Capital Complex, District- West Tripura

..... **Respondents**

In W.P.(C) No.1634 of 2017

Sri Kabi Ranjan Das,
son of late Fani Bhusan Das, resident
of East Badharghat, P.O. Madhuban
[Dukli], P.S. Amtali, District- West
Tripura

..... **Petitioner**

- V e r s u s -

1. **The State of Tripura,**
represented by the Secretary, Department of Panchayet, Government of Tripura, having his office at Secretariat Complex, P.O. Secretariat Complex, P.S. New Capital Complex, PIN-799010, Agartala, West Tripura
2. **The Principal Secretary,**
to the Government of Tripura, RD [Department of Panchayet], Government of Tripura, having his office at Secretariat Complex, P.O. Secretariat Complex, P.S. New Capital Complex, PIN-799010, Agartala, West Tripura
3. **The Director,**
Directorate of Panchayet, Government of Tripura, Gorkhabasti, Pandit Nehru Complex, P.O. Kunjaban, P.S. NCC, Agartala, West Tripura
4. **Smt. Rakhi Biswas,**
TCS Grade-I, Joint Director of Panchayets, Directorate of Panchayet, Government of Tripura, Gorkhabasti, Pandit Nehru Complex, P.O. Kunjaban, P.S. NCC, Agartala, West Tripura [Chairman of the State Level Interview Board]
5. **Sri Bhairab Pal,**
Panchayet Officer, PRTI, AD Nagar, P.O. & P.S. AD Nagar, District- West Tripura, PIN-799003 [Member of the Interview Board]
6. **Sri Partha Saha,**
Panchayet Extension Officer, Jirania R.D. Block, P.O. & P.S. Jirania, District- West Tripura [Member of the Interview Board]
7. **Sri Ashutosh Sarkar,**
son of Sri Anil Chandra Sarkar, resident of village & P.O. Lowgang, P.S. Shantirbazar, District- South Tripura
8. **Sri Ajitesh Sutradhar,**
son of Sri Naresh Sutradhar, resident of village & P.O. Shalbagan, Mohanpur, District- West Tripura

9. **Sri Uttam Debnath,**
son of Sri Dilip Debnath, resident of Satdubia,
P.O. & P.S. Fatikcherra, Sub-Division-
Mohanpur, District- West Tripura
10. **Smt. Pinki Chakraborty,**
wife of Sri Samir Das, resident of Adarsha
Colony, P.O. Jogendranagar, P.S. East Agartala,
District- West Tripura
11. **Sri Praloy Chakraborty,**
son of late Pradip Chakraborty, resident of
village & P.O. Singhicherra, P.S. Khowai,
District- Khowai, Tripura
12. **Sri Arup Chakraborty,**
son of Sri Tapan Chakraborty, resident of village
& P.O. Chesrimai, P.O. Bishalgarh, District-
Sepahijala
13. **Sri Sarajit Roy,**
son of late Gobinda Roy, resident of Nirmal Basu
Para, Gandacherra, P.O. & P.S. Sarma, District-
Dhalai
14. **Smt. Dura Lodh [Ghosh],**
wife of Sanjoy Ghosh, resident of Garjee, P.O. &
P.S. Garjee, District- Gomati, Tripura
15. **Smt. Manika Rani Das [Datta],**
care of Samir Ranjan Datta, resident of
Golaghati, P.O. Golaghati, P.S. Bishalgarh,
District- Sepahijala
16. **Sri Arup Kumar Shyam,**
son of Sri Dilip Shyam, resident of
Brahmakunda, P.O. & P.S. Simna, District- West
Tripura
17. **Sri Sayan Saha,**
son of Sri Sankar Chandra Saha, resident of
Aralia, P.O. Aralia, District- West Tripura
18. **Sri Banti Deb,**
son of late Bipad Chandra Deb, resident of
College Tilla, P.O. Agartala College, P.S. East
Agartala, District- West Tripura

19. **Smt. Baishakhi Debnath,**
care of Sri Goutam Debnath, resident of
Mohanpur, P.O. Majlishpur, District- West
Tripura
20. **Sri Hiranmoy Sinha,**
son of Sri Himangshu Sinha, resident of
Kanchanbari, P.O. & P.S. Kanchanbari, District-
Unakoti
21. **Sri Ujjal Dhar,**
son of Sri Uttam Dhar, resident of village-
Durbasha Khola, P.O. Nepal Tilla, Sub-Division-
Longtharai Valley, District- Dhalai, Tripura
22. **Md. Ripan Miah,**
son of Julku Mia, resident of Rajnagar, P.O.
Rajnagar, P.S. Belonia, District- South Tripura
23. **Sri Susanta Bhowmik,**
son of late Ranjit Bhowmik, resident of village,
P.O. & P.S. Santirbazaar, District- South Tripura
24. **Sri Haribindu Biswas,**
son of Sri Jaharlal Biswas, resident of Laxmipur,
P.O. Machmara, District- Unakoti
25. **Smt. Alaka Debnath,**
care of Haridas Debnath, resident of village –
West Lalchari, P.O. Kulaibazar, District- Dhalai,
Tripura
26. **Sri Subrajit Roy Barman,**
son of Sri Sukhendu Bikash Roy, resident of
village- Amalpara, P.O. & P.S. Belonia, District-
South Tripura
27. **Sri Utpal Chandra Nath,**
son of Rabindra Chandra Nath, resident of
Manubazar, P.O. & P.S. Manubazar, District-
South Tripura
28. **Smt. Laxmi Rani Saha,**
care of Sri Sentu Saha, resident of village-
Barjala, P.O. Birendranagar, Jirania, P.S. Jirania,
District- West Tripura

29. **Sri Pankaj Chakraborty,**
son of late Chhitta Ranjan Chakraborty, resident
of village – East Harina, Sabroom, P.O.
Harinabazar, District- South Tripura
30. **Md. Salim Uddin Ahamad,**
son of Ali Ahamad, resident of village-
Arabindanagar, Bishalgarh, P.O. Purathal
Rajnagar, District- Sepahijala
31. **Sri Bijoy Debnath,**
son of Sri Bimal Debnath, resident of village-
Kamalnagar, Jirania, P.O. Champaknagar,
District- West Tripura
32. **Sri Abhiman Rudra Paul,**
son of Sri Ganesh Rudra Paul, resident of
village- Krishnanagar, Jirania, P.O.
Champaknagar, District- West Tripura

..... Respondents

In W.P.(C) No.1635 of 2017

Sri Tutan Saha,
son of late Himangshu Ranjan Saha,
resident of Indranagar, ITI Road, P.O.
Indranagar, P.S. New Capital Complex,
District- West Tripura

..... Petitioner

- V e r s u s -

1. **The State of Tripura,**
represented by the Secretary, Department of
Panchayet, Government of Tripura, having his
office at Secretariat Complex, P.O. Secretariat
Complex, P.S. New Capital Complex, PIN-
799010, Agartala, West Tripura
2. **The Principal Secretary,**
to the Government of Tripura, RD [Department
of Panchayet], Government of Tripura, having
his office at Secretariat Complex, P.O.
Secretariat Complex, P.S. New Capital Complex,
PIN-799010, Agartala, West Tripura

3. **The Director,**
Directorate of Panchayet, Government of Tripura, Gorkhabasti, Pandit Nehru Complex, P.O. Kunjaban, P.S. NCC, Agartala, West Tripura
4. **Smt. Rakhi Biswas,**
TCS Grade-I, Joint Director of Panchayets, Directorate of Panchayet, Government of Tripura, Gorkhabasti, Pandit Nehru Complex, P.O. Kunjaban, P.S. NCC, Agartala, West Tripura [Chairman of the State Level Interview Board]
5. **Sri Bhairab Pal,**
Panchayet Officer, PRTI, AD Nagar, P.O. & P.S. AD Nagar, District- West Tripura, PIN-799003 [Member of the Interview Board]
6. **Sri Partha Saha,**
Panchayet Extension Officer, Jirania R.D. Block, P.O. & P.S. Jirania, District- West Tripura [Member of the Interview Board]
7. **Sri Jyotirmoy Paul,**
son of late Jagadish Chandra Paul, resident of village- West Pratapgarh, P.O. & P.S. AD Nagar, District- West Tripura
8. **Smt. Sweta Roy,**
care of Kankan Roy, resident of Fatikroy, P.O. & P.S. Fatikroy, District- Unakoti, Tripura
9. **Sri Ashutosh Sarkar,**
son of Sri Anil Chandra Sarkar, resident of village & P.O. Lowgang, P.S. Shantirbazar, District- South Tripura
10. **Sri Ajitesh Sutradhar,**
son of Sri Naresh Sutradhar, resident of village & P.O. Shalbagan, Mohanpur, District- West Tripura
11. **Sri Uttam Debnath,**
son of Sri Dilip Debnath, resident of Satdubia, P.O. & P.S. Fatikcherra, Sub-Division- Mohanpur, District- West Tripura

12. **Smt. Pinki Chakraborty,**
wife of Sri Samir Das, resident of Adarsha Colony, P.O. Jogendranagar, P.S. East Agartala, District- West Tripura
13. **Sri Praloy Chakraborty,**
son of late Pradip Chakraborty, resident of village & P.O. Singhicherra, P.S. Khowai, District- Khowai, Tripura
14. **Sri Arup Chakraborty,**
son of Sri Tapan Chakraborty, resident of village & P.O. Chesrimai, P.O. Bishalgarh, District- Sepahijala
15. **Sri Sarajit Roy,**
son of late Gobinda Roy, resident of Nirmal Basu Para, Gandacherra, P.O. & P.S. Sarma, District- Dhalai
16. **Smt. Dura Lodh [Ghosh],**
wife of Sanjoy Ghosh, resident of Garjee, P.O. & P.S. Garjee, District- Gomati, Tripura
17. **Smt. Manika Rani Das [Datta],**
care of Samir Ranjan Datta, resident of Golaghati, P.O. Golaghati, P.S. Bishalgarh, District- Sepahijala
18. **Sri Arup Kumar Shyam,**
son of Sri Dilip Shyam, resident of Brahmakunda, P.O. & P.S. Simna, District- West Tripura
19. **Sri Sayan Saha,**
son of Sri Sankar Chandra Saha, resident of Aralia, P.O. Aralia, District- West Tripura
20. **Sri Banti Deb,**
son of late Bipad Chandra Deb, resident of College Tilla, P.O. Agartala College, P.S. East Agartala, District- West Tripura
21. **Smt. Baishakhi Debnath,**
care of Sri Goutam Debnath, resident of Mohanpur, P.O. Majlishpur, District- West Tripura

22. **Sri Hiranmoy Sinha,**
son of Sri Himangshu Sinha, resident of
Kanchanbari, P.O. & P.S. Kanchanbari, District-
Unakoti
23. **Sri Ujjal Dhar,**
son of Sri Uttam Dhar, resident of village-
Durbasha Kholā, P.O. Nepal Tilla, Sub-Division-
Longtharai Valley, District- Dhalai, Tripura
24. **Md. Ripan Miah,**
son of Julku Mia, resident of Rajnagar, P.O.
Rajnagar, P.S. Belonia, District- South Tripura
25. **Sri Susanta Bhowmik,**
son of late Ranjit Bhowmik, resident of village,
P.O. & P.S. Santirbazaar, District- South Tripura
26. **Sri Haribindu Biswas,**
son of Sri Jaharlal Biswas, resident of Laxmipur,
P.O. Machmara, District- Unakoti
27. **Smt. Alaka Debnath,**
care of Haridas Debnath, resident of village –
West Lalchari, P.O. Kulaibazar, District- Dhalai,
Tripura
28. **Sri Subrajit Roy Barman,**
son of Sri Sukhendu Bikash Roy, resident of
village- Amalpara, P.O. & P.S. Belonia, District-
South Tripura
29. **Sri Utpal Chandra Nath,**
son of Rabindra Chandra Nath, resident of
Manubazar, P.O. & P.S. Manubazar, District-
South Tripura
30. **Smt. Laxmi Rani Saha,**
care of Sri Sentu Saha, resident of village-
Barjala, P.O. Birendranagar, Jirania, P.S. Jirania,
District- West Tripura
31. **Sri Pankaj Chakraborty,**
son of late Chhitta Ranjan Chakraborty, resident
of village – East Harina, Sabroom, P.O.
Harinabazar, District- South Tripura

32. **Md. Salim Uddin Ahamad,**
son of Ali Ahamad, resident of village-
Arabindanagar, Bishalgarh, P.O. Purathal
Rajnagar, District- Sepahijala
33. **Sri Bijoy Debnath,**
son of Sri Bimal Debnath, resident of village-
Kamalnagar, Jirania, P.O. Champaknagar,
District- West Tripura
34. **Sri Abhiman Rudra Paul,**
son of Sri Ganesh Rudra Paul, resident of
village- Krishnanagar, Jirania, P.O.
Champaknagar, District- West Tripura

..... Respondents

In W.P.(C) No.1638 of 2017

Sri Abhijit Datta,
son of Tapan Datta of Jail Road, P.S.
Belonia, South Tripura

..... Petitioner

- Versus -

1. **The State of Tripura,**
represented by the Secretary, Department of
Panchayet, Government of Tripura, having his
office at Secretariat Complex, P.O. Secretariat
Complex, P.S. New Capital Complex, PIN-
799010, Agartala, West Tripura
2. **The Director of Panchayet,**
Government of Tripura, Gorkhabasti, Agartala
3. **Sri Sayan Saha,**
son of Sri Sankar Chandra Saha of Aralia, P.O.
Aralia, Sadar, Tripura West
4. **Sri Ujjal Dhar,**
son of Sri Uttam Dhar, Durbasha Khola, P.O.
Nepal Tilla, Longtarai Valley, Dhalai District,
Tripura

..... Respondents

In W.P.(C) No.1746 of 2017

Sri Dhananjoy Das,

son of Sri Arun Kumar Das of
Arundhutinagar, S.D. Mission, P.O.
A.D. Nagar, West Tripura, PIN-799003

..... **Petitioner**

- V e r s u s -

1. **The State of Tripura,**
represented by the Chief Secretary, Government
of Tripura, having his office at Secretariat
Complex, P.O. Secretariat Complex, P.S. New
Capital Complex, PIN-799010, Agartala, West
Tripura
2. **The Director,**
Directorate of Panchayet, Government of
Tripura, Gorkhabasti, Pandit Nehru Complex,
P.O. Kunjaban, P.S. NCC, Agartala, West Tripura
3. **State Public Information Officer,**
office of the Directorate of Panchayet,
Government of Tripura, Gorkhabasti, Pandit
Nehru Complex, P.O. Kunjaban, P.S. NCC,
Agartala, West Tripura
4. **Smt. Sutapa Thakurata [Bhattacharjee],**
care of Santosh Bhattacharjee of village-
Madhya Singhicherra, P.O. Singhicherra, Sub-
Division- Khowai, District-Khowai
5. **Smt. Madhumita Debnath,**
son of Sri Sridam Ch. Debnath of village-
Narsingarh, P.O. Bimangarh, Sub- Division-
Mohanpur, District-West Tripura
6. **Sri Biswajit Bhowmik,**
care of Haripada Bhowmik of village-Surjyamani
Nagar, P.O. Tripura University, Sub- Division-
Sadar, District-West Tripura

7. **Sri Dipankar Choudhury,**
care of Mantu Kr. Choudhury of village- Madhya Pilak, P.O. Debdaru, Sub-Division- Santirbazar, South Tripura
8. **Sri Goutam Debnath,**
care of Matilal Debnath of village- Sukantanagar, P.O. Ratiabari, Sub- Division- Kumarghat, District-Unakoti
9. **Smt. Himani Routh,**
care of Gopal Debnath of village- Char Ganki (Office Tilla), P.O. Khowai, Sub- Division- Khowai, District-Khowai
10. **Sri Amitabh Roy,**
care of Amalesh Roy of village- Damcherra, P.O. Damherra, Sub- Division- Panisagar, District- North Tripura
11. **Sri Pulak Ranjan Podder,**
care of Gouranga Chandra Podder of village- Arya Colony, P.O. Belonia, Sub- Division- Belonia, District-South Tripura
12. **Sri Jyotirmoy Paul,**
care of late Jagadish Ch. Paul of village- West Pratapgarh, P.O. A.D. Nagar, Sub-Division- Sadar, District- West Tripura
13. **Smt. Sweta Roy,**
care of Kankan Roy of village- Fatikroy, P.O. Fatikroy, Sub- Division- Kumarghat, District- Unakoti
14. **Sri Ashutosh Sarkar,**
son of Sri Anil Chandra Sarkar, resident of village & P.O. Lowgang, P.S. & Sub-Division Shantirbazar, District- South Tripura
15. **Sri Ajitesh Sutradhar,**
son of Sri Naresh Sutradhar, resident of village & P.O. Shalbagan, Mohanpur, District- West Tripura

16. **Sri Uttam Debnath,**
son of Sri Dilip Debnath, resident of Satdubia,
P.O. & P.S. Fatikcherra, Sub-Division-
Mohanpur, District- West Tripura
17. **Smt. Pinki Chakraborty,**
wife of Sri Samir Das, resident of Adarsha
Colony, P.O. Jogendranagar, P.S. East Agartala,
District- West Tripura
18. **Sri Praloy Chakraborty,**
son of late Pradip Chakraborty, resident of
village & P.O. Singhicherra, P.S. Khowai,
District- Khowai, Tripura
19. **Sri Arup Chakraborty,**
son of Sri Tapan Chakraborty, resident of village
& P.O. Chesrimai, P.O. Bishalgarh, District-
Sepahijala
20. **Sri Amit Ch. Debnath,**
care of Sri Aranya Ch. Debnath of Barabari, P.O.
Jalebasa, Panisagar, North Tripura
21. **Sri Sarajit Roy,**
son of late Gobinda Roy, resident of Nirmal Basu
Para, Gandacherra, P.O. & P.S. Sarma, District-
Dhalai
22. **Sri Pulak Majumder,**
care of Sri Mantu Kr. Majumder of Sonapur,
Barpathari, Belonia, South Tripura
23. **Sri Amitava Das,**
care of Sunil Ch. Das of Hal Chowmuhani,
Belonia, P.O. Belonia, South Tripura
24. **Smt. Dura Lodh [Ghosh],**
wife of Sanjoy Ghosh, resident of Garjee, P.O. &
P.S. Garjee, District- Gomati, Tripura
25. **Smt. Manika Rani Das [Datta],**
care of Samir Ranjan Datta, resident of
Golaghati, P.O. Golaghati, P.S. Bishalgarh,
District- Sepahijala

26. **Sri Arun Kumar Shyam,**
son of Sri Dilip Shyam, resident of
Brahmakunda, P.O. & P.S. Simna, Sub-
Division-Mohanpur, District- West Tripura
27. **Smt. Baishakhi Debnath,**
care of Sri Goutam Debnath, resident of
Mohanpur, P.O. Majlishpur, District- West
Tripura
28. **Sri Hiranmoy Sinha,**
son of Sri Himangshu Sinha, resident of
Kanchanbari, P.O. & P.S. Kanchanbari, District-
Unakoti
29. **Sri Ujjal Dhar,**
son of Sri Uttam Dhar, resident of village-
Durbasha Kholā, P.O. Nepal Tilla, Sub-Division-
Longtharai Valley, District- Dhalai, Tripura
30. **Md. Ripan Miah,**
son of Julku Mia, resident of Rajnagar, P.O.
Rajnagar, P.S. Belonia, District- South Tripura
31. **Sri Susanta Bhowmik,**
son of late Ranjit Bhowmik, resident of village,
P.O. & P.S. Santirbazaar, District- South Tripura
32. **Sri Dilip Debnath,**
care of Sri Mahendra Debnath of Sunaimuri,
P.O. Sunaimuri, Kumarghat, Unakoti, Tripura
33. **Sri Haribandu Biswas,**
son of Sri Jaharlal Biswas, resident of Laxmipur,
P.O. Machmara, District- Unakoti
34. **Sri Jatindra Debnath,**
care of Sri Birendra Debnath of East Daluchara,
P.O. Salema, Kamalpur, Unakoti, Tripura
35. **Smt. Alaka Debnath,**
care of Haridas Debnath, resident of village –
West Lalchhari, P.O. Kulaibazar, District- Dhalai,
Tripura

36. **Sri Subrajit Roy Barman,**
son of Sri Sukhendu Bikash Roy Barman,
resident of village- Amalpara, P.O. & P.S.
Belonia, District- South Tripura
37. **Sri Sadhan Majumder,**
care of Maran Majumder of village-Owangchara,
P.O. Abhoyganj Bazar, Belonia, South Tripura
38. **Smt. Mira Debnath,**
care of Sri Amal Debnath of Bankar, Nandipara,
P.O. Belonia, Sub-Division-Belonia, South
Tripura
39. **Sri Utpal Chandra Nath,**
son of Rabindra Chandra Nath, resident of
Manubazar, P.O. & P.S. Manubazar, District-
South Tripura
40. **Smt. Laxmi Rani Saha,**
care of Sri Sentu Saha, resident of village-
Barjala, P.O. Birendranagar, Jirania, P.S. Jirania,
District- West Tripura
41. **Sri Pankaj Chakraborty,**
son of late Chhitta Ranjan Chakraborty, resident
of village - East Harina, Sabroom, P.O.
Harinabazar, District- South Tripura
42. **Md. Salim Uddin Ahamad,**
son of Ali Ahamad, resident of village-
Arabindanagar, Bishalgarh, P.O. Purathal
Rajnagar, District- Sepahijala
43. **Sri Bijoy Debnath,**
son of Sri Bimal Debnath, resident of village-
Kamalnagar, Jirania, P.O. Champaknagar,
District- West Tripura
44. **Sri Abhiman Rudra Paul,**
son of Sri Ganesh Rudra Paul, resident of
village- Krishnanagar, Jirania, P.O.
Champaknagar, District- West Tripura

..... Respondents

In W.P.(C) No.11 of 2018

Sri Abhijit Ghosh,

son of Sri Surendra Ghosh, resident of
South Indranagar, P.O. South
Indranagar, Agartala, District- West
Tripura, PIN-799006

..... **Petitioner**

- V e r s u s -

1. **The State of Tripura,**
represented by the Secretary, Department of
Panchayet, Government of Tripura, having his
office at Secretariat Complex, P.O. Secretariat
Complex, P.S. New Capital Complex, PIN-
799010, Agartala, West Tripura
2. **The Director of Panchayet,**
Government of Tripura, Gorkhabasti, Pandit
Nehru Complex, P.O. Kunjaban, P.S. NCC,
Agartala, District- West Tripura, PIN-799006
3. **The Chief Secretary,**
Government of Tripura, having his office at
Secretariat Complex, P.O. Secretariat Complex,
P.S. New Capital Complex, PIN-799010,
Agartala, West Tripura
4. **Smt. Rakhi Biswas,**
TCS Grade-I, Chairman of Interview Board for
the post of Rural Programme Manager [RPM],
Addl. Director of Panchayet Department,
Government of Tripura, O/O the Director
Panchayet, Gorkhabasti, Pandit Nehru Complex,
P.O. Kunjaban, P.S. NCC, Agartala, West
Tripura, P.S. NCC, PIN-799006
5. **Sri Bhairab Pal,**
Panchayet Officer, office of the Director
Panchayet, Gorkhabasti, Pandit Nehru Complex,
P.O. Kunjaban, P.S. NCC, Agartala, West
Tripura, P.S. NCC, PIN-799006
6. **Sri Partha Saha,**
Panchayet Extension Officer, presently working
at Belbari RD Block, Jirania Sub-Division, P.O.
Belbari, P.S. Radhapur, District- West Tripura

7. **Sri Rashiram Debbarma,**
Special Officer, Schedule Caste Department,
Government of Tripura, office of the Director for
Welfare SCs, Gorkhabasti, Pandit Nehru
Complex, P.O. Kunjaban, P.S. NCC, Agartala,
West Tripura, P.S. NCC, PIN-799006
8. **Maharam Debbarma,**
Pensioner, Ex-Special Officer [TDP], of Schedule
Tribe Department, Government of Tripura of
Suparibagan, Krishnanagar [Near Dasarah Deb
Bhavan], P.O. Agartala, District- West Tripura,
PIN-799001
9. **Sri Pankaj Chakraborty,**
son of late Chhitta Ranjan Chakraborty, resident
of village-East Harina, Sabroom, P.O.
Harinabazar, P.S. Sabroom, District- South
Tripura, PIN-799145
10. **Md. Salimuddin Ahamed,**
son of Ali Ahamad, resident of village-
Arabindanagar, P.S. Bishalgarh, P.O. Purathal
Rajnar, District- Sepahijala
12. **Sri Bijoy Debnath,**
son of Sri Bimal Debnath, resident of village-
Kamalnagar, Jirania, P.O. Champaknagar,
District- West Tripura
13. **Sri Abhiman Rudra Paul,**
son of Sri Ganesh Rudra Paul, resident of
village- Krishnanagar, Jirania, P.O. Ranirbazar,
P.S. Ranirbazar, District- West Tripura
14. **Smt. Soma Banik,**
wife of Sri Sajal Kanti Banik of South Mirzapur
Belonia, P.O. Sarasima, P.S. Belonia, District-
South Tripura, PIN-799155

..... Respondents

In W.P.(C) No.88 of 2018

Sri Dipjyoti Das,
son of Sri Dhananjoy Das, resident of
Tufania Lunga, P.O. Tebaria, P.S.
Airport, District- West Tripura

..... Petitioner

- V e r s u s -

1. **The State of Tripura,**
represented by the Secretary-cum-Commissioner, Department of Panchayet, Government of Tripura, having his office at Secretariat Complex, P.O. Secretariat Complex, P.S. New Capital Complex, PIN-799010, Agartala, West Tripura
2. **The Director of Panchayet,**
Government of Tripura, Gorkhabasti, Pandit Nehru Complex, P.O. Kunjaban, P.S. NCC, Agartala, District- West Tripura, PIN-799006
3. **The Interview Board,**
represented by its Chairman, Department of Panchayet, Government of Tripura, P.O. Agartala, P.S. West Agartala, District- West Tripura
4. **Sri Pradip Kumar Das,**
Notice to be served by the respondent No.2
5. **Sri Biplab Das,**
Notice to be served by the respondent No.2
6. **Sri Tapan Nama,**
Notice to be served by the respondent No.2
7. **Sri Gobinda Das,**
Notice to be served by the respondent No.2
8. **Sri Dilip Das,**
Notice to be served by the respondent No.2
9. **Sri Swapan Kumar Das,**
Notice to be served by the respondent No.2
10. **Sri Satyabrata Chowdhury,**
Notice to be served by the respondent No.2
11. **Sri Nirmal Das,**
Notice to be served by the respondent No.2
12. **Smt. Shipra Podder,**
Notice to be served by the respondent No.2

13. **Smt. Ranu Das,**
Notice to be served by the respondent No.2
14. **Sri Samir Das,**
Notice to be served by the respondent No.2
15. **Sri Sanjoy Mallik,**
Notice to be served by the respondent No.2
16. **Sri Pintu Sarkar,**
Notice to be served by the respondent No.2
17. **Sri Chayan Das,**
Notice to be served by the respondent No.2
18. **Sri Debashis Bhowmik,**
Notice to be served by the respondent No.2
19. **Sri Satya Das Chowdhury,**
Notice to be served by the respondent No.2
20. **Sri Sanjib Kumar Das,**
Notice to be served by the respondent No.2
21. **Sri Pulak Chowdhury,**
Notice to be served by the respondent No.2
22. **Sri Santi Lal Das,**
Notice to be served by the respondent No.2
23. **Sri Amal Das,**
Notice to be served by the respondent No.2
24. **Sri Prasenjit Das,**
Notice to be served by the respondent No.2
25. **Sri Uttam Kumar Sukla Das,**
Notice to be served by the respondent No.2
26. **Sri Animesh Das,**
Notice to be served by the respondent No.2
27. **Sri Biswajit Das,**
Notice to be served by the respondent No.2

28. **Sri Amrit Das,**
Notice to be served by the respondent No.2
29. **Sri Sujoy Sarkar,**
Notice to be served by the respondent No.2
30. **Sri Madhab Das,**
Notice to be served by the respondent No.2
31. **Sri Rabi Harijan,**
Notice to be served by the respondent No.2

..... Respondents

In W.P.(C) No.98 of 2018

Smt. Sukriti Biswas,
daughter of Sri Niranjan Biswas,
resident of Amtali, P.O. + P.S.
Bamutia, West Tripura, PIN-799211

..... Petitioner

- V e r s u s -

1. **The State of Tripura,**
represented by the Secretary, Department of Panchayet, Government of Tripura, having his office at Secretariat Complex, P.O. Secretariat Complex, P.S. New Capital Complex, PIN-799010, Agartala, West Tripura
2. **The Director,**
office of the Directorate of Panchayet, Government of Tripura, Gorkhabasti, Pandit Nehru Complex, P.O. Kunjaban, P.S. NCC, Agartala, District- West Tripura, PIN-799006
3. **The Joint Director,**
office of the Directorate of Panchayet, Government of Tripura, Gorkhabasti, Pandit Nehru Complex, P.O. Kunjaban, P.S. NCC, Agartala, District- West Tripura, PIN-799006
4. **The Secretary,**
office of the GA(P&T) Department, Government of Tripura, having his office at Secretariat Complex, P.O. Secretariat Complex, P.S. New Capital Complex, PIN-799010, Agartala, West Tripura

5. **Sri Pradip Kumar Das,**
son of late Fanibhusan Das, village-Dasda
Bazar, Kanchanpur, P.O. Dasda, North Tripura
6. **Sri Biplab Das,**
son of Sri Bhupendra Das, village-Uttar
Deocherra, P.O. Deocherra, Panisagar, North
Tripura
7. **Sri Tapan Nama,**
son of Sri Surendra Nama, village- Satnala, P.O.
Satnala, Kanchanpur, North Tripura
8. **Sri Gobinda Das,**
son of late Gogendra Kr. Das, village-Khowrabil,
P.O. Ranguti, Kailashahar, Unakoti, Tripura
9. **Sri Dilip Das,**
son of Sri Brajalal Das, village-Chankap, P.O.
Chankap, Kamalpur, Dhalai Tripura
10. **Sri Swapan Kumar Das,**
son of late Jogesh Chandra Das, village- South
Manik Bhandar, P.O. Manikbhandar, Kamalpur,
Dhalai Tripura
11. **Sri Satyabrata Chowdhury,**
son of Rupchand Choudhury, village-
Madhabnagar, P.O. Madhabnagar, Sabroom,
South Tripura
12. **Sri Nirmal Das,**
son of late Ramani Mohan Das, village-
Lowgang, P.O. Lowgang, Santirbazar, South
Tripura
13. **Smt. Shipra Podder,**
care of Sri Kanu Dey, village-Kalacharra, P.O.
Kalachara, Santirbazar, South Tripura
14. **Smt. Ranu Das,**
care of Sri Biplab Kar, village & P.O. A.D. Nagar,
Sadar, West Tripura, PIN-799003

15. **Sri Samir Das,**
son of Sri Suresh Chandra Das, village- North
Jogendranagar, P.O. Jogendrangan, Sadar, West
Tripura
16. **Sri Sanjoy Mallik,**
son of late Kirit Mallik, village- Krishnadhan
Mallik Parak, P.O. Sarma, Sub-Division-
Gandacherra, District- Dhalai, Tripura
17. **Sri Pintu Sarkar,**
son of late Nirmal Sarkar, village-Karamcherra,
P.O. Karamcherra, Sub-Division- Longtharai
Valley, District- Dhalai, Tripura
18. **Sri Chayan Das,**
son of late Bikram Das, village- Maranadi, P.O.
Khowai, Sub-Division- Khowai, District- Khowai,
Tripura
19. **Sri Dilip Das,**
son of Sri Pramode Das, village-Betaga RK
Gang, P.O. Betaga, Sub-Division- Santirbazar,
District- South Tripura
20. **Sri Debasish Bhowmik,**
son of Sri Panchananda Bhowmik, village-
Shibnagar, P.O. Gajaria, Sub-Division-
Bishalgarh, District- Sepahijala, Tripura
21. **Sri Satya Das Chowdhury,**
son of Sri Ratish Das Chowdhury, village-
Noagaon, Krishnanagar, P.O. Noagaon,
Krishnanagar, Sub-Division- Sadar, District-
West Tripura
22. **Sri Sanjib Kumar Das,**
son of Sri Milan Chandra Das, village- Koroilong,
P.O. Karailong, Sub-Division- Teliamura,
District- Khowai, Tripura
23. **Sri Pulak Chowdhury,**
son of Sri Bhagyadhar Choudhury, village-
Haripur, P.O. Hrishyamukh, Sub-Division-
Belonia, District- South Tripura

24. **Sri Santi Lal Das,**
son of Sri Nikunja Kumar Das, village-
Suparikhola, P.O. Gilatali, Sub-Division- Belonia,
District- South Tripura
25. **Sri Amal Das,**
son of Sri Bhuban Chandra Das, village- East
Kalabaria, P.O. Maicherra, Sub-Division-
Belonia, District- South Tripura
26. **Sri Prasenjit Das,**
son of Sri Jitendra Das, village & P.O. Palatana,
Sub-Division- Udaipur, District- Gomati, Tripura
27. **Sri Uttam Kumar Sukla Das,**
son of Sri Rakhal Sukla Das, village- Anandapur,
P.O. Kamalnagar, Sub-Division- Udaipur,
District- Gomati, Tripura
28. **Sri Animesh Das,**
son of Sri Anukul Chandra Das, village-
Mohanpur, P.O. Majlishpur, Sub-Division-
Jirania, District- West Tripura
29. **Sri Biswajit Das,**
son of Sri Haribandhu Das, village- Joy Krishna
Kobra Para, P.O. S.N. Colony, Sub-Division-
Jirania, District- West Tripura
30. **Sri Amrit Das,**
son of Sri Ajit Das, village- Chhechuria, P.O.
Chhechuria, Sub-Division- Mohanpur, District-
West Tripura
31. **Sri Sujoy Sarkar,**
son of late Abinash Sarkar, village- Fatikcherra,
P.O. Bimangarh, Sub-Division- Mohanpur,
District- West Tripura
32. **Sri Madhab Das,**
son of Sri Durlav Das, village- Uttar Ramnagar,
P.O. Bimangarh, Sub-Division- Mohanpur,
District- West Tripura

33. **Sri Rabi Harijan,**

son of late Biju Harijan, village- Kalikapur, P.O. Ramnagar, Sub-Division- Sadar, District- West Tripura

..... **Respondents**

[As the respondents No.5 to 33 are serving in the post of RPM under the Director, Panchayet Department, the notices may be served through the Director, Panchayet Department, Govt. of Tripura, i.e. the respondent No.2 herein]

In W.P.(C) No.238 of 2018

Sri Saikat Saha,

son of Sri Sankar Saha, resident of Jirania, P.O.Birendrangar, P.S. Jirania, District- West Tripura, PIN-799008

..... **Petitioner**

- V e r s u s -

1. **The State of Tripura,**

represented by the Secretary, Department of Panchayet, Government of Tripura, having his office at Secretariat Complex, P.O. Secretariat Complex, P.S. New Capital Complex, PIN-799010, Agartala, West Tripura

2. **The Principal Secretary,**

to the Government of Tripura, RD [Department of Panchayet], Government of Tripura, having his office at Secretariat Complex, P.O. Secretariat Complex, P.S. New Capital Complex, PIN-799010, Agartala, West Tripura

3. **The Director,**

Panchayet Department, Government of Tripura, Gorkhabasti, Pandit Nehru Complex, P.O. Kunjaban, P.S. NCC, Agartala, West Tripura

4. **Smt. Rakhi Biswas,**

TCS Grade-I, Joint Director of Panchayets, Directorate of Panchayet, Government of Tripura, Gorkhabasti, Pandit Nehru Complex, P.O. Kunjaban, P.S. NCC, Agartala, West Tripura [Chairman, State Level Interview Board]

5. **Sri Bhairab Pal,**
Panchayet Officer, PRTI, AD Nagar, P.O. & P.S.
AD Nagar, District- West Tripura, PIN-799003
[Member, State Level Interview Board]
6. **Sri Partha Saha,**
Panchayet Extension Officer, Jirania R.D. Block,
P.O. & P.S. Jirania, District- West Tripura
7. **Smt. Manika Rani Das [Datta],**
daughter of Samir Ranjan Datta, resident of
Golaghati, P.O. Golaghati, P.S. Bishalgarh,
District- Sepahijala
8. **Sri Arup Kumar Shyam,**
son of Sri Dilip Shyam, resident of
Brahmakunda, P.O. & P.S. Simna, District- West
Tripura
9. **Sri Sayan Saha,**
son of Sri Sankar Chandra Saha, resident of
Aralia, P.O. Aralia, P.S. East Agartala, District-
West Tripura
10. **Smt. Banti Deb,**
daughter of late Bipad Chandra Deb, resident of
College Tilla, P.O. Agartala College, P.S. East
Agartala, District- West Tripura
11. **Smt. Baishakhi Debnath,**
daughter of Sri Goutam Debnath, resident of
Mohanpur, P.O. Majlishpur, P.S. Jirania, District-
West Tripura
12. **Sri Hiranmoy Sinha,**
son of Sri Himangshu Sinha, resident of
Kanchanbari, P.O. & P.S. Kanchanbari,
Kumarghat, District- Unakoti
13. **Sri Ujjal Dhar,**
son of Sri Uttam Dhar, resident of village-
Durbasha Khola, P.O. Nepal Tilla, Sub-Division-
Longtharai Valley, District- Dhalai, Tripura
14. **Md. Ripan Miah,**
son of Julku Mia, resident of Rajnagar, P.O.
Rajnagar, P.S. Belonia, District- South Tripura

15. **Sri Susanta Bhowmik,**
son of late Ranjit Bhowmik, resident of village,
P.O. & P.S. Santirbazaar, District- South Tripura
16. **Sri Haribandu Biswas,**
son of Sri Jaharlal Biswas, resident of Laxmipur,
P.O. Machmara, Kumarghat, District- Unakoti,
Tripura
17. **Smt. Alaka Debnath,**
care of Haridas Debnath, resident of village –
West Lalchari, Kulaibazar, P.S. Ambassa,
District- Dhalai, Tripura
18. **Sri Subrajit Roy Barman,**
son of Sri Sukhendu Bikash Roy Barman,
resident of village- Amalpara, P.O. & P.S.
Belonia, District- South Tripura
19. **Smt. Laxmi Rani Saha,**
daughter of Sri Sentu Saha, resident of village-
Barjala, P.O. Birendranagar, Jirania, P.S. Jirania,
District- West Tripura
20. **Sri Pankaj Chakraborty,**
son of late Chhitta Ranjan Chakraborty, resident
of village – East Harina, Sabroom, P.O.
Harinabazar, District- South Tripura
21. **Md. Salim Uddin Ahamad,**
son of Ali Ahamad, resident of village-
Arabindanagar, Bishalgarh, P.O. Purathal
Rajnagar, District- Sepahijala
22. **Sri Bijoy Debnath,**
son of Sri Bimal Debnath, resident of village-
Kamalnagar, Jirania, P.O. Champaknagar,
District- West Tripura
23. **Sri Abhiram Rudra Paul,**
son of Sri Ganesh Rudra Paul, resident of
village- Krishnanagar, P.S. Jirania, P.O.
Ranirbazar, District- West Tripura

..... Respondents

In W.P.(C) No.334 of 2018

Smt. Sarmista Chakraborty,
wife of Sri Kiran Sankar Chakraborty,
resident of Brajanagar, P.O. & P.S.
Ranirbazar, District- West Tripura

..... **Petitioner**

- V e r s u s -

1. **The State of Tripura,**
represented by the Secretary-cum-
Commissioner, Department of Panchayet,
Government of Tripura, having his office at
Secretariat Complex, P.O. Secretariat Complex,
P.S. New Capital Complex, PIN-799010,
Agartala, West Tripura
2. **The Director of Panchayet,**
Department of Panchayet, Government of
Tripura, Gorkhabasti, Pandit Nehru Complex,
P.O. Kunjaban, P.S. NCC, Agartala, District-
West Tripura, PIN-799006
3. **The Interview Board,**
represented by its Chairman, Department of
Panchayet, Government of Tripura, P.O.
Agartala, P.S. West Agartala, District- West
Tripura
4. **Smt. Pinki Chakraborty,**
daughter of unknown, notice to be served by
the respondent No.2.
5. **Sri Haribindu Das,**
son of unknown, notice to be served by the
respondent No.2.
6. **Sri Utpal Ch. Nath,**
son of unknown, notice to be served by the
respondent No.2.
7. **Smt. Laxmi Rani Saha,**
daughter of unknown, notice to be served by
the respondent No.2.
8. **Sri Pankaj Chakraborty,**
daughter of unknown, notice to be served by
the respondent No.2.

..... **Respondents**

In W.P.(C) No.340 of 2018

Sri Amit Kr. Das,

son of late Sadhan Chandra Das of Jail
Road, Gopal Lane, P.O. Dharmanagar,
P.S. Dharmanagar, District- North
Tripura

..... **Petitioner**

- V e r s u s -

1. **The State of Tripura,**
represented by the Secretary, Department of
Panchayet, Government of Tripura, having his
office at Secretariat Complex, P.O. Secretariat
Complex, P.S. New Capital Complex, PIN-
799010, Agartala, West Tripura
2. **The Director of Panchayet,**
Government of Tripura, Gorkhabasti, Pandit
Nehru Complex, P.O. Kunjaban, P.S. NCC,
Agartala, District- West Tripura, PIN-799006
3. **The Chief Secretary,**
Government of Tripura, having his office at
Secretariat Complex, P.O. Secretariat Complex,
P.S. New Capital Complex, PIN-799010,
Agartala, West Tripura
4. **Smt. Rakhi Biswas,**
TCS Grade-I, Chairman of Interview Board for
the post of Rural Programme Manager [RPM],
Addl. Director of Panchayet Department,
Government of Tripura, office of the Director
Panchayet, Gorkhabasti, Pandit Nehru Complex,
P.O. Kunjaban, P.S. NCC, Agartala, West
Tripura, P.S. NCC, PIN-799006
5. **Sri Biplab Das,**
son of Sri Bhupendra Das, village-Uttar
Deocherra, P.O. Deocherra, Sub-Division-
Panisagar, North Tripura
6. **Sri Tapan Nama,**
son of Sri Surendra Nama, village- Satnala, P.O.
Satnala, Sub-Division-Kanchanpur, North
Tripura

7. **Sri Gobinda Das,**
son of late Gagendra Kr. Das, village-Khowrabil,
P.O. Ranguti, Sub-Division-Kailashahar, Unakoti,
Tripura
8. **Sri Dilip Das,**
son of Sri Brajalal Das, village-Chankap, P.O.
Chankap, Sub-Division-Kamalpur, Dhalai Tripura
9. **Sri Swapan Kumar Das,**
son of late Jogesh Chandra Das, P.O.
Manikbhandar, Sub-Division-Kamalpur, Dhalai
Tripura
10. **Sri Satyabrata Chowdhury,**
son of Rupchand Choudhury, village-
Madhabnagar, P.O. Madhabnagar, Sub-Division-
Sabroom, South Tripura
11. **Sri Nirmal Das,**
son of late Ramani Mohan Das, village-
Lowgang, P.O. Lowgang, Sub-Division-
Santirbazar, South Tripura
12. **Smt. Shipra Podder,**
care of Sri Kanu Dey of Kalacharra, P.O.
Kalachara, Sub-Division-Santirbazar, South
Tripura
13. **Smt. Ranu Das,**
care of Sri Biplab Kar, village & P.O. A.D. Nagar,
Sadar, Sub-Division-Sadar, West Tripura
14. **Sri Samir Das,**
son of Sri Suresh Chandra Das, village- North
Jogendranagar, P.O. Jogendrangar, Sub-
Division-Sadar, West Tripura
15. **Sri Sanjoy Mallik,**
son of late Kirit Mallik, village- Krishnadhan
Mallik Para, P.O. Sarma, Sub-Division-
Gandacherra, District- Dhalai, Tripura
16. **Sri Pintu Sarkar,**
son of late Nirmal Sarkar, village-Karamcherra,
P.O. Karamcherra, Sub-Division- Longtharai
Valley, District- Dhalai, Tripura

17. **Sri Chayan Das,**
son of late Bikram Das of Maranadi, P.O.
Khowai, Sub-Division- Khowai, District- Khowai,
Tripura
18. **Sri Dilip Das,**
son of Pramode Das of Betaga RK Gang, P.O.
Betaga, Sub-Division- Santirbazar, District-
South Tripura
19. **Sri Debasish Bhowmik,**
son of Panchananda Bhowmik of Shibnagar, P.O.
Gajaria, Sub-Division- Bishalgarh, District-
Sepahijala, Tripura
20. **Sri Satya Das Chowdhury,**
son of Ratish Das Chowdhury of Noagaon,
Krishnanagar, P.O. Noagaon, Krishnanagar,
Sub-Division- Sadar, District- West Tripura
21. **Sri Sanjib Kumar Das,**
son of Milan Chandra Das of Koroilong, P.O.
Koroilong, Sub-Division- Teliamura, District-
Khowai, Tripura
22. **Sri Pulak Chowdhury,**
son of Bhagyadhar Choudhury of Haripur, P.O.
Hrishyamukh, Sub-Division- Belonia, District-
South Tripura
23. **Sri Santi Lal Das,**
son of Nikunja Kumar Das of Suparikhola, P.O.
Galatali, Sub-Division- Belonia, District- South
Tripura
24. **Sri Amal Das,**
son of Pramode Das of Joychandpur, P.O.
Kashari, Sub-Division- Belonia, District- South
Tripura
25. **Sri Prasenjit Das,**
son of Jitendra Das, village & P.O. Palatana,
Sub-Division- Udaipur, District- Gomati, Tripura

26. **Sri Uttam Kumar Sukla Das,**
son of Rakhal Sukla Das of Anandapur, P.O.
Kamalnagar, Sub-Division-Sonamura, District-
Sephaijala, Tripura
27. **Sri Animesh Das,**
son of Anukul Chandra Das of Mohanpur, P.O.
Majlishpur, Sub-Division- Jirania, District- West
Tripura
28. **Sri Biswajit Das,**
son of Haribandhu Das of Joy Krishna Kobra
Para, P.O. S.N. Colony, Sub-Division- Jirania,
District- West Tripura
29. **Sri Amrit Das,**
son of Sri Ajit Das of Chhechuria, P.O.
Chhechuria, Sub-Division- Mohanpur, District-
West Tripura
30. **Sri Sujoy Sarkar,**
son of late Abinash Sarkar of Fatikcherra, P.O.
Bimangarh, Sub-Division- Mohanpur, District-
West Tripura
31. **Sri Rabi Harijan,**
son of late Biju Harijan of Kalikapur, P.O.
Ramnagar, Sub-Division- Sadar, District- West
Tripura

..... Respondents

In W.P.(C) No.364 of 2018

Sri Uttam Kumar Roy,
son of late Jagadish Roy of Amtali,
Bholagiri Ashram, P.O. + P.S. Amtali,
District- West Tripura

..... Petitioner

- V e r s u s -

1. **The State of Tripura,**
represented by the Secretary, Department of
Panchayet, Government of Tripura, having his
office at Secretariat Complex, P.O. Secretariat
Complex, P.S. New Capital Complex, PIN-
799010, Agartala, West Tripura

2. **The Director of Panchayet,**
Government of Tripura, Gorkhabasti, Pandit
Nehru Complex, P.O. Kunjaban, P.S. NCC,
Agartala, District- West Tripura, PIN-799006
3. **Smt. Alaka Debnath,**
son of Sri Haridas Debnath of West Lalchari,
P.O. Golai Bazar, Ambassa, Dhalai District,
Tripura
4. **Ripan Mia,**
son of Julku Mia of Rajnagar, P.O. Rajnagar,
Belonia, South Tripura

..... Respondents

In W.P.(C) No.385 of 2018

Sri Sujit Nath,
son of Sri Sachindra Chandra Nath,
resident of Madhya Ganki, T.K. Road,
P.O. Ganki, P.S. Khowai, Tripura, PIN-
799201

..... Petitioner

- V e r s u s -

1. **The State of Tripura,**
represented by the Principal Secretary, Rural
Development [Panchayet] Department,
Government of Tripura, having his office at
Secretariat Complex, P.O. Secretariat Complex,
P.S. New Capital Complex, PIN-799010,
Agartala, West Tripura
2. **The Principal Secretary,**
Rural Development [Panchayet] Department,
Government of Tripura, having his office at
Secretariat Complex, P.O. Secretariat Complex,
P.S. New Capital Complex, PIN-799010,
Agartala, West Tripura
3. **The Director of Panchayet,**
Government of Tripura, Gorkhabasti, Pandit
Nehru Complex, P.O. Kunjaban, P.S. NCC,
Agartala, West Tripura
4. **Sri Dipankar Choudhury,**
son of Sri Mantu Kr. Choudhury of village-
Madhya Pilak, P.O. Debbaru, Santirbazar, South
Tripura, PIN-799141

5. **Sri Goutam Debnath,**
son of Sri Matilal Debnath of village-
Sukantanagar, P.O. Ratiabari, Kumarghat,
District-Unakoti, Tripura, PIN-799264
6. **Smt. Himani Routh,**
care of Gopal Debnath, resident of Char Ganki
(Office Tilla), P.O. Khowai, Khowai, District-
Khowai, Tripura, PIN-799201
7. **Sri Amitabh Roy,**
son of Sri Amalesh Roy, resident of Damcherra,
P.O. Damherra, Panisagar, District-North
Tripura, PIN-799256
8. **Sri Jyotirmoy Paul,**
son of late Jagadish Ch. Paul, resident of West
Pratapgarh, P.O. A.D. Nagar, Sadar, District-
West Tripura, PIN-799003
9. **Smt. Sweta Roy,**
care of Sri Kankan Roy, resident of Fatikroy,
P.O. Fatikroy, Kumarghat, District-Unakoti,
Tripura, PIN-799290
10. **Sri Ashutosh Sarkar,**
son of Sri Anil Chandra Sarkar, resident of
village & P.O. Lowgang, P.S. & Sub-Division-
Shantirbazar, District- South Tripura, PIN-
799144
11. **Sri Ajitesh Sutradhar,**
son of Sri Naresh Sutradhar, resident of village
& P.O. Shalbagan, Mohanpur, District- West
Tripura, PIN-799012
12. **Sri Uttam Debnath,**
son of Sri Dilip Debnath, resident of Satdubia,
P.O. & P.S. Fatikcherra, Mohanpur, District-
West Tripura, PIN-799210
13. **Smt. Pinki Chakraborty [Das],**
wife of Sri Samir Das, resident of Adarsha
Colony, P.O. Jogendranagar, P.S. East Agartala,
District- West Tripura, PIN-799004

14. **Sri Praloy Chakraborty,**
son of late Pradip Chakraborty, resident of
village & P.O. Singhicherra, P.S. Khowai,
District- Khowai, Tripura, PIN-799201
15. **Sri Arup Chakraborty,**
son of Sri Tapan Chakraborty, resident of village
& P.O. Chesrimai, P.O. Bishalgarh, District-
Sepahijala, Tripura, PIN-799103
16. **Sri Amit Ch. Debnath,**
care of Sri Aranya Ch. Debnath, resident of
Barabari, P.O. Jalebasa, Panisagar, North
Tripura, PIN-799260
17. **Sri Sarajit Roy,**
son of late Gobinda Roy, resident of Nirmal Basu
Para, Gandacherra, P.O. & P.S. Sarma, District-
Dhalai, Tripura, PIN-799284
18. **Sri Pulak Majumder,**
son of Sri Mantu Kr. Majumder, resident of
Sonapur, Barpathari, Belonia, South Tripura,
PIN-799155
19. **Sri Amitava Das,**
son of Sri Sunil Ch. Das, resident of Hal
Chowmuhani, Belonia, P.O. Belonia, South
Tripura, PIN-799155
20. **Smt. Dura Lodh [Ghosh],**
wife of Sanjoy Ghosh, resident of Garjee, P.O. &
P.S. Garjee, District- Gomati, Tripura, PIN-
799201
21. **Smt. Manika Rani Das [Datta],**
care of Samir Ranjan Datta, resident of
Golaghati, P.O. Golaghati, P.S. Bishalgarh,
District- Sepahijala, PIN-799102
22. **Sri Arup Kumar Shyam,**
son of Sri Dilip Shyam, resident of
Brahmakunda, P.O. & P.S. Simna, Mohanpur,
District- West Tripura, PIN-799212
23. **Sri Sayan Saha,**
son of Sri Sankar Chandra Saha, resident of
Aralia, P.O. Aralia, District- West Tripura, PIN-
799004

24. **Sri Banti Deb,**
son of late Bipad Chandra Deb, resident of
College Tilla, P.O. Agartala College, P.S. East
Agartala, District- West Tripura, PIN-799004
25. **Smt. Baishakhi Debnath,**
care of Sri Goutam Debnath, resident of
Mohanpur, Jirania, P.O. Majlishpur, District-
West Tripura, PIN-799035
26. **Sri Hiranmoy Sinha,**
son of Sri Himangshu Sinha, resident of
Kanchanbari, P.O. & P.S. Kanchanbari,
Kumarghat, District- Unakoti, PIN-799288
27. **Sri Ujjal Dhar,**
son of Sri Uttam Dhar, resident of village-
Durbasha Khola, P.O. Nepal Tilla, Sub-Division-
Longtharai Valley, District- Dhalai, Tripura, PIN-
799288
28. **Sri Ripan Mia,**
son of Julku Mia, resident of Rajnagar, P.O.
Rajnagar, P.S. Belonia, District- South Tripura,
PIN-799150
29. **Sri Susanta Bhowmik,**
son of late Ranjit Bhowmik, resident of village+
P.O. & P.S. Santirbazaar, District- South
Tripura, PIN-799144
30. **Sri Dilip Debnath,**
son of Sri Mahendra Debnath, resident of
Sunaimuri, P.O. Sunaimuri, Kumarghat,
Unakoti, Tripura, PIN-799264
31. **Sri Haribindu Biswas,**
son of Sri Jaharlal Biswas, resident of Laxmipur,
P.O. Machmara, Kumarghat, District- Unakoti,
Tripura, PIN-799265
32. **Smt. Alaka Debnath,**
care of Haridas Debnath, resident of West
Lalchari, P.O. Kulaibazar, Ambassa, District-
Dhalai, Tripura, PIN-799204

33. **Sri Subrajit Roy Barman,**
son of Sri Sukhendu Bikash Roy Barman,
resident of Amalpara, P.O. & P.S. Belonia,
District- South Tripura, PIN-799155
34. **Mira Debnath,**
care of Sri Amal Debnath of Bankar, Nandipara,
P.O. Belonia, Belonia, South Tripura, PIN-
799155
35. **Sri Utpal Chandra Nath,**
son of Sri Rabindra Chandra Nath, resident of
Manubazar, P.O. & P.S. Manubazar, District-
South Tripura, PIN-799143
36. **Smt. Laxmi Rani Saha,**
care of Sri Sentu Saha, resident of village-
Barjala, P.O. Birendranagar, Jirania, P.S. Jirania,
District- West Tripura, PIN-799405
37. **Sri Pankaj Chakraborty,**
son of late Chhitta Ranjan Chakraborty, resident
of village - East Harina, Sabroom, P.O.
Harinabazar, District- South Tripura, PIN-
799145
38. **Md. Salim Uddin Ahamad,**
son of Ali Ahamad, resident of village-
Arabindanagar, Bishalgarh, P.O. Purathal
Rajnagar, District- Sepahijala, PIN-799102
39. **Sri Bijoy Debnath,**
son of Sri Bimal Debnath, resident of
Kamalnagar, Jirania, P.O. Champaknagar,
District- West Tripura, PIN-799045
40. **Sri Abhiman Rudra Paul,**
son of Sri Ganesh Rudra Paul, resident of
Krishnanagar, Jirania, P.O. Ranirbazar, District-
West Tripura, PIN-799035

..... Respondents

In W.P.(C) No.400 of 2018

Smt. Antu Roy [Debnath],
daughter of Ashutosh Roy, resident of
resident of Durjoynagar Bus Stop, P.O.
Durjoynagar, P.S. New Capital
Complex, District- West Tripura

..... Petitioner

- V e r s u s -

1. **The State of Tripura,**
represented by the Secretary-cum-Commissioner, Department of Panchayet, Government of Tripura, having his office at Secretariat Complex, P.O. Secretariat Complex, P.S. New Capital Complex, PIN-799010, Agartala, West Tripura
2. **The Director of Panchayet,**
Government of Tripura, Gorkhabasti, Pandit Nehru Complex, P.O. Kunjaban, P.S. NCC, Agartala, District- West Tripura, PIN-799006
3. **The Interview Board,**
represented by its Chairman, Department of Panchayet, Government of Tripura, P.O. Agartala, P.S. West Agartala, District- West Tripura
4. **Sri Biswajit Das,**
son of Haribandhu Das, resident of village- Joy Krishna Kobra Para, P.O. S.N. Colony, P.S. Jirania, District- West Tripura
5. **Sri Amrit Das,**
son of Ajit Das, resident of village + P.O. Chhechuria, P.S. Mohanpur, District- West Tripura
6. **Sri Sujoy Sarkar,**
son of late Abhinash Sarkar, resident of village + P.O. Fatikcherra, P.S. Mohanpur, District- West Tripura
7. **Sri Madhab Das,**
son of Durlav Das, resident of village Uttar Ramnagar, P.O. Bimangarh, P.S. Mohanpur, District- West Tripura
8. **Sri Rabi Harijan,**
son of late Biju Harijan, resident of village Kalikapur, P.O. Ramnagar, P.S. West Agartala, District- West Tripura

9. **Sri Prasenjit Das,**
son of Jitendra Das, resident of village Palatana,
P.O. Palatana, P.S. R.K. Pur, Udaipur, District-
West Tripura
10. **Sri Sanjib Kr. Das,**
son of Milan Ch. Das Das, resident of village +
P.O. Koroilong, P.S. Teliamura, District- Khowai,
Tripura
11. **Sri Pulak Choudhury,**
son of Sri Bhagya Dhar Choudhury, resident of
village Haripur, P.O. Hrishyamukh, P.S. Belonia,
District- South Tripura
12. **Sri Chayan Das,**
son of late Bikram Das, resident of village
Maranadi, P.O. + P.S. Khowai, District- Khowai,
Tripura
13. **Sri Debashis Bhowmik,**
son of Panchananda Bhowmik, resident of
village Bhibnagar, P.O. Gajaria, P.S. Bishalgarh,
District- Sepahijala, Tripura

In W.P.(C) No.1153 of 2018

Sri Abhijit Das,
son of Sri Dulal Das of 79 Tilla, P.O.
Kunjaban, P.S. NCC, Agartala, West
Tripura

..... **Petitioner**

- V e r s u s -

1. **The State of Tripura,**
represented by the Secretary, Department of
Panchayet, Government of Tripura, having his
office at Secretariat Complex, P.O. Secretariat
Complex, P.S. New Capital Complex, PIN-
799010, Agartala, West Tripura
2. **The Director of Panchayet,**
Government of Tripura, Gorkhabasti, Agartala
3. **Sri Sayan Saha,**
son of Sri Sankar Chandra Saha of Aralia, P.O.
Aralia, Sadar, Tripura West

4. **Sri Ujjal Dhar,**
son of Sri Uttam Dhar, Durbasha Khola, P.O.
Nepal Tilla, Longtarai Valley, Dhalai District,
Tripura

..... Respondents

In W.P.(C) No.25 of 2019

Sri Samaresh Debnath,
son of Sri Naresh Chandra Debnath, resident of
village Lalchari, P.O. Marachara, P.S. Kamalpur,
District- Dhalai, Tripura

..... Petitioner

- V e r s u s -

1. **The State of Tripura,**
represented by the Chief Secretary, Government
of Tripura, having his office at Secretariat
Complex, P.O. Secretariat Complex, P.S. New
Capital Complex, PIN-799010, Agartala, West
Tripura
2. **The Secretary,**
Employment Services Manpower Planning,
Government of Tripura, having his office at
Secretariat Complex, P.O. Secretariat Complex,
P.S. New Capital Complex, PIN-799010,
Agartala, West Tripura
3. **The Secretary,**
Department of Panchayet, Government of
Tripura, having his office at Secretariat
Complex, P.O. Secretariat Complex, P.S. New
Capital Complex, PIN-799010, Agartala, West
Tripura
4. **The Secretary-cum-Commissioner,**
Finance Department, Government of Tripura,
having his office at Secretariat Complex, P.O.
Secretariat Complex, P.S. New Capital Complex,
PIN-799010, Agartala, West Tripura
5. **The Director,**
Panchayet Department, Government of Tripura,
Pandit Nehru Complex, P.O. Agartala, P.S. New
Capital Complex, District- West Tripura

6. **Sri Haribindu Biswas,**
son of Sri Jaharlal Biswas, resident of Laxmipur,
P.O. Machmara, P.S. Pecharthal, Sub-Division-
Kumarghat, District- Unakoti, PIN-799263
7. **Smt. Alaka Debnath,**
son of Sri Haridas Debnath, village – West
Lalchari, P.O. Kulaibazar, P.S. Ambassa, Sub-
Division-Ambassa, District- Dhalai, Tripura ,
PIN-799204
8. **Sri Bijoy Debnath,**
son of Sri Bimal Debnath, village- Kamalnagar,
Jirania, P.O. Champaknagar, P.S. Jirania,
District- West Tripura, PIN-799045
9. **Sri Utpal Chandra Nath,**
son of Rabindra Chandra Nath, village-
Manubazar, P.O. & P.S. Manubazar, Sabroom,
District- South Tripura, PIN-799143
10. **Smt. Laxmi Rani Saha,**
care of Sri Sentu Saha, resident of village-
Barjala, P.O. Birendranagar, Jirania, P.S. Jirania,
District- West Tripura, PIN-799045
11. **Sri Abhiman Rudra Paul,**
son of Sri Ganesh Rudra Paul, resident of
village- Krishnanagar, Jirania, P.O. & P.S.
Ranirbazar, Sub-Division- Jirania, District- West
Tripura, PIN-799035

..... Respondents

In W.P.(C) No.26 of 2019

1. **Sri Sanjit Sil,**
son of Sri Jahar Lal Sil, resident of Poangbari,
P.O. Melaghar, District- Sepahijala, Tripura,
PIN-799285
2. **Smt. Papiya Ghosh,**
wife of Sri Dibyendu Sarkar, daughter of Sri Hari
Sankar Ghosh, resident of village & P.O.
Sarashima, P.S. Belonia, District- South Tripura

..... Petitioners

- V e r s u s -

1. **The State of Tripura,**
represented by the Chief Secretary, Government of Tripura, having his office at Secretariat Complex, P.O. Secretariat Complex, P.S. New Capital Complex, PIN-799010, Agartala, West Tripura
2. **The Secretary,**
Employment Services Manpower Planning, Government of Tripura, having his office at Secretariat Complex, P.O. Secretariat Complex, P.S. New Capital Complex, PIN-799010, Agartala, West Tripura
3. **The Secretary,**
Department of Panchayet, Government of Tripura, having his office at Secretariat Complex, P.O. Secretariat Complex, P.S. New Capital Complex, PIN-799010, Agartala, West Tripura
4. **The Secretary-cum-Commissioner,**
Finance Department, Government of Tripura, having his office at Secretariat Complex, P.O. Secretariat Complex, P.S. New Capital Complex, PIN-799010, Agartala, West Tripura
5. **The Director,**
Panchayet Department, Government of Tripura, Pandit Nehru Complex, P.O. Agartala, P.S. New Capital Complex, District- West Tripura
6. **Sri Haribindu Biswas,**
son of Sri Jaharlal Biswas, resident of Laxmipur, P.O. Machmara, P.S. Pecharthal, Sub-Division- Kumarghat, District- Unakoti, PIN-799263
7. **Smt. Alaka Debnath,**
son of Sri Haridas Debnath, village – West Lalchari, P.O. Kulaibazar, P.S. Ambassa, Sub-Division-Ambassa, District- Dhalai, Tripura , PIN-799204
8. **Sri Bijoy Debnath,**
son of Sri Bimal Debnath, village- Kamalnagar, Jirania, P.O. Champaknagar, P.S. Jirania, District- West Tripura, PIN-799045

..... **Respondents**

In W.P.(C) No.122 of 2019

Sri Deep Sankar Das,

son of Sri Pradip Kumar Das of
Khejurbagan, P.S. NCC, Agartala, West
Tripura

..... **Petitioner**

- V e r s u s -

1. **The State of Tripura,**
represented by the Secretary, Department of
Panchayet, Government of Tripura, having his
office at Secretariat Complex, P.O. Secretariat
Complex, P.S. New Capital Complex, PIN-
799010, Agartala, West Tripura
2. **The Director of Panchayet,**
Government of Tripura, Gorkhabasti, Agartala
3. **Sri Sayan Saha,**
son of Sri Sankar Chandra Saha of Aralia, P.O.
Aralia, Sadar, Tripura West
4. **Sri Ujjal Dhar,**
son of Sri Uttam Dhar, Durbasha Khola, P.O.
Nepal Tilla, Longtarai Valley, Dhalai District,
Tripura

सत्यमेव जयते

..... **Respondents**

For the petitioner (s)	:	Mr. D. Datta, Mr. D. Sarkar, Mr. R. Datta, Mr. S. Mahajan, Mr. A. Sengupta, Mr. A. Bhowmik, Mr. Samarjit Bhattacharjee, Mr. R.G. Chakraborty and Ms. P. Dhar, Advocates				
For the respondent (s)	:	Mr. D. Bhattacharjee, G.A., Mr. M. Debbarma, Addl. G.A., Mr. G.S. Bhattacharjee, Adv. Mr. A. Nandi, Mr. H. Sarkar, Mr. S.M. Chakraborty, Sr. Adv., Mr. T.D. Majumder, Mr. Somik Deb, Mr. C.S. Sinha and Ms. B. Chakraborty, Advocates				
Date of hearing	:	17.01.2020				
Date of delivery of Judgment & order *	:	20.07.2020				
Whether fit for reporting	:	<table border="1"><tr><td>YES</td><td>NO</td></tr><tr><td>√</td><td></td></tr></table>	YES	NO	√	
YES	NO					
√						

* The pronouncement of the judgment has been delayed for lock down in the court.

HON'BLE MR. JUSTICE S. TALAPATRA

JUDGMENT & ORDER

These writ petitions being W.P.(C) No.1392 of 2017 [Sri Sahadeb Das vs. State of Tripura & Ors.], W.P.(C) No.1493 of 2017 [Sri Rakesh Bhadra vs. State of Tripura & Ors.], W.P.(C) No.1494 of 2017 [Sri Nitai Debnath vs. State of Tripura & Ors.], W.P.(C) No.1516 of 2017 [Sri Rakesh Dey & Ors. vs. State of Tripura & Ors.], W.P.(C) No.1634 of 2017 [Sri Kabi Ranjan Das vs. State of Tripura & Ors.], W.P.(C) No.1635 of 2017 [Sri Tutan Saha vs. State of Tripura & Ors.], W.P.(C) No.1638 of 2017 [Sri Abhijit Datta vs. State of Tripura & Ors.], W.P.(C) No.1746 of 2017 [Sri Dhananjoy Das vs. State of Tripura & Ors.], W.P.(C) No.11 of 2018 [Sri Abhijit Ghosh vs. State of Tripura & Ors.], W.P.(C) No.88 of 2018 [Sri Dipjyoti Das vs. State of Tripura & Ors.], W.P.(C) No.98 of 2018 [Smt. Sukriti Biswas vs. State of Tripura & Ors.], W.P.(C) No.238 of 2018 [Sri Saikat Saha vs. State of Tripura & Ors.], W.P.(C) No.334 of 2018 [Smt. Sarmistha Chakraborty vs. State of Tripura & Ors.], W.P.(C) No.340 of 2018 [Sri Amit Kr. Das vs. State of Tripura & Ors.], W.P.(C) No.364 of 2018 [Sri Uttam Kr. Roy vs. State of Tripura & Ors.], W.P.(C) No.385 of 2018 [Sri Sujit Nath vs. State of Tripura & Ors.], W.P.(C) No.400 of 2018

[Sri Antu Roy (Debnath) vs. State of Tripura & Ors.], W.P.(C) No.1153 of 2018 [Sri Abhijit Das vs. State of Tripura & Ors.], W.P.(C) No.25 of 2019 [Sri Samaresh Debnath vs. State of Tripura & Ors.], W.P.(C) No.26 of 2019 [Sri Sanjit Shil & Anr. vs. State of Tripura & Ors.] and W.P.(C) No.122 of 2019 [Sri Deep Sankar Das vs. State of Tripura & Ors.] are combined for disposal by a common judgment inasmuch to a larger extent, the nature of challenge as raised in this batch of writ petitions is identical even though there is a little variation in respect of certain additional qualifications etc., those will be noted separately in the appropriate place.

[2] The writ petitioners have challenged the selection and appointment to the post of Rural Programme Manager [RPM] in the Department of Panchayet, Government of Tripura, pursuant to the notice of employment dated 04.10.2015 as published in the local daily newspaper, namely 'Daily Desher Katha' [hereinafter referred to as the employment notice]. By the said notice dated 04.10.2015, the willing candidates having the requisite qualifications were asked to appear for the walk-in interview on different dates at different places, as provided in the said notice, with their bio-data along with the original

testimonials of their educational qualification and the testimonials relating to Indian Citizenship. The bio-data is directed to contain introduction of the candidate and the details of qualification and achievements with a photograph attached therewith. The Interview Boards will decide on the scheduled date whom they interviewed on a date. The Interview Board may reschedule the interview and that will immediately be informed to the candidates. A format of the application form was provided in the said notification which is as follows:

Format of Application

To

The Director
Panchayet Department
P.N Complex, Gurkhabasti
Agartala, Tripura (W)

Recent pass port size
colour photo self attested

Subject- Prayer for the post of Rural Programme Manager

Sir,

With due respect that, I Prayer for the post of Rural Programme Manager as per your given No..... and date basis on the advertisement.

Personal information and Bio-data are given below:

1. Name of the Post
2. Name of the Candidate
3. Father/Husband name
4. Permanent Address: Vill/P.O./PIN/P.S./ Sub-Division/Block/District
5. Permanent Address: Vill/P.O./PIN/P.S./ Sub-Division/Block/District
6. Nationality
7. SC/ST
8. Retired Soldier or Govt. Employee
9. Date of Birth
10. Present age
11. Educational qualification
12. Employment Exchange Card No.

13. Candidate should be knowledge in Computer and certificate should be submitted and recognized institute
14. Other qualification (Sports and cultural)

Qualification	Name of Board/University	Year of the Qualification	Total Acquired number	Percentage	Remarks
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The above information is true to the best of my knowledge and belief.

Place
Date

Full signature of the candidate

[3] In the said notice, the following conditions were expressly provided:

- 1. Vacant posts may increase or decrease.**
- 2. At any time, the process may be stayed or cancelled.**
- 3. No TA/DA will be provided to the candidates for appearing in the interview.**
- 4. No separate call letter will be issued to any candidate.**
- 5. By issuing the notice the scheduled place, date and time may be changed.**
- 6. On the date of the advertisement [the notice] minimum age will be 18 years and maximum age should be within 40.5 years unless relaxation for SC/ST/PH or Govt. Employees are available, otherwise candidates will not be allowed to appear in the interview.**
- 7. Candidates should submit:**
 - a. Madhyamik admit card or Birth certificate**
 - b. Mark-sheet of Graduate or equivalent examinations**
 - c. PRTC or Citizenship certificate.**
 - d. Employment Exchange Card**
 - e. Caster certificate in case of SC/ST**
 - f. Certificate relating to the knowledge in the Computer issued by the recognized institutes**
 - g. Certificate relating to Sports and cultural activities**
 - h. Interview will be taken only in the Sub-division as per date mentioned in the advertisement**
 - i. The decision of the Department will be treated as final.**

[4] For purpose of reference, the details of category wise vacant posts, educational qualification and monthly fixed pay etc. as provided in the said notice are reproduced hereunder:

Name of the Post	No. of Vacant Post				Salary	Educational Qualification	Age	Remarks
	SC	ST	UR	Total				
Rural Programme Manager	112	204	342	658	Rs.7380/- [75% of the initial pay in the PB-2 of Rs.5700-24000/- and Grade Pay Rs.2400	1. Graduate or passed equivalent examination 2. Candidate should be knowledge in computer and certificate should be submitted from any recognized institute with bio-data 3. Candidate should be submitted admit card and Graduation or equivalent examination passed certificate	From 18 to 40 years. Upper age limit is relaxable by 5 years in case of SC, ST and Government Employee on the basis of the first interview notice	

[5] The schedule of place, date and time of interview was re-scheduled twice, once by the notification dated 29.10.2015 and 30.10.2015 as reflected in the subsequent notification dated 05.11.2015. Finally, by the notification dated 05.11.2015, date, place and time of interview was re-scheduled for the Districts- Khowai, South Tripura, Gomati, Sepahijala and West Tripura. The writ petitioners admittedly participated in the said walk-in Interview as per the terms and conditions as notified. But after the result of interview was published, the petitioners were surprised that there was gross violation of the policy of the Government as reflected in the memorandum No.F.23(8)-GA (P&T)/2014 dated 12.01.2015 issued by the

General Administration (Personnel and Training) Department, Government of Tripura [Annexure-F to the writ petition being W.P.(C) No.1392 of 2019]. By the said memorandum, the State Government had adopted the guidelines for selection of candidates by open interview for Group-C & Group-D posts in various departments of the Government. The said guidelines, however, are not be applicable for those posts for which are recruited through TPSC as well as in respect of the appointments in the autonomous bodies, PSUs and Boards etc. The said guidelines shall also not apply to those posts for which recruitment rules specifically provide for selection by written test or viva-voce test. The guidelines for selection of candidates by open interview shall apply to both unreserved category posts and reserved category posts. Liberty has been given to the effect that when the interview cannot be held by a common Interview Board, the several interview boards can be constituted district or Sub-Division wise. In the present case in hand, several interview Boards had been constituted to select the prospective candidates by open interview. It has been clearly stated in the said guidelines that the suitability of the candidates shall be evaluated out of 100 marks. Marks shall be awarded on assessing the age, educational qualification and

knowledge on subject, intelligence, aptitude and interest in the field, sense and social commitment and co-curricular field [Culture, Sports etc.]. For conducting such interview, 4 categories had been created viz. (1) from persons with disabilities for Group-C post (2) candidates for Group-C post other than persons with disabilities (3) candidates from persons with disabilities for Group-D post and (4) candidates from Group-D post other than with disabilities.

[6] The selection to the post of Rural Programme Manager [RPM in short], Group-C falls in the Category-2 and for selection of candidates for Group-C post other than with disability, the following guidelines for purpose of awarding marks to the candidates have been laid in the said policy. Having considered relevant, the said part of the guidelines is hereunder reproduced:

CATEGORY-2 –Selection of candidates for Group-C posts other than persons with Disabilities.

(i) 1(one) mark to be awarded to the candidates for each year since passing the examination (acquired minimum qualification) as prescribed for the post in the Recruitment Rules of that post or year(s) of waiting for job after passing the qualifying examination subject to a maximum of 20 marks.

(ii) Maximum marks to be allotted to evaluate Educational Qualifications: 40 Marks.

(a) 30%-44% Marks obtained in qualifying Exam - 14 Marks.
(b) 45%-59% Marks obtained in qualifying Exam - 28 Marks.

(c) 60% and above Marks obtained in qualifying Exam- 40 Marks.

(iii) Maximum Marks to be allotted to evaluate General Knowledge- 30 Marks.

(a) Knowledge on subject to be evaluated out of -7 Marks

(b) Intelligence to be evaluated out of - 8 Marks

(c) Aptitude and interest on the field to be evaluated out of - 7 Marks

(d) Sense of Social Commitment to be evaluated out of - 8 Marks.

(iv) Maximum marks to be allotted to evaluate in co-curricular field (Culture, Sports etc.) - 10 Marks.

[7] According to the petitioners, the said guidelines were acted upon by the Interview Boards in an unreasonable and arbitrary manner, as consequence of which, though the petitioners are sufficiently qualified to get the selection but they were not selected. The writ petitioner of W.P.(C) No.1392 of 2017 has made a serious allegation that when he had sought to collect the information in respect to the selection in the post of RPM, he was shocked to notice vide the communication No.F.10(1-12)-RTI/PR/2017/12914 dated 09.08.2017 that not only the information was withheld but the column for '*percentage of graduation mark*' was deleted. The said writ petitioner has categorically alleged that when he obtained the second information, he found that in the category of SC, ST & UR there were so many candidates who did not fulfill the required criteria as per guidelines and in the said process, many unqualified candidates have been selected and appointed in the post of RPM in complete disregard to the espoused guidelines

for selection. On 28.08.2017, the said writ petitioner filed a petition to the Director of Panchayets for clarifying how the selected candidates got 28 marks instead of 14 marks but no reply has been received from the Director of Panchayet. After scrutiny of the disclosed information, the said writ petitioner found that 35 candidates belonging to UR category, 28 candidates belonging to SC category and 56 candidates belonging to ST candidates [total-119 candidates] were selected and appointed by violating the said guidelines. According to the said writ petitioners, the said action is a colourable exercise and the selection as a whole is vitiated by a narrow political consideration.

[8] On disclosure of interview marks for the post of RPM as is referred in the writ petition being W.P.(C) No.1392 of 2017 [pages 109 to 152] so far the selected candidates are concerned. In the column No.10, the highest qualification of those selected candidates have been noted and against that, the percentage of graduation marks has been shown and thereafter, in the column No.11-the marks of waiting [total-20] and in the column No.12, marks for educational qualification [total-40] are given. In columns No.13,14,15,16 & 17 the

marks for knowledge on the subject, intelligence, aptitude and interest on the field, social commitment and co-curricular field were given respectively against the allotted marks being 7,8,7,8 and 10. Thereafter, in the column No.18, the total marks obtained by the candidates have been shown. It is apparent from the said scores that for the educational qualification most of the candidates got 40 or 28 and no other marks were given to the candidates. The petitioner of W.P.(C) No.1392 of 2017 has made the allegation that 28 marks instead of 14, has been given most illegally to the private respondents and thus, the entire selection has been vitiated. The petitioner of W.P.(C) No.1392 of 2017 has re-calculated the marks in his own way as per the guidelines in the following manner, as available in Annexure-K to the writ petition being W.P.(C) No.1392 of 2017:

Only SC category posts, where the Dept. intentionally and illegally gave Qualification Marks 28 instead of 14

Total = 28 Nos. out of 112 Nos. SC posts

Receipt No.	Candidates Name	Percentage of Graduation Marks as per information	Educational Qualification (other than PH) [30-44%=14] [45-59%=28] 60% & above=40], but as per information marks given follows	As per Govt. guidelines Qualification Marks in between [30-44%=14]	Total interview score carried (including extra illegal 14 marks.) as per record of interview data sheet	If extra illegal 14 marks will be deduct from the total score, then actual score will be
493	Pradip Kumar Das	40.75	28	14	54	54-14=40

158	Biplab Das	42.88	28	14	53	53-14=39
246	Tapan Nama	40.75	28	14	53	53-14=39
2015	Gobinda Das	44.00	28	14	53	53-14=39
3068	Dilip Das	40.17	28	14	53	53-14=39
3832	Swapan Kumar Das	44.00	28	14	53	53-14=39
7088	Satyabrata Choudhury	43.50	28	14	53	53-14=39
7499	Nirmal Das	41.63	28	14	53	53-14=39
7765	Shipra Podder	41.25	28	14	53	53-14=39
18701	Ranu Das	41.89	28	14	53	53-14=39
19267	Samir Das	42.22	28	14	53	53-14=39
3345	Sanjoy Mallik	42.56	28	14	52	52-14=38
3936	Pintu Sarkar	40.00	28	14	52	52-14=38
4847	Chayan Das	42.13	28	14	52	52-14=38
11614	Debashish Bhowmik	40.88	28	14	52	52-14=38
18006	Sapta Das Choudhury	43.44	28	14	52	52-14=38
5983	Sanjib Kumar Das	40.50	28	14	51	51-14=37
8176	Pulak Choudhury	40.63	28	14	51	51-14=37
8294	Santi Lal Das	42.25	28	14	51	51-14=37
8821	Amal Das	43.00	28	14	51	51-14=37
11143	Prasenjit Das	42.75	28	14	51	51-14=37
13567	Uttam Kumar Sukladas	42.38	28	14	51	51-14=37
14916	Animesh Das	44.25	28	14	51	51-14=37
15139	Biswajit Das	41.22	28	14	51	51-14=37
15263	Amrit Das	41.25	28	14	51	51-14=37

16094	Sujoy Sarkar	40.00	28	14	51	51-14=37
16149	Madhab Das	40.00	28	14	51	51-14=37
16810	Rabi Harijan	42.38	28	14	51	51-14=37

Only UR category posts, where the Dept. intentionally and illegally gave Qualification Marks 28 instead of 14

Total = 35 Nos. out of 342 Nos. posts

Receipt No.	Candidates Name	Percentage of Graduation Marks as per information	Educational Qualification (other than PH) [30-44%=14] [45-59%=28] 60% & above=40], but as per information marks given follows	As per Govt. guidelines Qualification Marks in between [30-44%=14]	Total interview score carried (including extra illegal 14 marks.) as per record of interview data sheet	If extra illegal 14 marks will be deduct from the total score, then actual score will be
5231	Sutapa Thakurta (Bhattacharjee)	43.00	28	14	71	71-14=57
15999	Madhumita Debnath	41.25	28	14	70	70-14=56
17478	Bishwajit Bhowmik	44.17	28	14	70	70-14=56
2794	Goutam Debnath	44.11	28	14	67	67-14=53
5012	Himani Routh	43.89	28	14	67	67-14=53
11	Amithab Roy	40.00	28	14	66	66-14=52
18982	Jyotirmoy Paul	41.00	28	14	65	65-14=51
2789	Sweta Roy	42.22	28	14	63	63-14=49
7514	Ashutosh Sarkar	41.00	28	14	62	62-14=48
15487	Ajitesh Sutradhar	40.75	28	14	62	62-14=48
15163	Uttam Debnath	40.13	28	14	61	61-14=47
18549	Pinki Chakraborty (Das)	43.00	28	14	61	61-14=47
5197	Praloy	40.00	28	14	60	60-14=46

	Chakraborty					
12009	Arup Chakraborty	42.13	28	14	60	60-14=46
3618	Sarajit Roy	44.38	28	14	59	59-14=45
8701	Amitabha Das	44.40	28	14	59	59-14=45
10821	Dura Lodh (Ghosh)	42.67	28	14	59	59-14=45
12324	Manika Rani Das (Datta)	41.25	28	14	59	59-14=45
15294	Arup Kr. Shyam	42.75	28	14	59	59-14=45
16358	Sayan Saha	40.88	28	14	59	59-14=45
16712	Banti Deb	42.00	28	14	59	59-14=45
17900	Baishakhi Debnath	44.00	28	14	59	59-14=45
2791	Hiranmoy Sinha	40.63	28	14	58	58-14=44
4243	Ujjal Dhar	40.00	28	14	58	58-14=44
8952	Ripan Mia	40.13	28	14	58	58-14=44
9125	Susanta Bhowmik	41.50	28	14	58	58-14=44
2666	Haribindu Biswas	40.88	28	14	57	57-14=43
4452	Alaka Debnath	40.88	28	14	57	57-14=43
8149	Subrajit Roy Barman	40.00	28	14	57	57-14=43
6824	Utpal Ch. Nath	44.13	28	14	56	56-14=42
14348	Laxmi Rani Saha	43.50	28	14	56	56-14=42
7292	Pankaj Chakraborty	43.00	28	14	55	55-14=41
12505	Salimuddin Ahmed	41.00	28	14	55	55-14=41
14311	Bijoy Debnath	42.63	28	14	55	55-14=41
14568	Abhiman Rudrapal	40.88	28	14	55	55-14=41

**Only ST category posts, where the Dept. intentionally and illegally gave
Qualification Marks 28 instead of 14**

Total = 56 Nos. out of 204 Nos. posts

Receipt No.	Candidates name	Percentage of Graduation Marks as per information	Educational Qualification (other than PH) [30-44%=14] [45-59%=28] 60% & above=40], but as per information marks given follows	As per Govt. guidelines Qualification Marks in between [30-44%=14]	Total interview score carried (including extra illegal 14 marks.) as per record of interview data sheet	If extra illegal 14 marks will be deduct from the total score, then actual score will be
8116	Hiren Jamatia	42.50	28	14	54	54-14=40
1509	R. Sangi Halom	43.63	28	14	53	53-14=39
1800	Sanjay Debbarma	42.75	28	14	53	53-14=39
2715	Ranjita Debbarma	41.13	28	14	53	53-14=39
3033	Satyajit Debbarma	44.38	28	14	53	53-14=39
6649	Rabin Mala Tripura	44.25	28	14	53	53-14=39
7111	Ranjan Kumar Tripura	42.50	28	14	53	53-14=39
8110	Nohan Reang	40.11	28	14	53	53-14=39
9169	Manik Tripura	44.25	28	14	53	53-14=39
9270	Santana Debbarma	42.50	28	14	53	53-14=39
10073	Bongta Rani Molsom	40.30	28	14	53	53-14=39
10501	Mohan Manik Molsom	40.13	28	14	53	53-14=39
11915	Aruna Debbarma	42.50	28	14	53	53-14=39
12006	Shibai Debbarma	41.22	28	14	53	53-14=39
12281	Chabi Debbarma	40.25	28	14	53	53-14=39

15653	Prajapati Debbarma	43.75	28	14	53	53-14=39
15762	Doordarshan Debbarma	40.75	28	14	53	53-14=39
280	Amita Reang	40.63	28	14	52	52-14=38
403	Lalenkawli Sailo	40.88	28	14	52	52-14=38
3144	Imanuel Debbarma	40.25	28	14	52	52-14=38
3438	Rajesh Reang	40.00	28	14	52	52-14=38
3450	Nibedita Chakma	42.13	28	14	52	52-14=38
4715	Rekabi Debbarma	42.44	28	14	52	52-14=38
7668	Gurujoy Reang	42.25	28	14	52	52-14=38
7855	Jagadish Tripura	41.88	28	14	52	52-14=38
9644	Haridas Debbarma	40.00	28	14	52	52-14=38
10149	Braja Kumar Jamatia	42.50	28	14	52	52-14=38
11786	Biswanath Debbarma	40.00	28	14	52	52-14=38
12610	Nayab Debbarma	42.38	28	14	52	52-14=38
14386	Hema Debbarma	40.63	28	14	52	52-14=38
16425	Rabindra Debbarma	42.25	28	14	52	52-14=38
16902	Sudhan Debbarma	40.13	28	14	52	52-14=38
17666	Sumanta Debbarma	42.75	28	14	52	52-14=38
3350	Namita Tripura	41.50	28	14	51	51-14=37
3427	Sadhan Chakma	40.00	28	14	51	51-14=37
3516	Rajat Debbarma	41.00	28	14	51	51-14=37
3728	Ratna Debbarma	43.89	28	14	51	51-14=37

3985	Samir Debbarma	40.13	28	14	51	51-14=37
4202	Kamal Kanti Chakma	40.00	28	14	51	51-14=37
4624	Rangita Debbarma	42.63	28	14	51	51-14=37
4910	Pankaj Debbarma	0.25	28	14	51	51-14=37
5882	Samir Debbarma	44.00	28	14	51	51-14=37
6005	Rubash Debbarma	44.13	28	14	51	51-14=37
6358	Basanta Jamatia	43.00	28	14	51	51-14=37
6602	Swadesh Debbarma	40.88	28	14	51	51-14=37
6813	Premananda Tripura	43.13	28	14	51	51-14=37
7069	Badal Tripura	40.00	28	14	51	51-14=37
7390	Pramila Reang	44.38	28	14	51	51-14=37
7671	Sujit Reang	41.00	28	14	51	51-14=37
8684	Haradhan Tripura	40.00	28	14	51	51-14=37
9812	Saroj Kanti Chakma	40.38	28	14	51	51-14=37
12074	Amit Debbarma	40.00	28	14	51	51-14=37
12178	Jiban Debbarma	41.50	28	14	51	51-14=37
12426	Suman Debbarma	44.25	28	14	51	51-14=37
13622	Rajkumar Tripura	42.63	28	14	51	51-14=37
14562	Amita Murasingh	41.67	28	14	51	51-14=37

[9] In response to this allegation, which is the centre stage of the controversy, the principal respondents i.e. the

official respondents [the respondents No.1 & 2] have submitted that the candidates have been selected as per the general employment guidelines of the State Government and all the candidates who have been selected in the post of RPM have been selected as per the guidelines dated 12.01.2015. They have categorically stated in their reply as follows:

"That, with regards Para 14 of the petitioner I submit that contention of the petitioner is not at a fact. As per Recruitment Rules to the Post of Rural Programme Manager, the minimum requisite educational qualification as Graduate from any recognized University. The candidates who appeared for the Interview and having Honours degree in Graduation were given 28 marks in general.

Because, as per Mark sheet of the Tripura University emanating from its guideline, the candidates who get 40% to below 60% are considered as Second Class Honours (2H), whereas the candidates of Pass Course who secured 45% to below 60% are considered to be Second Division in Pass Course (2P). Out of those candidates, some candidates were also selected for the post of Rural Programme Manager (RPM). Therefore, Interview Board has maintained uniformity for providing marks on academic criteria granting 28 marks for Honours Graduate having 2nd Class who were selected in the absence of specific marks criteria for Honours Graduate. It is however stated that merits of Honours and Pass Course are not same. However, uniformity is maintained while evaluating candidates for the post of Rural Programme Manager (Group-C)."

[10] According to the official respondents, the candidates have been selected in the different categories, in terms of the marks they scored in the walk-in interview and there had been no unfairness in selection of the candidates. For illustration, in their reply filed in W.P.(C) No.1392 of 2017, it has been shown that the last selected candidate for the post of RPM in the

category of SC got 51 whereas the petitioner in W.P.(C) No.1392 of 2017 who belongs to SC category scored 41. When a uniform mode was observed and on the basis of such fair and transparent mode, the selection has been made. Such selection cannot be treated as unfair or as hit by Article 14 of the Constitution of India.

[11] The non-officials respondents have also filed the reply and they have strongly raised the question of maintainability of the writ petition as the writ petition has been filed by unsuccessful candidates who sat by the fence till the outcome of the selection process was published and only after knowing that they did not succeed in the process, the petitioners had turned around. Hence, the writ petition is barred by estoppel by conduct. It has been also raised that the legality of the said selection process has not been challenged. On the contrary, a mandamus has been sought on the official respondents to select the petitioners after setting aside the appointments of the non-official respondents who were given 28 marks instead of 14 marks. Further, it has been urged that the other candidates who got selected, barring the non-official respondents, have not been made party and as such, for non-

joinder of necessary parties, again the writ petition is not maintainable. The non-official respondents have asserted in their reply that the bare minimum qualification, as would be evident from the notification dated 22.07.2015, is Graduation. Thereafter, they have asserted as follows in the reply filed in W.P.(C) No.1392 of 2017:

"1.7. hence, it can be safely concluded that in case, where large number of candidates having the basic requisite qualification of Graduation, participate in the selection process, for appointment thereof, to the post of RPM, then in such circumstances, the selection committee would be well advised to evolve a procedure, thereby giving weightage to those candidates/aspirants having higher educational qualification (e.g.) Honours/Master Degree, without disturbing the allocation of marks made for the candidates having the bare minimum qualification."

[12] The reference has been made to the mode for Category-2 selection of candidates for Group-C posts other than persons with disabilities as reflected in the guidelines [the memorandum dated 12.01.2015]. In tune with the official respondents, the non-official respondents have robustly stated that there had been no breach of guidelines in the selection as carried out by the official respondents. The non-official respondents have stated that by giving the weightage to the higher educational qualification, vis-à-vis the bare minimum qualification, the selection committee did not contravene the fundamental guidelines as laid by the Government. The

Selection Committee, while making the selection had prepared a tabulation sheet and from a reading thereof it would be evidently clear that the Selection Committee had awarded 14 marks to those candidates who secured 30% to less than 45% marks in the bare minimum qualification [Graduation without any Honours/Master Degree], 28 marks to those candidates who possessed 45% to less than 60% marks in the bare minimum qualification [Graduation without any Honours/Master Degree], 40 marks to those candidates who possessed 60% or above marks in the bare minimum qualification [Graduation without any honours/Master Degree] and 28 marks to those candidates who possessed 40% to less than 45% marks in the bare minimum qualification but with higher qualification [Honours and Master Degree].

[13] The non-official respondents have also prepared their own tabulation sheet which is Annexure-1 to their reply filed in W.P.(C) No.1392 of 2017 on 28.01.2018. In crux, the selection committee had allocated the marks in the following manner:

(i) 30% to below 45% marks obtained in Graduation (without any Hons./Master Degree) = 14 Marks

(ii) 45% to below 60% marks obtained in Graduation (without any Hons./Master Degree) = 28 Marks

(iii) 60% or above marks obtained in Graduation (irrespective of any Hons./Master Degree) = 40 Marks

**(iv) Above 40% to below 45% marks obtained in Graduation
(with further Hons./Master Degree) = 28 Marks**

It is thus apparent that by awarding 28 marks to those candidates, having above 40% to below 45% marks in the Graduation, and further having either the Honours Degree or the Master's Degree, the Selection Committee had accorded a weightage to such candidates, having higher educational qualification. It is most humbly and respectfully submitted that grant of such weightage to those candidates, having higher educational qualification (Honours/Master's), than the candidates, having the bare minimum educational qualification (Graduation), cannot be faulted with.

[14] According to the non-official respondents, 19718 candidates had participated in the selection process with minimum eligibility. When such large number of candidates have the eligibility to participate in the selection process, the selection committee is enjoined with inherent right and authority to evolve a procedure to grant weightage to those candidates having higher qualification unless it is shown that such right has been exercised arbitrarily, unfairly and whimsically, this court should be loath in exercising its power of judicial review in such administrative action. According to the non-official respondents, the Selection Committee by applying the devised parameters did not commit any error, to say least of illegality by granting 28 marks to those candidates possessing higher qualification [Honours/master Degree] as stated. That apart, a plea of laches in filing the writ petitions

has been raised. The non-official respondents have succinctly contended that the selection committee had fixed uniform parameter and the same has been applied uniformly to all the candidates. Unless it is shown that the said standard as adopted by the Selection Committee is arbitrary or discriminatory, the challenge of the writ petitioners shall invariably fail. In the process a select list of 600 candidates have been prepared and only against a few candidates, the allegations are made. There is no general challenge against the selection process.

[15] By filing the rejoinder, the petitioners have reiterated their plea that there had been substantial deviation from the guidelines for selection [Category-2]. The petitioners have denied that the Selection Committee is enjoined with inherent right and authority to evolve a procedure to grant weightage to the candidates for their having higher qualification. According to the writ petitioner, it is a clear manipulation of the process and as such, the entire selection procedure is liable to be interfered with and quashed.

[16] It would be pertinent to mention that in the order dated 24.06.2019, the following was recorded:

"Taking cue from the submission of the learned counsel appearing for the petitioners Mr. Nitai Choudhury, learned GA appearing for State-respondents submitted that during scrutiny of the records he found serious irregularities were committed in the process of selection of the private-respondents. Extra marks were given to those candidates who were appointed and the authorities concerned were deviated from the terms and conditions laid down in the advertisement."

Strangely enough when the said order was passed, Mr. Choudhury, learned GA did not make any submission identifying the terms and conditions laid down in the advertisement [the notice] were violated at the time of selection of the non-official respondents.

[17] Later on, in the order dated 13.11.2019, Mr. D. Bhattacharjee, learned GA had submitted that he needs instruction whether that statement as reproduced above was made under instruction or not. The official respondents were asked to file an additional affidavit in this regard. The records were produced but no affidavit was filed and as a result of which, a specific order was passed on 21.11.2019. An affidavit had been filed on 25.11.2019 in pursuance to the said order dated 21.11.2019 affirmed by Ms. Saumya Gupta, Secretary to the Rural Department/Panchayet Department. In the said affidavit, it has been categorically stated as under:

"I have seen the order dated 13.11.2019 and order dated 19.11.2019. I say that the submissions advanced by Mr. Nitai

Choudhury, the then Ld. Government Advocate on 24.06.2019 were not under instruction of Panchayet Department, Government of Tripura."

Thus, the initial claim made by the writ petitioners that the said statement is enough to cancel the selection for appointment for the post of RPM is debased completely. It is thought apposite that a short note against each of the writ petition be placed to appreciate the rival contentions.

W.P.(C) No.1392 of 2017

[Sri Sahadeb Das vs. State of Tripura & 5 Ors.]

[18] Mr. D. Datta, learned counsel has appeared for the petitioner and Mr. D. Bhattacharjee, learned G.A. has appeared for the official respondents. The writ petitioner belonging to SC Category applied for appointment to the post of RPM in response to the employment notice dated 04.10.2015. There were 658 vacancies of RPM and break up of those vacancies as category wise has been shown in the said employment notice which is reproduced above. According to the petitioner, additional 14 marks have been added to the non-official respondents. The petitioner has passed Madhyamik Examination in the year 2003 with 62.75% [First Division] from TBSE. He passed BPP in the year 2009. Then he completed B.Com in the year 2014 with 57.25% [Second Division]. The petitioner has

also passed Post Graduate Diploma in International Business Organization. He has the educational qualification of Diploma in HIV and Family Education and certificate course of Homeopathic Dispensing. The petitioner has completed 'O' Level course in computer operation and applications and Diploma in PC Hardware and Networking. Those qualifications are not in dispute and the petitioner has not raised any grievance against the selection except of adding additional 14 marks in the column for the Graduation which according to him is a serious violation of the procedure laid down in the memorandum dated 12.01.2015.

W.P.(C) No.1493 of 2017

[Sri Rakesh Bhadra vs. State of Tripura & Ors.]

[19] Mr. D. Datta, learned counsel has appeared for the petitioners and Mr. D. Bhattacharjee, learned G.A. has appeared for the official respondents. In response to the said employment notice dated 04.10.2015, the petitioner had applied for the post of RPM but he was not selected. He has raised the similar objection as raised by the writ petitioner in W.P.(C) No.1392 of 2017 and he has relied on the documents and the grounds as raised in that writ petition. According to him, the selected UR

candidates were not selected in terms of the memorandum dated 12.01.2015, but he has impleaded only two selected persons namely, Sayan Saha and Ujjal Dhar as the respondents No. 3 & 4. The petitioner belongs to the UR category. Even though the petitioner has stated that 27 candidates who had been selected and appointed obtained less mark than the petitioner as per the result sheet supplied by the authority. He has stated further that he scored minimum 51 marks. Even if it is assumed to be correct, according to the revelation made under Right to Information Act, the petitioner cannot get berth in the merit list. The petitioner passed the Madhyamik Examination in the year 2005 securing 55.55% [Second Division] from TBSE. After that he has completed H.S.[+2 Stage] Examination in the year 2007 in third division and thereafter, he obtained degree of B.Sc. in the year 2012 with 43.51% marks. The petitioner has also completed a computer course from a recognized institution by the Government of India.

In the reply, the official respondents denied all the allegations including the violation of the guidelines and allegation of colourable exercise. The official respondents have given the same explanation as recorded above in all the writ

petitions to demonstrate how they have given 28 and 40 marks against the graduate degree and others.

W.P.(C) No.1494 of 2017

[Sri Nitai Debnath vs. State of Tripura & Ors.]

[20] Mr. D. Datta, learned counsel has appeared for the petitioner and Mr. A. Nandi, learned counsel has appeared for the official respondents. In response to the said employment notice dated 04.10.2015, the petitioner applied for the post of RPM but he was not selected. He has raised the similar objections as raised by the writ petitioner in W.P.(C) No.1392 of 2017 and he has relied on the documents and the grounds as raised in that writ petition. According to him, selection and appointment of 35 persons of the UR category, out of 342 posts, is absolutely illegal inasmuch as the marks awarded against their Graduation are not in terms of the guidelines dated 12.01.2015. But he has not elaborated how the guidelines have been violated, but as he has resorted to the similar documents and the grounds of the writ petition being W.P.(C) No.1392 of 2017, the official respondents have also made the similar reply. Though the selection of 27 candidates has been challenged, but the petitioner has impleaded only Sayan Saha and Ujjal Dhar, the respondents No.3 & 4. No

attempt has been made to even implead the other persons in the representative capacity following the procedure as laid down under Order I Rule 8 of the CPC. The petitioner belongs to the UR category. Even though the petitioner has stated that the candidates who have been selected got lesser marks than him but he has not shown from the records how such statement can be sustained. The petitioner passed the Madhyamik Examination in the year 2005 securing 62% [First Division] from TBSE. After that, he had completed H.S.[+2 Stage] Examination in the year 2007 in second division and thereafter, he obtained degree of B.Sc. in the year 2010 with 42% marks. The petitioner has asserted that he has so many certificates of sports and other curriculum. Those achievements can be considered under co-curricular parameters. He has obtained the certificate under the computer course from an institution recognized by the Government of India.

In the reply, the official respondents denied all the allegations including the violation of the guidelines and allegation of colourable exercise. The official respondents have given the same explanation as recorded above, in all the writ petitions how they have given 28 and 40 marks for the graduates and other with relevant qualification.

W.P.(C) No.1516 of 2017

[Sri Rakesh Dey & 3 Ors. vs. State of Tripura & Ors.]

[21] Mr. D. Sarkar, learned counsel has appeared for the petitioners and Mr. G.S. Bhattacharjee, learned counsel has appeared for the official respondents. This is a combined writ petition by 4 [four] petitioners, namely Rakesh Dey, Sujit Roy, Malay Bhowmik and Kaushik Malakar. For sake of brevity their educational qualification and experience are shown in a tabular form, as compiled by Mr. Sarkar, learned counsel appearing for the petitioners:

Name of the petitioner	Educational Qualification and year of passing				
	Madhyamik	Secondary HS +2	Graduation	Master Degree	Experience
Rakesh Dey	2000 with 47.75%	2003 with 41%	2006 in B.Sc. Bio with 43.5%	2008 with 57.6% in Master of Rural Management & Development [MRMD]	Working as associate coordinator under Tripura Bamboo Mission. Work as community organizer under Tripura JICA project. Working as Sub-Divisional Programme Manager under NHM
Sujit Roy	2001 with 49%	2006 with 41%	2009, B.SC (Bio) with 42.55%	NA	Six years experience in Rural Development Activities as Community Organizer & Livelihood Development in Department of Forest. NCC 'B' certificate Holder. Diploma in Computer. National-e governance plan as a field supervisor, 2 years.
Malay Bhowmik	1999 with 60.8% marks.	2001 with 60.09%	2005 with 40.2% marks Graduate in Arts	2007 with 66.3% In Master of Rural Management & Development [MRMD]	9 years experience Rural Development Activities as Livelihood Coordinator and Community Mobilizer under Department of Forest. Computer application and programming (DCA) Participation in different Training programme on Rural Development field as master trainer. National Service Scheme.

Koushik Malakar	2006 with 51.80%	2008 with 49.8%	BBA, 2011 with 77.80% CGPA 7.78%	2015 with 69.38% in Master of Rural Management & Development [MRMD] Gold Medalist	TERI-NE The Energy and Resources Institute North East as Community Development. 8 month experience in TRLM under RD Department. 4 year experience in National Health Mission. DCAP i.e. computer experience. Certificate in Human Rights Directorate of Distance Education, Tripura University
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In response to the said employment notice dated 04.10.2015, the petitioners applied for the post of RPM but they were not selected. They raised almost similar objection as raised by the writ petitioner in W.P.(C) No.1392 of 2017 and they have relied on the documents and the grounds as raised in that writ petition at the time of hearing. But while the writ petition was filed, they could not make out any acceptable reason why those appointments were challenged and on what ground such challenge is structured. Their only plea was that they were not supplied with any information under Right to Information Act. But it is apparent that there had been violation of the guidelines as laid down by the memorandum dated 12.01.2015. The petitioners No.1,2 & 3 belong to the UR category whereas the petitioner No.4 belongs to the SC category. They have urged this court to cancel the entire

selection process but they have not impleaded any of the selected candidates as the respondents.

W.P.(C) No.1634 of 2017

[Sri Kabi Ranjan Das vs. State of Tripura & Ors.]

[22] Mr. R. Datta, learned counsel has appeared for the petitioner and Mr. D. Bhattacharjee, learned GA has appeared for the official respondents, whereas Mr. Kohinoor N. Bhattacharjee and Mr. Samrat Ghosh have appeared for the respondent No.19, Mr. Somik Deb, learned counsel has appeared for the respondents No.7,8,9,12,13,14,16,20,22, 23, 24,25,26,27,29,30 & 32, Mr. S.M. Chakraborty, learned senior counsel assisted by Ms. P. Sen, learned counsel have appeared for the respondents No.10,11,15,18,28 & 31 and Mr. T.D. Majumder, learned counsel has appeared for the respondent No.17.

By this petition, the selection and appointment of the respondents No.7 to 32 to the post of RPM have been challenged with consequential prayer of issuing mandamus directing the respondents to consider the petitioners for selection and appointment to the said post pursuing the selection process which was held on the basis of the

employment notice dated 04.10.2015. There is no dispute that the petitioners had appeared in the walk-in interview on 31.12.2015, but when the outcome of that selection process was published, he found himself not selected. He has relied on the documents collected by one Tutan Saha, the writ petitioner in W.P.(C) No.1635 of 2017. According to the tabulation sheet, the petitioner got total marks 49 in the said interview. The petitioner has admitted in Para-10 of the writ petition that the private respondents No.7 to 38 purportedly obtained 62,62,61,61,60,60,59,59,59,59,59,59,59,58,58,58,58,57,57,57,56,56,55,55 and 55 marks respectively and all of them had been awarded 28 marks for educational qualification even though they had obtained marks between 30% to 40% in the qualifying examination, but they were only entitled to be awarded 14 marks as per the guidelines. Thus, the petitioner's selection and appointment was irregular. If they are awarded marks in terms of the guidelines, all the non-official respondents would have secured marks less than what the petitioner has obtained. It has been alleged that the petitioner has been given '0' marks in respect of intelligence, sense of social commitment and on co-curricular field.

The official respondents by filing the reply have denied the said allegations and stated that the petitioner is estopped by his conduct for challenging the selection as he has participated in the selection process having aware how the selection process would be carried out. The official respondents have given the similar reply as given in the other writ petitions with respect to why 28 marks have been given to some candidates. The respondents have stated as per the Tripura University guidelines who got 40% to below 60% are considered as 2nd Class Hons.[2H] whereas the candidates of pass course who get 45% to below 60% are considered as Second Division pass course [2P]. Such parameter was applied uniformly in respect of the candidates who appeared before the Interview Board.

The non-official respondents No.10,11,15,18,28 and 31 filed the separate reply and they raised the question of maintainability of the writ petition as according to them, the writ petition is seriously hit by principles of estoppel by conduct. The non-official respondent No.13 also filed the reply and stated that on the basis of vague allegations, the selection process, so transparently carried out, cannot be challenged. When the entire process is challenged, all the candidates who were

selected are essentially to be made party, else the writ petition cannot be held maintainable for the reliefs as sought. The non-official respondents No.7,8,9,12,14,16,20,22,23,24,25, 26,27, 29, 30 and 32 filed the reply separately and they have raised the issue of non-joinder of the necessary parties like the other non-official respondents and stated that the selection process has been carried out strictly in terms of the recruitment rules and the guidelines. They have also stated that for selecting a limited number of candidates for appointment to the post of RPM, the interview board is wielded with certain powers to evolve a procedure to select the best candidates. There cannot be any rigid procedure for the said purpose. But the process must be transparent, uniform and reasonable. The method that has been followed is quite reasonable and those respondents did not find any infirmity in the method following which the selection committee had awarded 14 marks to those candidates who possessed 30% to less than 45% marks in the bare minimum qualification [Graduation without any Honours/Masters Degree], 28 marks to those candidates who possessed 45% to less than 65% marks in the bare minimum qualification, 40 marks to those candidates, who possessed 60% or above marks in the bare minimum qualification

[Graduation without any Honours/Masters Degree] and 28 marks to those candidates, who possessed 40% to less than 45% marks in the bare minimum qualification [Graduation] but possessed higher qualification [Honours/Masters Degree]. According to those respondents, 19,781 candidates participated in the selection process and out of them, 618 persons have been selected in various categories. Therefore, out of the broader guidelines some final tools are to be applied to segregate the best, out of the eligible candidates. Those non-official respondents have also raised the objection on the ground of laches.

The respondents No.17 has also filed a separate reply and he has supported the method and stated that admittedly the petitioner is not Honours Graduate and he cannot be equated even by the same scale under the guidelines.

W.P.(C) No.1635 of 2017

[Sri Tutan Saha vs. State of Tripura & Ors.]

[23] Mr. R. Datta, learned counsel has appeared for the petitioner and Mr. D. Bhattacharjee, learned GA has appeared for the official respondents and Mr. P.K. Biswas, learned senior counsel along with Mr. P. Majumder, learned counsel has

appeared for the non-official respondent No.7, Mr. Kohinnor N. Bhattacharjee and Mr. Samrat Ghosh, learned counsel have appeared for the non-official respondent No.21 and Mr. S.M. Chakraborty, learned senior counsel along with Mr. Suman Bhattacharjee, learned counsel have appeared for the non-official respondents No.12,13,15,17,29,30 and 33 and Mr. Somik Deb, learned counsel has appeared for the non-official respondent No.8,9,10,11,14,16,18,22,24,25,26,27,28,31,32 and 34.

There is no dispute that the petitioner appeared in the walk-in interview in terms of the said employment notice dated 04.10.2015 but he could not succeed. The petitioner has not made any complaint in respect of violation of the procedure as laid down in the recruitment rules. According to the petitioner, the non-official respondents were awarded marks in violation of the guidelines. If the guidelines were appropriately followed, the non-official respondents would get less than 52 marks, the marks which the petitioner has obtained in the selection process. He had been given 14 marks whereas the non-official respondents were given 28 marks on account of educational qualification. According to the petitioner, what has been provided in the guidelines dated 12.01.2015 is that a

candidate who obtained 30% to 40% marks in the qualifying examination, would get 40 marks in the interview. Those having 45%-59% would get 28 marks and a candidate who obtained 60% and above would get 40 marks. The Selection Committee has awarded the marks in favour of the non-official respondents in breach of the said guidelines. Thus, the petitioner has urged for quashing the entire selection process and thus the selection of the non-official respondents No.7 to 34 in the post of RPM, and further urged for consideration of his selection in the said post. There is no dispute that the petitioner has secured 63.89% marks in the B.Sc. He has passed the Master Degree in Rural Management and Development from Tripura University in the year 2014 securing 51.75%.

The official-respondents No.1,2 & 3 have filed the similar reply and stated how the marks were given, as already referred while considering the reply in the other writ petitions. The non-official respondents No.12, 13,15,17,20,30 and 33 by filing a separate reply have questioned the maintainability on the ground of estoppel. They have supported the reply of the official respondents. The non-official respondents No.8,9,10,11,14,16, 18, 22, 24,25,26,27,28,31,32 and 34 by filing a separate reply have raised the question of

maintainability on the ground of estoppel by conduct and on non-joinder of the necessary parties. Those respondents have categorically stated that there is no infirmity in granting weightage to those candidates having higher qualification. Unless it is shown that such weightage has been granted arbitrarily and unreasonably causing discrimination. Even those respondents have raised the objection relating to delay and laches.

The respondent No.21 and the respondent No.7 filed their reply separately stating that there is no infirmity in the process as they had better results in the Graduation. They had been given the weightage and use of the tool of granting weightage does not suffer from any discrimination. The writ petition is bereft of merit.

W.P.(C) No.1638 of 2017

[Sri Abhijit Datta vs. State of Tripura & Ors.]

[24] Mr. D. Datta, learned counsel has appeared for the petitioner and Mr. A. Nandi, learned counsel has appeared for the official respondents.

By means of this petition, the petitioner has challenged the selection and appointment of 35 UR candidates

who were awarded 28 marks instead of 14 marks against the minimum qualification in violation of the guidelines. It has been urged for direction on the official respondents to consider the petitioner for appointment to the post of RPM for which he participated in the walk-in interview. The petitioner has stated in Para-20 of the writ petition that he would rely the documents of the leading writ petition being W.P.(C) No.1392 of 2017 and the similar grounds as raised in the leading writ petition. The petitioner has stated that he passed the Madhyamik Examination in the year 2006 from TBSE and thereafter, he passed the H.S.[+2stage] Examination in the year 2008. The petitioner has passed Bachelor of Computer Applications in the year 2013-14 with 50% marks from the ICFAI University. He applied for the post of RPM in response to the employment notice dated 04.10.2015, but he was not selected as a wrong procedure dehors the guidelines had been applied, and the said UR candidates were allowed to steal a march over the petitioner as they were awarded 28 marks in that mode. It is to be noted here that the selection and appointment of 35 successful candidates have not been challenged but only two persons out of them, namely Sayan Saha and Ujjal Dhar have been impleaded as the respondents No.3 & 4. The official

respondents by filing the reply have raised the similar stand as raised in W.P.(C) No.1392 of 2017.

W.P.(C) No.1746 of 2017

[Sri Dhananjoy Das vs. State of Tripura & Ors.]

[25] Mr. S. Mahajan, learned counsel has appeared for the petitioner and Mr. D. Bhattacharjee, learned GA has appeared for the official respondents whereas Mr. S.M. Chakraborty, learned senior counsel along with Ms. B. Chakraborty have appeared for the non-official respondents No.7,10,19 and 22, Mr. Somik Deb, learned counsel has appeared for the non-official respondents No.8,11,13,14,15,16, 23,24,26,28,30,31,32,33,34,35,36,37,38,39,41,42 and 44, Mr. Datta, learned counsel has appeared for the non-official respondents No.4 and 5, Ms. S. Chakraborty, learned counsel has appeared for the non-official respondent No.27.

By means of this petition, the petitioner has challenged the selection and appointment of 41 UR candidates in the post of RPM. The petitioner has also claimed strict scrutiny of the entire recruitment process and also to issue a mandamus for conducting a fresh selection process by cancelling the one which has been challenged in this writ petition. There is no dispute that the petitioner participated in

the walk-in interview in pursuance to the said employment notice. The petitioner has however not disclosed in the writ petition about his qualification but questioned the evaluation of those 41 UR candidates who are impleaded as the respondents No.4 to 44. In the writ petition, there is no reference to the marks obtained by those non-official respondents or the petitioner. Only allegation that has been made in this writ petition against the selection process is that after evaluating the performance of the candidates in the UR category, the marks were awarded by a method which is not transparent and fair. Only in this writ petition, the guidelines contained in the memorandum dated 12.01.2015 have been challenged but in the whole writ petition no ground has been laid to support that challenge. Why the said guidelines be declared unconstitutional? Only one statement has been made that for waiting no candidate should be granted any marks and such guidelines is violative of Article 14 and warrants to be quashed.

In the reply filed by the official respondents, it has been asserted that a transparent method has been followed and the writ petition is entirely speculative one. But there is no reply in respect of marks for waiting as questioned by the writ

petitioner. The official respondents have also raised objection based on estoppel.

The non-official respondents No.7,10,19 and 22 have filed separate reply and stated that the weightage for one mark for each year for the waiting cannot be termed unconstitutional inasmuch as the older candidates are destined to get out of zone of consideration faster.

The non-official respondents No.8,11,13,14,15,16, 23,24,26,28,30,31,32,33,34,35,36,37,38,39,41,42 and 44 by filing a separate reply have raised the question of maintainability of the writ petition on the ground of estoppel by conduct, as the petitioner did not challenge the guidelines before appearing in the walk-in interview though it was in the public domain. The employment notice was published much before the said interview, but the petitioner has challenged the same only when he found himself unsuccessful. To question the maintainability, the ground of non-impleadment of the necessary parties has been succinctly raised. Even it has been stated by those respondents providing weightage to the candidates having higher educational qualification uniformly cannot be questioned as it falls within the devised policy of the

Selection Committee. To devise such policy is available to the Selection Committee to determine suitability.

The non-official respondents No.5 & 27 have also defended the selection by stating that there is no infirmity and the writ petition is nothing short of a frivolous litigation, bereft of materials to challenge the outcome of the selection process. If the allegations are brought against the Interview Board, its members are to be essentially impleaded as the party, so that they can purge themselves out of stigma of mala fide. But in this case, they have not been made party and as such, those allegations are to be discarded without consideration on merit at all.

The non-official respondent No.5 has filed one additional affidavit for elaborating his performance in the public examination. Since she got 47.1% marks in the Graduation she was awarded 28 marks as had been awarded to similarly circumstanced candidates. She has also passed the special Honours and MA in the same subject.

The non-official respondent No.11 has filed a short affidavit supporting the selection process and stated that he acquired 61% marks in the Graduation and some incomplete information had been disclosed in respect of his performance.

W.P.(C) No.11 of 2018

[Sri Abhijit Ghosh vs. State of Tripura & Ors.]

[26] Mr. A. Sengupta, learned counsel has appeared for the petitioner and Mr. D. Bhattacharjee, learned G.A. has appeared for the official respondents [the respondents No.1,2 & 3], Mr. S.M. Chakraborty, learned senior counsel along with Ms. B. Chakraborty, learned counsel have appeared for the non-official respondent No.11 and Mr. Somik Deb, learned counsel has appeared for the non-official respondents No.9,10 and 12. The remaining respondents are not represented despite due notice from this court.

The petitioner applied for appointment to the post of RPM in response to the employment notice dated 04.10.2015. The petitioner has raised serious objection that the way the walk-in-interview has been carried out by the respondents No.4,5 and 6 is seriously questionable. According to the petitioner, the interview continued after the scheduled time and it was impossible to interview 541 to 1096 candidates in a day and award them performance based marks. That apart, the petitioner has submitted that the marks that have been allotted to the non-official respondents No.9,10,11 and 12 was an aberration of the guidelines dated 12.01.2015 [Annexure-2 to

this writ petition] in holding such selection process. That apart, according to the petitioner, the respondent No.13 who has been selected and appointed was over-aged. The petitioner has given the details of vacancies as noted. The respondent No.4 was the Chairperson of the Interview Board but the Interview Board/Selection Committee did not follow the guidelines dated 12.01.2015 for carrying out such interview. In Para-10 of the petition, the petitioner has asserted that the offer of appointment was issued to the selected candidates on 16.01.2017 and their place of posting was intimated to them on 04.02.2017. The petitioner has given the list of the selected candidates [Annexure-2 to this writ petition] with the marks they secured which according to him, he has gathered the said information by way of disclosure under the RTI Act. The petitioner has stated that his performance and qualification have been assessed in the following manner:

1 mark each year since passing the minimum qualification. Maximum marks 20.	Educational Qualification on (other than PH) [30-44%=14] [45-59% = 28] 60 & above=40	General Knowledge				Co-curricular field (Culture & sport Etc) Maximum Marks 10	Grand Total
		Knowledge on subject maximum marks 7	Intelligence, Maximum Marks 8	Aptitude & interest on the field Maximum 7	Sense on social commitment Maximum Marks 8		
15	28	1	1	0	1	0	46

The petitioner has categorically alleged that the non-official respondents No.9,10,11 & 12 whose names appeared in Sl. No.333,336,340,341 of the select list would have scored less than 45 marks in Graduation. But the Interview Board has given them 28 marks deviating from the guidelines dated 12.01.2015. According to the guidelines, those non-official respondents would get 14 marks and thus, their total marks would be reduced to 41 from 55. In respect of the non-official respondent No.13, the petitioner has submitted that the said non-official respondent has crossed 40 years on the date of advertisement i.e. on 04.10.2015. But there is no further allegation against the Interview Board.

In reply, the official respondents have stated that the guidelines for awarding marks are for general guidance of the Interview Board/Selection Committee. The Interview Board has in order to select the best candidate had used a finer tool and they have separated the Honours Graduates and the Pass Graduates by applying different scale. Those respondents have stated that the Chairperson did have 'no axe to grind'. It was open to the Interview Board/Selection Committee to formulate its own procedure in the matter of allotment of marks of interview. The Interview Board/Selection Committee has given

the candidates 28 marks who were having Honours Degree in Graduation securing 40% to below 60% [2nd Class Honours-2H]. The candidates who got 40% to below 60% in the pass course were considered as second division in the pass course [2P]. Those respondents have admitted their fault in selecting the non-official respondent No.13, namely Soma Banik by stating that on scrutiny of the records, it reveals to them that she was 40 years 7 months 21 days as on 03.10.2015, the date of advertisement for the post of RPM and she was not eligible for the post. But erroneously her name came to the select list. The official respondents have taken action to terminate her and for that purpose, a show cause notice has been issued on 12.01.2018. According to those respondents, the procedure followed by the Interview Boards/Selection Committees is transparent, fair and uniform and as such, all the allegations raised by the petitioner are wholly unacceptable. Since the petitioner could not get the mark higher than the selected candidate who is in the bottom of the list for getting selection which was 51 and for that reason alone, her name was not accommodated in the select panel.

The non-official respondents No.9,10 and 12 by filing a separate reply have raised the question of maintainability as

according to them, the writ petition is hit by estoppel by conduct inasmuch as the petitioner having knowledge of the mode of selection did participate in the process of interview and when it was found that she was unsuccessful, she turned around to challenge the selection process. That apart, the writ petition is bad for non-joinder of the necessary parties as the selected candidates who would be affected if the writ petition is allowed have not been made parties, though they are the necessary parties and in their absence, no order can be passed. It has been further asserted that there is no irrationality in giving weightage to the Honours Graduate vis-à-vis the ordinary graduate and such principle of weightage is based on the accepted norms. Thus, giving 28 marks against the qualifications of those non-official respondents cannot be questioned by the petitioner as the petitioner did not belong to that category of Honours Graduate or the petitioner was not having Master Degree. The parameters as devised cannot be faulted with. Those respondents have also raised the objection as to the delay and laches in filing the writ petition.

The non-official respondent No.11 has also filed the reply and denied that by awarding him 28 marks against the

qualification being Honours Graduate, the Interview Board/Selection Committee has committed any irregularity.

The petitioner filed a rejoinder and pointed out that one Honours Graduate namely, Mrinmoy Mitra was granted 14 marks under the educational qualification but no document of that candidate to have Honours Degree has been produced with the reply and as such, it is highly difficult to verify the said averment.

W.P.(C) No.88 of 2018

[Sri Dipjyoti Das vs. State of Tripura & Ors.]

[27] Mr. A. Bhowmik, learned counsel has appeared for the petitioner and Mr. D. Bhattacharjee, learned G.A. has appeared for the official respondents [the respondents No.1,2 & 3], Mr. S.M. Chakraborty, learned senior counsel along with Ms. B. Chakraborty, learned counsel have appeared for the non-official respondents No.7,8,9,14,17,18,19,20,24 & 27 and Mr. Somik Deb, learned counsel has appeared for the non-official respondents No.4,5,6,8,10,11,12,16,21,22,23,25,28,29 & 30. The remaining respondents are not represented despite due notice from this court.

It is to be noted here that the respondent No.8 engaged both Ms. B. Chakraborty, learned counsel and others and also Mr. Somik Deb, learned counsel and others and thus, he was party to two replies filed by the non-official

respondents. It is the duty of the lawyer to check out such fact and to place it before the court so that the appropriate observations can be made.

The petitioner has filed the writ petition challenging the selection of the non-official respondents in the post of RPM on the ground that his exclusion from the select list was on the basis of an arbitrary act. According to him, he secured total 39 marks but he was not given any marks for each year of waiting for employment. However, even though the petitioner has passed the degree of Bachelor of Technology in Civil Engineering from ICFAI University in the year 2015, but this court has failed to understand that when the interview was taken in the year 2015 itself how the petitioner can be granted any mark for waiting inasmuch as 1 [one] mark was to be given for each year of waiting. The petitioner has admitted that he has been provided 28 marks but no marks for the co-curricular activities has been awarded, even though he had submitted the certificate of achievement in Long Jump and the certificate of practical training under the Public Works Department. The petitioner has submitted further that as he secured CGPA of 5.97, it would have been converted to 59.7% and it would have been further rounded off to 60% and thus, he ought to have been awarded 40 instated of 28. There is no substance in the

submission when the guidelines have clearly provided that those have secured 60% and above is to be awarded 40 marks. The practical training in Public Works Department cannot be treated as the co-curricular activities for any purpose but his participation in the Long Jump could have been recognized by the Interview Board. However, if the marks allotted for the co-curricular activities are added to the petitioner, his total mark will not cross the mark of the selected candidate who is in the bottom of the select panel. Thus, it would not change the position of the petitioner vis-à-vis the other selected candidates. The petitioner has himself admitted that for the SC category, the minimum marks was 51 for having been in the select panel as the lowest in the list of the selected persons had secured that marks. The petitioner has relied on that document of the writ petition being W.P.(C) No.1392 of 2017.

The official respondents have contested the allegation and stated that the petitioner could not get the benefit of 60% and above marks. That apart, the official respondents have admitted as follows:

"It is fact that his co-curricular activities marks was not allowed in favour of him due to inadvertently/ oversight. Sri Das participated in the long jump at college level and he was supposed to get 2[two] marks [1 each for event]. Sri Das obtained 39 marks in all levels except co-curricular activities.

If 2(two) marks have been given to him, then his total marks would stands to 41.”

Thereafter, the official respondents have submitted that even after adding the said additional mark, the petitioner would have lagging far behind the said minimum mark.

The non-official respondents No.7,8,9,14,17,18,19, 20,24 & 27 have filed separate reply and contended that awarding of 28 marks in their favour is nothing arbitrary or illegal as following a transparent and rational principle, the said marks had been given and as such, the petitioner cannot have any grievance for awarding of such marks.

The non-official respondents No.4,5,6,8,10,11,12,16, 21,22,23,25,28,29 & 30 have filed a separate reply and contended that the writ petition is hit by estoppel by conduct as after finding him unsuccessful on participating throughout the process, the petitioner turned around and questioned the entire selection process. That apart, if for one such ground the selection process is overturned, all the selected candidates might be affected by the decision of the writ petition but those have not been impleaded as the party and as such, the writ petition is hit by non-joinder of the necessary parties. That apart, they have adopted the statement of the official

respondents that there emerged no irrationality or elements of discrimination for awarding 28 marks for the persons who had the Honours/Master Degree vis-à-vis the person had ordinary graduation. The Selection Committee has devised the mechanism without affecting the guidelines and for purpose of selection of the best candidates. Thus, they contended that the claim of the petitioner is unsustainable and further stated that the writ petition is bad for laches and delay.

The petitioner had filed the rejoinder reiterating his claim and challenge that awarding of 28 marks to the so called Honours Graduate is contrary to the provisions of the guidelines and thus, the selection of the non-official respondents is grossly illegal and liable to be interfered with.

W.P.(C) No.98 of 2018

[Smt. Sukriti Biswas vs. State of Tripura & Ors.]

[28] Mr. Samarjit Bhattacharjee, learned counsel has appeared for the petitioner and Mr. H. Sarkar, learned counsel has appeared for the official respondents, Mr. S.M. Chakraborty, learned senior counsel along with Ms. B. Chakraborty, learned counsel have appeared for the non-official respondents No.8,9,10,15,18,20,21,22,26 & 29 and Mr. Somik Deb, learned

counsel has appeared for the non-official respondents No.5,6,7,9,11,12,13,17,19,23,24,25,27,30,31 & 32.

It is to be noted here that the respondent No.9 engaged both Ms. B. Chakraborty, learned counsel and others and also Mr. Somik Deb, learned counsel and others and thus, he was party to two replies filed by the non-official respondents. It is the duty of the lawyer to check out such fact and to place it before the court so that appropriate observations can be made.

The petitioner has challenged the selection of the non-official respondents on the ground that the non-official respondents who have been selected in pursuance to the employment notice dated 04.10.2015 in the post of RPM would have been awarded less marks by deducting 14 marks from the awarded marks of 28 in terms of the guidelines as notified by the memorandum dated 12.01.2015 [Annexure-6 to this writ petition]. From the disclosure made to one Sanjoy Biswas on 16.11.2007, the petitioner got to know how the marks were supposed to be awarded. The relevant part as referred by the petitioner has already been reproduced. From the disclosure made under the Right to Information Act, the petitioner got to know that she received 42 marks in total and she was also given 28 marks for her securing 50% in BA examination. But the petitioner was not awarded any mark for general knowledge

and co-curricular activities but the petitioner has failed to aver that whether she had produced any certificate of co-curricular activities or whether she had replied the question on general knowledge correctly or the test of aptitude. There is no specific averment and as such, in a proceeding under Article 226 of the Constitution of India, no further inquiry can be made on the basis of such vague statement. The petitioner has also contended that 14 marks be deducted from each of the non-official respondents inasmuch as they had secured 45% marks in the qualifying examination [in the graduation level]. In that event, even though the petitioner has secured 42 marks, she would have come in the select panel.

The official respondents have replied in the similar way as discussed above by filing 3[three] separate replies. For sake of brevity, those are not being referred but the official respondents have filed one communication dated 09.01.2018 from Tripura University, addressed to the Director of Panchayet showing how the degrees are awarded. The said communication was made in response to the query of the Director of Panchayet. The relevant part is extracted hereunder considering the relevance in respect of awarding 28 marks for the Honours Graduate.

Minimum percentage of marks

a. For 2 year degree course Part-I 2P 45% and above but below 60%

b. For 2 year degree course Part-I & Part-II-2H 45% and above but below 60%

c. For Three year Degree Course (TDC)-2P 45% and above but below 60%

d. For Three year Degree Course (TDC)-2H 40% and above but below 60%

e. For Three year Degree Course (1+1+1)-2P 45% and above but below 60%

f. For Three year Degree Course (1+1+1)-2H 45% and above but below 60%

g. For credit Based Six Semester Degree Programme-

CGPA from-to	Letter Grade	Classification of Final Result	
		General	Hons
8.00-10.00	O	First Division with Distinction	First Class with Distinction
7.00-7.99	A+	First Division	First Class
6.00-6.99	A	Higher Second Division	Higher Second Class
5.50-5.99	B+	Second Division	Second Class
5.00-5.49	B	Failed	Failed
4.00-4.99	C	Failed	Failed
	F(Fail)	Failed	Failed

Credit Grade Point (CGP) = Grade Point X Credit, (C X G_p)

Cumulative Grade Point Average (CGPA) = Sum Credit Grade Points of all courses of Six Semesters

Number of Total Credits of all Semesters

W.P.(C) No.238 of 2018

[Sri Saikat Saha vs. State of Tripura & Ors.]

[29] Mr. R.G. Chakraborty, learned counsel has appeared for the petitioner and Mr. D. Bhattacharjee, learned GA has appeared for the official respondents, Mr. S.M. Chakraborty, learned senior counsel along with Ms. B. Chakraborty, learned counsel have appeared for the non-official respondents No.7,10,19 & 22 and Mr. Somik Deb, learned counsel has

appeared for the non-official respondents No.8,12,14,15,16,17, 18,20,21 & 23, Ms. S. Chakraborty, learned counsel has appeared for the non-official respondent No.11.

The petitioner has challenged the selection of the non-official respondents No.7 to 23 in the post of RPM in terms of the employment notice dated 04.10.2015. The petitioner appeared before the Interview Board and he faced the interview but according to him, for the glaring aberration and discrimination committed by the Selection Committee, the petitioner was not selected but the non-official respondents who were supposed to get 14 marks against the minimum required qualification they have been given 28 marks meaning 14 marks more. If that 14 marks were not added with the non-official respondents, they would not have been selected. Many of those candidates have obtained marks between 30% to 40% and they were given 28 marks in place of 14 marks contrary to the said guidelines. The petitioner has admitted that he got 43% marks in the Graduation. According to him, he was entitled to 28 marks following the same scale as applied to the non-official respondents who have been selected in the process. Thus, he prayed for cancellation of selection of those respondents.

The non-official respondents No.7,10,19 & 22 by filing a separate reply have stated that those respondents are all Honours Graduates and on consideration of their marks in the Honours examination, they were awarded 28 marks. The petitioner is a pass Graduate and secured 43.44% marks in the B.Sc examination and as such, he was awarded 14 marks. There is no discrimination, unfairness or irrationality as alleged or at all.

The non-official respondents No.8,12,14,15,16,17, 18,20,21 & 23 have raised the preliminary objection as to the maintainability of the writ petition inasmuch as the petitioner having unsuccessful in the selection process in which he had participated with full knowledge of the mode of selection. Thus, the petitioner is estopped by conduct. That apart, if the analogy of the petitioner is assumed to be correct for a moment, then all the successful candidates would be affected by the outcome of the writ petition. Thus, the writ petition is bad for non-joinder of the necessary parties. Those respondents have defended the principle of weightage as devised the Selection Committee and have stated that such principle is not contrary to the guidelines as framed by the State Government. The Selection Committee has devised that principle for selecting the best candidates for

the said post. There is no allegation of mala fide or bias against the Selection Committee. That apart, the guidelines are for general guidance, it cannot curb the province as available to the Selection Committee in devising the intricate and balancing mode. These respondents have elaborately referred to the guidelines to emphasize how the weightage be given to the candidates having the Post Graduate degree. Finally, they have stated that no wrong has been committed by the selection committee. The averment of the petitioner that the respondents have secured 40% to below 45% marks in the Graduation examination is grossly untrue and for such deliberate false and misleading statement, the writ petition is liable to be dismissed inasmuch as the petitioner has not come with clean hands.

The official respondents have also categorically stated that by awarding the non-official respondents 28 marks, the Selection Committee did not do any wrong inasmuch the Department had collected the inputs from the Tripura University to distinguish between Honours Degree and Graduation keeping that system in view, the said principle of weightage was formulated. They have reiterated the method as already reproduced before and for sake of brevity even though the same is very relevant is not referred to.

The non-official respondent No.11 has filed an additional reply and mostly adopted the reply filed by the other respondents, but by filing additional affidavit on 02.08.2019 she has stated that she had Honours Degree at the time of her interview. But inadvertently, the same was not made part of the reply.

W.P.(C) No.334 of 2018

[Smt. Sarmistha Chakraborty vs. State of Tripura & Ors.]

[30] Mr. A. Bhowmik, learned counsel has appeared for the petitioner and Mr. D. Bhattacharjee, learned GA has appeared for the official respondents, Mr. S.M. Chakraborty, learned senior counsel along with Ms. M. Chakraborty, learned counsel have appeared for the non-official respondents No.4 & 7, Mr. Somik Deb, learned counsel has appeared for the non-official respondents No.5,6 & 8.

By means of this writ petition, the petitioner has also challenged the appointment of the non-official respondents in the post of RPM. The main-stay of her grievance is that in pursuance to the employment notice dated 04.10.2015, she appeared before the Selection Committee, but she found herself unsuccessful on securing 46 marks. The petitioner has stated that she secured 51% in her Graduation with Honours. Thus,

she ought to have been given 28 marks under the educational qualification. But the petitioner was given only 14 marks. If additional 14 marks were awarded, the petitioner's total marks would have been 60. In that event, the petitioner was supposed to be selected for the said post under UR category. The petitioner has filed one application under Order I, Rule 8 of the CPC to implead all the selected candidates being represented by few of them, the non-official respondents. But that application has not been insisted to effectively ensure the representation by few. No public notice had been issued.

The official respondents by filing the reply have not traversed the averments of the petitioner that she had secured 51% in her Graduation with Honours. Thus, it is apparent, her claim remains uncontested. She ought to have been given 28 marks for educational qualification. From the marksheet [page-33 of the petition] of the Honours, Bachelor of Arts/TDC Honours Examination, 2002 has further supported the contention of the petitioner. In this regard, the official respondents have only stated that the appointments have been made in terms of the merit list recommended by the Selection Committee. After appearing before the Selection Committee,

the petitioner cannot challenge the outcome of the selection inasmuch as she is estopped by conduct.

The non-official respondents No.4 & 7 have however traversed the averments made in Para-9 of the writ petition and stated that in view of the relevant part of the tabulation sheet [Annexure-1 supra], the contention of the petitioner that she was given 14 marks in the educational qualification is deliberately false and misleading statement inasmuch the records reveal that the petitioner was awarded 28 marks in the educational qualification. In this writ petition, neither the petitioner nor the respondents have annexed the so called tabulation sheet. Thus, there is no scope to verify whether the said statement at Para-9 of the writ petition with regard to denial of 28 marks is true or not. Thus, it has been asserted that the writ petition is liable to be axed for making false statement before the court. Moreover, it has been contended that due marks had been allotted to the petitioner. But she could not come within the zone of selection by securing the marks that has been secured by the person at the bottom of the merit panel for that category.

W.P.(C) No.340 of 2018

[Sri Amit Kr. Das vs. State of Tripura & Ors.]

[31] Mr. A. Sengupta, learned counsel has appeared for the petitioner and Mr. D. Bhattacharjee, learned GA has appeared for the official respondents, Mr. S.M. Chakraborty, learned senior counsel along with Ms. P. Sen, learned counsel have appeared for the non-official respondents No.7,8,9,14,17,19,20,21,25 & 28 and Mr. Somik Deb, learned counsel has appeared for the non-official respondents No.5,6,8,10,11,12,16,18,22,23,24,26,29 & 30.

The petitioner has challenged the selection and appointment of the non-official respondents No.5 to 31 in the post of RPM in terms of the employment notice dated 04.10.2015. The said challenge has been launched entirely on the ground that the non-official respondents who got selected had been given 28 marks under the educational qualification whereas they were entitled to get only 14 marks. In that event, the non-official respondents who got selected would have secured between 37 to 39, instead of what they have secured now 51 to 53 [this assertion is of the petitioner]. According to the petitioner, these marks have been awarded in complete disregard to the guidelines dated 12.01.2015 [Annexure-2 to

this writ petition] where it has been categorically provided that the persons having 45% to 59% marks obtained in the qualifying examination would get 28 marks. What marks the non-official respondents have secured in the Graduation has been shown by the petitioner in the tabular form at page-14 of the writ petition. It is evident therefrom that they secured marks from 40% to 44.25%. Thus, according to the policy, those respondents would have awarded 14 marks as the policy provides that the persons secured 30% -44% marks in the qualifying examination would get 14 marks.

In reply, the official respondents have referred to the principle of weightage given to the Honours Graduate having regard to the formula of Tripura University. The official respondents have categorically stated that the principle that has been devised by the Selection Committee cannot be questioned as the same is within their domain. However, the non-official respondents No.5,6,8,10,11,12,16,18,22,23,24,26,29 & 30 have categorically stated in Para-2.6 that since they secured higher educational qualification (Hons./Master Degree) than the basic minimum qualification, the weightage as has been given to them cannot be questioned by the petitioner. That apart, like the official respondents these respondents have also raised the

preliminary objection that the writ petition is hit by the principle of estoppel by conduct, non-joinder of necessary parties inasmuch as all the selected candidates have not been arraigned as the party. The writ petition is also bad for delay and laches. According to the respondents, after participation in the process when the candidate finds him unsuccessful he cannot turn around and challenge the very process.

The non-official respondents No.7,8,9,14,17,19,20, 21, 25 & 28 have asserted that the essential qualification for the said post of RPM is no doubt Graduation but the Graduation cannot be treated at par with Honours degree. Hence, by giving the weightage for such higher qualification, the Selection Committee has committed no wrong. According to them, the writ petition is bereft of substance and deserved to be dismissed.

W.P.(C) No.364 of 2018

[Sri Uttam Kr. Roy vs. State of Tripura & Ors.]

[32] Mr. D. Datta, learned counsel has appeared for the petitioner and Mr. A. Nandi, learned counsel has appeared for the official respondents. None appear for the respondents No.3 & 4 despite due notice through the G.A. vide order dated 18.04.2018.

By means of this writ petition, the petitioner has challenged the selection of 35 candidates in the UR category in the post of RPM on the ground that they were given 28 marks instead of 14 marks to which they are entitled as per the guidelines contained in the memorandum dated 12.01.2015. The relevant part of the said memorandum has been reproduced in Para-6 by the petitioner. For selection of Group-C posts other than persons with disabilities, 1 [one] mark to be awarded for each year since passing the examination acquiring the minimum qualification subject to maximum of 20 marks. It has been further stipulated that maximum marks to be allotted for educational qualification is 40 marks and that marks be given in the following manner:

- (a) 30%-44% marks obtained in qualifying examination -14 marks.**
- (b) 45%-69% marks obtained in qualifying examination -28 marks.**
- (c) 60% and above marks obtained in qualifying examination - 40 marks.**

It is evident that none other than the respondents No.3 & 4, out of those 35 candidates arrayed as the respondents in this proceeding, were entitled to 28 marks. According to the petitioner, grant of 28 marks to those 35 candidates is grossly illegal and arbitrary.

By filing the reply, the official respondents have clarified by stating how the weightage has been devised by the Selection Committee for the candidates having the Honours Degree or Post Graduate Degree. It has been stated in Para-10 that for having Honours Degree, the non-official respondents have been given 28 marks in observing the Tripura University guidelines that the candidates who get 40% to below 60% are considered 2nd Class Honours [2H]. The petitioner secured 46 marks whereas the person at the bottom in the select panel got 51 marks that has been treated as the minimum marks to have a place in the select panel. Those candidates who secured 51 or more than 51 marks have been accommodated in the select panel for purpose of appointment to the post of RPM. They have categorically denied that there had been any arbitrary departure from the guidelines, but for selecting the best candidates the said method of providing higher marks to the candidates having Honours Degree and the Post Graduate Degree. The said method has been followed uniformly and as such, the allegation of discrimination does not hold good.

W.P.(C) No.385 of 2018

[Sri Sujit Nath vs. State of Tripura & Ors.]

[33] Ms. P. Dhar, learned counsel has appeared for the petitioner and Mr. D. Bhattacharjee, learned GA has appeared for the official respondents when Mr. S.M. Chakraborty, learned senior counsel along with Ms. B. Chakraborty, learned counsel has appeared for the non-official respondents No.6,7,13,14,16,17,21,24,36 & 39, Mr. Somik Deb, learned counsel has appeared for the non-official respondents No.4,5,9,10,11,12,15,18,19,20,22,26,28,29,30,31,32,33,37,38 & 40 and Ms. S. Chakraborty, learned counsel and Mr. Kohinoor N. Bhattacharjee, learned counsel have appeared for the non-official respondent No.25. Mr. P.K. Biswas, learned senior counsel along with Mr. D. Biswas, learned counsel has appeared for the non-official respondent No.8.

The petitioner has challenged the selection and appointment of the non-official respondents i.e. the respondents No.4 to 40 as according to him, the appointments of those respondents have been given on the basis of the selection which has been carried out in gross violation of the guidelines contained in the memorandum dated 12.01.2015. There is no dispute that the petitioner had participated in the walk-in-

interview having responded to the employment notice dated 04.10.2015 on 16.12.2015. The petitioner was considered under the UR category. The petitioner caused disclosure of information relating to the method that had been applied for purpose of interview. It has been revealed that the selection process as prescribed in the category-2 of the said guidelines, contained in the memorandum dated 12.01.2015, had been chosen. Since that part of the guidelines has been reproduced before, for sake of brevity, is not referred herein in further detail. The petitioner has asserted that 37 non-official respondents who have been arrayed by the petitioner in this proceeding as the respondents were awarded 28 marks instead of 14 marks they are entitled to get as per the said guidelines. If the additional marks that have been awarded to the non-official respondents are deducted, the petitioner would certainly be selected. The petitioner has given a table below Para-10 of the writ petition showing the percentage of Graduation marks, marks awarded for their minimum qualification and the total marks they got vis-à-vis the marks they were entitled and thus, the total marks they were entitled to. Apparent it is from that table that the non-official respondents got marks from 40% to 44.88%. But all of them have been awarded 28 marks and they

got the total marks between 55 to 68 whereas according to the petitioner, they are entitled to get 41 to 54, if the guidelines were followed and observed scrupulously. For such illegality committed by the Interview Board/Selection Committee the entire selection process has become vitiated. According to the petitioner, the non-official respondent No.4 got the same percentage of marks vis-à-vis the petitioner in the qualifying examination. The non-official respondent No.4 has been selected but the petitioner has been discarded most arbitrarily and thus, the appointments of the non-official respondents are liable to be interfered with, and set aside.

The official respondents by filing the reply have stated that no discrimination has been practiced and the guidelines were substantially followed. But the Interview Board/Selection Committee has devised the principle of weightage for the candidates who had Honours or Post Graduate Degree.

The non-official respondents No.6,7,13,14,16, 17, 21,24,36 & 39 by filing a reply have stated that the entire writ petition is totally frivolous and the selection committee did commit no wrong inasmuch as an Honours Graduate cannot be treated at par with a pass graduate.

The non-official respondents No.4,5,9,10,11,12,15, 18,19,20,22,26,28,29,30,31,32,33,37,38 & 40 by filing a separate reply have raised the preliminary objection as to the maintainability of the writ petition as according to those respondents, the writ petition is hit by principle of estoppel by conduct as the petitioner having participated in the selection without any demur and in the final outcome, he found himself unsuccessful. He made a turn around to challenge the selection process. When the entire selection process is under challenge, all the selected candidates are not arraigned as the party. If the relief is granted as prayed, all the selected candidates will adversely be affected. Thus, in absence of those non-impleaded selected candidates being the necessary party, no order unsettling the selection can be passed. According to those respondents, the petitioner has disclosed the reasons for such restrictive challenge. Their challenge is confined to award of marks by the selection committee. There cannot be any amount of doubt that the equal parameters have been uniformly applied to all the candidates while making the selection. Even non-joinder of the member of the Selection Committee turns the writ petition unsustainable as overt allegation has been made against the Selection Committee. Having referred to the

category-2, selection mode, those respondents have submitted that the Selection Committee has awarded 14 marks to those candidates who secured 30% to less than 45% marks in the minimum qualification and those who got the Honours, they were awarded 28 marks. Even those candidates who secured 45% to less than 60% marks without Honours or Post-Graduate degree were given 28 marks. Where the candidates secured 60% or above without Honours Degree they were given 40 marks. Since the non-official respondents all got the Honours Degree they were given 28 marks which had come in advantage for their selection. That principle has been applied uniformly, not selectively and hence, there is no streak of discrimination. The Selection Committee is enjoyed with the inherent right and authority to evolve procedure to grant weightage to those candidates having higher qualification harmonious to the policy or legal scheme. Unless it is shown that they have exercised their right arbitrarily, such act cannot be interfered with. The writ court would be loath in exercising the jurisdiction of judicial review in such cases. According to those respondents, there is no infirmity in the process. Moreover, the writ petition suffers from delay and laches and no explanation whatsoever has been provided by the petitioner.

The non-official respondents No.25 has also raised the similar objection and defended the principle of weightage as devised by the Selection Committee.

The non-official respondent No.25 by filing an additional affidavit has produced her marksheet of Honours Degree.

The non-official respondent No.8 has also taken the similar stand denying the allegation that the petitioner had been treated arbitrarily or with discrimination. The said respondent has further stated that the Honours Graduates and the pass graduates cannot be treated at par, as their evaluation is made on different scale. Therefore, the method devised by the Selection Committee cannot be called in question.

W.P.(C) No.400 of 2018

[Smt. Antu Roy (Debnath) vs. State of Tripura & Ors.]

[34] Mr. A. Bhowmik, learned counsel has appeared for the petitioner and Mr. A. Nandi, learned counsel has appeared for the official respondents, Mr. S.M. Chakraborty, learned senior counsel along with Ms. P. Sen, learned counsel have appeared for the non-official respondents No.4 to 7 & 10 to 13.

The petitioner appeared in the walk-in interview for appointment to the post of RPM in response to the employment

notice dated 04.10.2015 at PRTI, Arundhutinagar. There is no dispute that the petitioner has completed Bachelor of Arts with Honours in Political Science from Tripura University in the year 1996. She produced the computer training certificate as the certificate of co-curricular activities. In the Honours course, she got 52.5%. According to the guidelines, the candidates securing 30-44% marks are to be awarded 14 marks whereas 45%-59% is to be awarded 28 marks. In the case where the candidates secured more than 60% and above, they would get 40 marks. The petitioner got 50 marks, one mark short from the last candidate in the SC category. The petitioner belongs to SC category. The non-officials respondents who appeared for selection were awarded 28 marks 'illegally' which they were not so entitled. The petitioner has asserted that he had filed one application under Order I, Rule 10 of the CPC for representation of the selected candidates by the non-official respondents but there is no reference whether any order was passed on such application or not. This is the solitary ground raised in the writ petition.

The official respondents by filing the reply have taken the similar stand as taken in the other writ petitions that the Selection Committee had devised the method of giving

weightage following the Tripura University guidelines. Thus, the candidates including the non-official respondents got the marks with extra weightage for their Honours Degree. There is no deviation as such from the guidelines provided by the memorandum dated 12.01.2015 [Annexure-R/1 to the reply filed by the respondents No.1,2 & 3].

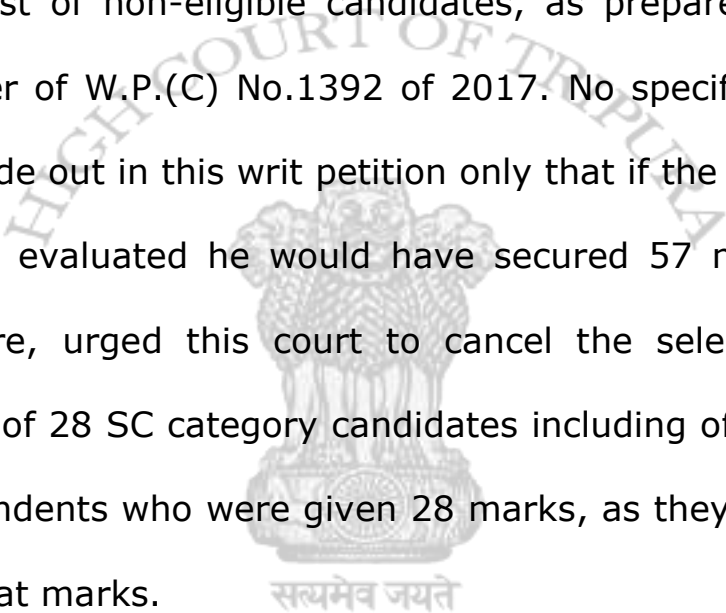
The non-official respondents No.4 to 7 & 10 to 13 by filing the separate reply have taken a similar stand, that of the official respondents. It has been asserted by the petitioner that she got 52.5% in her Graduation with Honours and she was given 28 marks but in total marks she fell short of one mark. Thus, the challenge apparently becomes a little bit obscure.

W.P.(C) No.1153 of 2018

[Sri Abhijit Das vs. State of Tripura & Ors.]

[35] Mr. D. Datta, learned counsel has appeared for the petitioner and Mr. M. Debbarma, learned Addl. G.A. has appeared for the official respondents. None appear for the respondents No.3 & 4 despite due notice from this court. However, those respondents are represented in some other writ petitions.

The petitioner has challenged the selection of the non-official respondents in the SC category on the similar ground of awarding higher marks in deviation of the guidelines contained in the memorandum dated 12.01.2015 and he has enclosed a list of non-eligible candidates, as prepared by the writ petitioner of W.P.(C) No.1392 of 2017. No specific ground has been made out in this writ petition only that if the petitioner was properly evaluated he would have secured 57 marks. He has, therefore, urged this court to cancel the selection and appointment of 28 SC category candidates including of the non-official respondents who were given 28 marks, as they were not entitled to that marks.



In reply, the official respondents have stated that the petitioner secured only 25 marks whereas the last candidate in the select panel secured 51 marks. That apart, it has been contended that all the candidates having Honours during their Graduation were given 28 marks uniformly instead of 14 marks. The method has been devised by the Selection Committee consistent with the guidelines. There is no violation of guidelines as alleged or at all. The writ petition is frivolous and deserves dismissal.

W.P.(C) No.25 of 2019

[Sri Samaresh Debnath vs. State of Tripura & Ors.]

[36] Mr. D. Sarkar, learned counsel has appeared for the petitioner and Mr. D. Bhattacharjee, learned GA has appeared for the official respondents and Mr. S.M. Chakraborty, learned senior counsel along with Ms. P. Sen, learned counsel have appeared for the non-official respondents No.6 to 11.

There is no dispute that the petitioner had appeared for selection to the post of RPM in response to the employment notice dated 04.10.2015, but in this writ petition the employment notice has been shown to have published on 05.10.2015 in a different newspaper [Annexur-1 to the writ petition]. He secured 57.47% marks in his Graduation [B.Com]. He has Diploma in Computer Application [DCA] from the recognized institute. But when the outcome of the selection process was published, he found to his dismay that he had not been selected. But from the disclosure made under Right to Information Act, he came to know that the non-official respondents have secured less mark in the Graduation but the official respondents in gross violation of the guidelines dated 12.01.2015 did give them more marks. The petitioner got 28 marks for the minimum educational qualification. Even though

the non-official respondents secured less mark in the Graduation, the Selection Committee had awarded them 28 marks in abject violation of the guidelines dated 12.01.2015. Hence, it has been urged that the selection of the non-official respondents be set aside and the official respondents be asked to consider the appointment of the petitioner in the said post of RPM in terms of the employment notice dated 04.10.2015.

The official respondents and the non-official respondents filed two separate replies. But all the respondents in order to clarify why the non-official respondents were awarded 28 marks against their minimum educational qualification have stated that since the non-official respondents had the Honours Degree, the Selection Committee following the guidelines of Tripura University had devised a principle of weightage for the Honours Graduate and accordingly, those respondents were given higher marks of 28. Such weightage had been uniformly given to all the candidates who had Honours Degree in the Graduation. Therefore, the allegation of discrimination or violation of the guidelines cannot sustain. Within that framework of guidelines, the Selection Committee by exercising their authority had devised the said principle of weightage to select the best candidates out of the lot.

W.P.(C) No.26 of 2019

[Sri Sanjit Shil & Anr. vs. State of Tripura & Ors.]

[37] Mr. D. Sarkar, learned counsel has appeared for the petitioners and Mr. D. Bhattacharjee, learned GA has appeared for the official respondents, Mr. S.M. Chakraborty, learned senior counsel along with Ms. P. Sen, learned counsel have appeared for the non-official respondents No.6 to 8.

The petitioners have challenged the selection of the non-official respondents to the post of RPM and have simultaneously urged for considering their appointments to the said post in pursuance to the employment notice dated 05.10.2015. There is no dispute that the petitioners had appeared in the walk-in-interview for selection to the said post. The petitioner No.1 secured 44.4% marks in the Graduation and he had completed the course of Master of Rural Management and Development [MRMD] from Tripura University. The petitioner No.2 secured 44.96% in his Graduation [B.Sc.] and he had the degree of MRMD from Tripura University. According to the petitioners, the non-official respondents are less meritorious and their selection has been done in gross violation of the guidelines dated 12.01.2015 issued by the respondent No.1. According to them, all the non-official respondents were

awarded 28 marks under the minimum educational qualification but they were not entitled to so. As a result, the petitioners have been eliminated wrongfully.

The official respondents and the non-official respondents filed their reply separately and contested the challenge as raised by the petitioners. They have stated that the main grievance of the petitioners is that the non-official respondents have been awarded 28 marks against the educational qualification when they did not deserve it and awarding of 28 marks in favour of the non-official respondents is illegal and arbitrary. The official-respondents have negated the guidelines as laid down for purpose of selection. The respondents have stated that the petitioners have intentionally suppressed the fact that the non-respondents were all Honours Graduates. The Selection Committee which evolved a principle of weightage following the guidelines of Tripura University has awarded 28 marks against the Honours Graduate vis-à-vis the Pass Graduate. Since the Graduation with Honours is indisputedly a higher qualification, according to the Tripura University guidelines, by awarding the candidates 28 marks having Honours Degree, no illegality has been committed by the

Selection Committee. As such, there is no infirmity in the appointment of the non-official respondents and others.

W.P.(C) No.122 of 2019

[Sri Deep Sankar Das vs. State of Tripura & Ors.]

[38] Mr. D. Datta, learned counsel has appeared for the petitioner and Mr. M. Debbarma, learned Addl. GA has appeared for the official respondents. None appears for the non-official respondents despite due notice from this court.

The petitioner had appeared before the walk-in interview for appointment to the post of RPM as he was eligible to be appointed to the post of RPM but when the final outcome of the Selection process was published, the petitioner found himself eliminated. After that, he had taken initiative to collect information from various sources. The petitioner gathered the information by way of disclosure under RTI Act. He found that in awarding the marks under the educational qualification the respondents have made serious departure from the guidelines dated 12.01.2015. According to the petitioner, the guidelines have postulated how to award marks in the category-2 selection or in the other categories of selection. According to the petitioner, if he was properly evaluated he would have been secured minimum 59 marks and would have been within the

select panel. But the guidelines were not followed and the candidates were not properly evaluated. By following an arbitrary procedure the petitioner has been eliminated, though he had the qualification to be selected. The petitioner had passed the Bachelor of Commerce in the year 2017. It is really surprising that the petitioner has not laid the grounds of challenge specifically or in a manner to be understood in the perspective of fact. However, in respect of awarding marks in violation of the guidelines, the official respondents have categorically stated that there had been no infirmity in the process even Tripura Schedule Caste and Schedule Tribes Reservation Act, 1991 and the rules made thereunder, violation of which has raised with definite illustration, have been strictly followed. The official respondents have categorically stated that the petitioner has secured only 40 marks which is far below the minimum marks, meaning the marks secured by the last candidate of his category in the merit panel. The minimum marks for the UR candidates, to which the petitioner belongs, was 55. So far awarding the higher marks to the candidates having Honours degree or Post-Graduate degree, the official respondents have stated as follows:

"As per recruitment rules to the post of RPM, the minimum requisite qualification is Graduate from any recognized University. All candidates having Honours degree in graduation, were given 28 marks in general as because as per Tripura University Guidelines, the candidate of Honours course who get 40% and above but below 60% marks is considered as 2nd Class Honours (2H) and whereas the candidate at Pass course who will get 45% and above but below 60% marks is considered as 2nd Division in pass course (2P)."

[39] As the facts of each of the writ petitions are combined herein in a batch, it appears that the fundamental challenge by the petitioners is structured on giving additional marks for the candidates having Honours Degree or the Post-Graduate degree vis-à-vis the minimum qualification [the bachelor degree referred as the graduation] which is the minimum qualification for appointment to the post of RPM. That apart, the challenge has been structured on the aspect of fairness and efficacy of walk-in interview of large of number of candidates in a day, which according to the petitioners have resulted anomalous assessment of the comparative merits of the candidates.

[40] On the other hand, the respondents including the selected candidates [who have been referred as the non-official respondents] have stoutly raised the jurisprudential objection in respect of maintainability of the writ petitions on the grounds of (i) the writ petition being barred by the principle of estoppel;

(ii) non-joinder of the necessary parties and (iii) delay and laches in filing the writ petitions.

[41] The counsel for the petitioners have submitted that the State Government has framed a general employment guidelines for all departments of the State Government for selection of candidates by open interview for Group-C and Group-D posts to be filled up by direct recruitment. The selection under reference falls within the category-2 i.e. the selection of candidates from Group-C post other than persons with disabilities [see the memorandum No.F.23(8)-GA(P&T)/14 dated 12.01.2015, the guidelines in short]. It has been provided in the said memorandum for selection in Category-2 that 1[one] mark to be awarded to the candidates for each year since passing the examination, mentioned as the minimum essential qualification as prescribed for the post in the recruitment rules or year(s) of waiting for job after passing the qualifying examination subject to a maximum of 20 marks. Thereafter the maximum marks has been allocated for evaluation of the educational qualification. Such marks as allocated is 40. The said mark has been divided in 3[three] parts viz. (a) 30% to 44% marks secured in the qualifying examination -14 marks (b)

45% to 59% marks secured in the qualifying examination-28 Marks (c) 60% and above marks secured in the qualifying examination-40 Marks. Thereafter, on two other segments marks are allotted. Out of total marks of 100 the maximum marks as has been allotted is to evaluate general knowledge. The allotted marks for that segment is 40. Those are further segmented into 4[four] parts viz. (a) knowledge on subject to be evaluated, out of 7 marks; (b) intelligence to be evaluated, out of 8 marks; (c) aptitude and interest on the field to be evaluated, out of 7 marks; (d) sense of social commitment to be evaluated, out of 8 marks. Further, 10 marks have been allotted to evaluate the co-curricular field activities [culture, sports etc.]. According to the petitioners, the said guidelines have been flouted when the selection committee had awarded 28 marks for the persons having Honours or Post-Graduate degree and secured 40% to 45% of marks [H2] in lieu of 14 marks as provided under Category-2 [ii] of the said guidelines. The petitioners have robustly submitted that was gross and flagrant violation of the method published by the memorandum dated 12.01.2015. Therefore, those candidates who have been selected on the strength of the additional 14 marks, their

selection shall be set aside and the petitioners be considered for appointment to the post of RPM.

[42] In one of the writ petitions as noted above, the challenge has been thrown against the policy but no specific ground is available in this regard. It has been noted that the challenge is confined to whether giving one marks waiting for one year in search of job. Finally, this point has not been argued by the counsel for the petitioner. However, so far this objection is concerned, the petitioner who raised that challenge is definitely estopped as the said policy was known much before the walk-in interview was taken but the petitioner had participated in the interview without any demur. On this aspect, this court will not dilate in details.

[43] Mr. D. Bhattacharjee, learned G.A. has contended for the official respondents that after participation in the selection process without any demur and without raising any specific objection in respect of the selection process cannot be called in question after finding that he had not been included in the select panel. In that regard, he has referred a decision of the apex court in **Madras Institute of Development Studies and another vs. S. Sivasubramaniyan and others**, reported in

(2016) 1 SCC 454, where the apex court in the perspective of fact of selection of Associate Professor while examining the question whether a person who consciously takes part in the process of selection can turn around and question the method of selection, has observed as under:

15. In G. Sarana vs. University of Lucknow & Ors. : (1976) 3 SCC 585, a similar question came for consideration before a three Judges Bench of this Court where the fact was that the petitioner had applied to the post of Professor of Anthropology in the University of Lucknow. After having appeared before the Selection Committee but on his failure to get appointed, the petitioner rushed to the High Court pleading bias against him of the three experts in the Selection Committee consisting of five members. He also alleged doubt in the constitution of the Committee. Rejecting the contention, the Court held:

"15. We do not, however, consider it necessary in the present case to go into the question of the reasonableness of bias or real likelihood of bias as despite the fact that the appellant knew all the relevant facts, he did not before appearing for the interview or at the time of the interview raise even his little finger against the constitution of the Selection Committee. He seems to have voluntarily appeared before the committee and taken a chance of having a favourable recommendation from it. Having done so, it is not now open to him to turn round and question the constitution of the committee. This view gains strength from a decision of this Court in Manak Lal vs. Prem Chand Singhvi : AIR 1957 SC 425 where in more or less similar circumstances, it was held that the failure of the appellant to take the identical plea at the earlier stage of the proceedings created an effective bar of waiver against him. The following observations made therein are worth quoting:

'9.....It seems clear that the appellant wanted to take a chance to secure a favourable report from the tribunal which was constituted and when he found that he was confronted with an unfavourable report, he adopted the device of raising the present technical point.' "

16. In Madan Lal & Ors. vs. State of J&K & Ors. : (1995) 3 SCC 486, similar view has been reiterated by the Bench which held that:-

'9. Before dealing with this contention, we must keep in view the salient fact that the petitioners as well as the contesting successful candidates being respondents

concerned herein, were all found eligible in the light of marks obtained in the written test, to be eligible to be called for oral interview. Up to this stage there is no dispute between the parties. The petitioners also appeared at the oral interview conducted by the Members concerned of the Commission who interviewed the petitioners as well as the contesting respondents concerned. Thus, the petitioners took a chance to get themselves selected at the said oral interview. Only because they did not find themselves to have emerged successful as a result of their combined performance both at written test and oral interview, they have filed this petition. It is now well settled that if a candidate takes a calculated chance and appears at the interview, then, only because the result of the interview is not palatable to him, he cannot turn round and subsequently contend that the process of interview was unfair or the Selection Committee was not properly constituted. In *Om Prakash Shukla v. Akhilesh Kumar Shukla*: (1986) Supp. SCC 285, it has been clearly laid down by a Bench of three learned Judges of this Court that when the petitioner appeared at the examination without protest and when he found that he would not succeed in examination he filed a petition challenging the said examination, the High Court should not have granted any relief to such a petitioner.'

17. In *Manish Kumar Shahi vs. State of Bihar* : (2010) 12 SCC 576, this Court reiterated the principle laid down in the earlier judgments and observed:

'We also agree with the High Court that after having taken part in the process of selection knowingly well that more than 19% marks have been earmarked for viva voce test, the petitioner is not entitled to challenge the criteria or process of selection. Surely, if the petitioner's name had appeared in the merit list, he would not have even dreamed of challenging the selection. The petitioner invoked jurisdiction of the High Court under Article 226 of the Constitution of India only after he found that his name does not figure in the merit list prepared by the Commission. This conduct of the petitioner clearly disentitles him from questioning the selection and the High Court did not commit any error by refusing to entertain the writ petition.'

18. In the case of *Ramesh Chandra Shah and others vs. Anil Joshi and others* : (2013) 11 SCC 309, recently a Bench of this Court following the earlier decisions held as under:

'24. In view of the propositions laid down in the above noted judgments, it must be held that by having taken part in the process of selection with full knowledge that the recruitment was being made under the General Rules, the respondents had waived their right to question the

advertisement or the methodology adopted by the Board for making selection and the learned Single Judge and the Division Bench of the High Court committed grave error by entertaining the grievance made by the respondents.'

[44] On the question of estoppel by conduct, Mr. Bhattacharjee, learned GA has relied on a few more decisions such as **State of Uttar Pradesh through its Secretary and others vs. Meraj Ahmed**, reported in (2017) 9 SCC 322 and **Ashok Kumar and another vs. State of Bihar and others**, reported in (2017) 4 SCC 357. Since the similar principle has been discussed, it is not required to elaborately refer those decisions. Mr. Bhattacharjee, learned GA has separately dwelled upon the decisions of **Madan Lal and others vs. State of J & K. and others**, reported in (1995) 3 SCC 486 and **Manish Kumar Shahi vs. State of Bihar and others**, reported in (2010) 12 SCC 576. Those decisions have quite incisively been referred and discussed in **Madras Institute of Development Studies** (*supra*). Hence, no further purpose would be served by repeating the principles as laid down in those reports.

[45] Mr. Bhattacharjee, learned GA has submitted that if *mala fide* is alleged, *mala fide* has to be proved by the person who raised such allegation [see **E.P Royappa vs. the State of**

Tamil Nadu : AIR 1974 SC 555]. Mr. Bhattacharjee, learned GA has emphatically submitted that when the ground of mala fide is raised, the person against whom such allegation is levelled is a necessary party and in absence of him, the answer in respect of mala fide cannot be provided by the court. Even the selected candidates whose selection and appointment have been challenged, have not been arrayed. A miniscule few have been made party but no procedure even to treat them as the representative of the other selected candidates has been followed by the petitioners. In this regard, Mr. Bhattacharjee, learned GA has referred to a decision of the apex court in **Sadananda Halo and others vs. Momtaz Ali Sheikh and others**, reported in **(2008) 4 SCC 619** where the apex court has enunciated the law in the following manner:

"Similarly we are not satisfied with the course taken in inviting the objections of the selected candidates who were never bothered to be made parties to the writ petitions. This Court in All India SC & ST Employees' Association v. A. Arthur Jeen and others : (2001) 6 SCC 380; has stressed the necessity of joining the selected candidates as a party in paras 13 and 14 of its judgment, referring to the reported decisions in Prabodh Verma v. State of U.P. : (1984) 4 SCC 251, and AMS Sushanth v. M. Sujatha : (2000) 10 SCC 197. In these cases this Court has stressed the necessity of the selected candidates being joined as a party at least in the representative capacity. The Single Judge, after realizing the fact that the selected candidates were not joined as a party, though the selection lists were available to the petitioner, had merely advertised about the dates of hearing of the petitions and when few of the selected candidates approached the High Court, they were not even supplied with the pleadings or the copies of the petitions in time. All this, in our opinion

amounted to denial of an appropriate opportunity to the selected candidates. All this has been dealt with by both the courts below and particularly the Division Bench in a very casual manner holding that the decisions relied on by the appellants were individual cases. Even if they were so, the principles stated in those cases regarding the natural justice were most apposite particularly in *Canara Bank vs. Debasis Das* : (2003) 4 SCC 577, a reference of which has been made. In that case this Court held:

'Natural justice has been variously defined. It is another name for common sense justice. Rules of natural justice are not codified canons. But they are principles ingrained into the conscience of man. Natural justice is the administration of justice in a common sense liberal way. Justice is based substantially on natural ideals and human values. The administration of justice is to be freed from the narrow and restricted considerations which are usually associated with a formulated law involving linguistic technicalities and grammatical niceties. It is the substance of justice which has to determine its form. Principles of natural justice are those rules which have been laid down by the courts as being the minimum protection of the rights of the individual against the arbitrary procedure that may be adopted by a judicial, quasi-judicial and administrative authority while making an order affecting those rights. These rules are intended to prevent such authority from doing injustice.'

[Emphasis added]

[46] As sequel, Mr. Bhattacharjee, learned GA has placed another decision on non-impleadment of the necessary parties, namely **Suresh vs. Yeotmal District Central Cooperative Bank Limited and another**, reported in (2008) 12 SCC 558, where the apex court has observed in the similar line having referred to **Kumari Rashmi Mishra vs. M.P. Public Service Commissioner**, reported in (2006) 12 SCC 724. In **Kumari Rashmi Mishra** (supra), the law enunciated in **Promode**

Verma vs. State of U.P., reported in **(1984) 4 SCC 251** has been restated in the following manner:

16. This Court in **Rashmi Mishra v. M.P. Public Service Commission and others** : (2006) 12 SCC 724, observed:

16. In **Prabodh Verma vs. State of U.P.** : (1984) 4 SCC 251 this Court held: (SCC pp. 273-74, para 28)

'The first defect was that of non-joinder of necessary parties. The only respondents to the Sangh's petition were the State of Uttar Pradesh and its officers concerned. Those who were vitally concerned, namely, the reserve pool teachers, were not made parties-not even by joining some of them in a representative capacity, considering that their number was too large for all of them to be joined individually as respondents. The matter, therefore, came to be decided in their absence. A High Court ought not to decide a writ petition under Article 226 of the Constitution without the persons who would be vitally affected by its judgment being before it as respondents or at least by some of them being before it as respondents in a representative capacity if their number is too large, and, therefore, the Allahabad High Court ought not to have proceeded to hear and dispose of the Sangh's writ petition without insisting upon the reserve pool teachers being made respondents to that writ petition, or at least some of them being made respondents in a representative capacity, and had the petitioners refused to do so, ought to have dismissed that petition for non-joinder of necessary parties.' "

[47] Thereafter, Mr. Bhattacharjee, learned GA has submitted that the Selection Committee can devise the mechanism consistent to the general guidelines for selecting the best out of the lot following a uniform and rational tool. In this regard, he has referred a decision of the apex court in **Secy. (Health) Deptt. of Health & F.W. and another vs. Dr. Anita Puri and others**, reported in **(1996) 6 SCC 282**, the apex

court has propounded that *'in adjudging the suitability of a person for the post, the expert body like Public Service Commission in the absence of any statutory criteria has the discretion of evolving its mode evaluation of merit and selection of the candidate. The competence and merit of a candidate is adjudged not on the basis of the qualification he possesses but also taking into account the Other necessary factors like career of the candidate throughout his educational curriculum, experience in any field in which the selection is going to be held; his general aptitude for the job to be ascertained in course of interview, extra-curriculum activities like sports and other allied subjects, personality of the candidate as assessed in the interview and all other germane factors which the expert body evolves for assessing the suitability of the candidate for the post for which the selection is going to be held.'*

[48] The other counsel appearing for the official respondents have adopted the submission of Mr. Bhattacharjee, learned G.A.

[49] Mr. Somik Deb, learned counsel appearing for the non-official respondents as noted against each of the writ petition has submitted that all the writ petitions are bad for

non-joinder of necessary parties, meaning the non-joinder of the selectees. He has contended that the non-official respondents have in their counter affidavit [pages 176 to 232 of the paper book of writ petition being W.P.(C) No.1392 of 2017 book] have appended a tabulation sheet wherefrom it can be seen that 1732 candidates have been awarded 28 marks even though they got 40% to less than 45% marks on the ground that they were possessing the Honours Degree. If any challenge has to be thrown to the said weightage system, all the selectees are to be arraigned as the party so that they are not deprived of their opportunity of defending their selection. Few selectees have been arraigned but they are not the representatives of all the individual selectees. In the written brief of submission, Mr. Deb, learned counsel has averred how the selectees remained non-arraigned. Since this aspect of the matter, is not under pale of controversy, the minute details are not at all necessary and called for. The majority of the selected candidates have not been arraigned as the party even though the selection process as a whole has been challenged but without impleading them.

[50] Mr. Deb, learned counsel has placed his reliance on a series of decisions on the aspects of non-impleadment and its

consequence viz. **Udit Narain Singh Malpaharia vs. Additional Member, Board of Revenue, Bihar**, reported in **AIR 1963 786, Prabodh Verma and Ors. vs. State of Uttar Pradesh and Ors.**, reported in **(1984) 4 SCC 251, Ishwar Singh Vs. Kuldip Singh**, reported in **(1955) Supp (1) SCC 179, U.P Awas Evam Vikas Parishad vs. Gyan Devi (Dead) by L.Rs. and Ors.**, reported in **(1995) 2 SCC 326, Arun Tewari and Ors. vs. Zila Mansavi Shikshak Sangh and Ors.**, reported in **(1998) 2 SCC 332, K.H. Siraj vs. High Court of Kerala and Ors.**, reported in **(2006) 6 SCC 395, Avtar Singh Hit vs. Delhi Sikh Gurdwara Management Committee and Ors.**, reported in **(2006) 8 SCC 487, Rashmi Mishra vs. Madhya Pradesh Public Service Commission and Ors.**, reported in **(2006) 12 SCC 724, Suresh vs. Yeotmal Dist. Central Co-op. Bank Ltd. and Ors.**, reported in **(2008) 12 SCC 558, Amlan Jyoti Borooah vs. State of Assam and Ors.**, reported in **(2009) 3 SCC 227, Girjesh Shrivastava and Ors. vs. State of M.P. and Ors.**, reported in **(2010) 10 SCC 707, Vijay Kumar Kaul and Ors. vs. Union of India (UOI) and Ors.**, reported in **(2012) 7 SCC 610 and , Ranjan Kumar and Ors. vs. State of Bihar and Ors.**, reported in **(2014) 16 SCC 187, H.C. Kulwant**

Singh vs. H.C. Daya Ram, reported in **(2015) 3 SCC 177**.

Mr. Deb, learned counsel has also asserted the additional ground on maintainability as, according to the respondents, the writ petitions are hit by the principles of estoppel by conduct and he has relied another series of decisions for that purpose viz. **Madan Lal and Ors. vs. State of Jammu and Kashmir and Ors.**, reported in **(1995) 3 SCC 486**, **Chandra Prakash Tiwari and Ors. vs. Shakuntala Shukla and Ors.**, reported in **(2002) 6 SCC 127**, **K.H. Siraj vs. High Court of Kerala and Ors.**, reported in **(2006) 6 SCC 395**, **Union of India (UOI) and Ors. vs. S. Vinodh Kumar and Ors.**, reported in **(2007) 8 SCC 100**, **Dhananjay Malik and Ors. vs. State of Uttaranchal and Ors.**, reported in **(2008) 4 SCC 171**, **Sadananda Halo and Ors. vs. Momtaz Ali Sheikh and Ors.**, reported in **(2008) 4 SCC 619**, **K.A. Nagamani vs. Indian Airlines and Ors.**, reported in **(2009) 5 SCC 515**, **Manish Kumar Shahi vs. State of Bihar and Ors.**, reported in **(2010) 12 SCC 576**, **Vijendra Kumar Verma vs. Public Service Commission, Uttarakhand and Ors.**, reported in **(2011) 1 SCC 150**, **Hamza vs. Muhammadkutty and Ors.**, reported in **(2013) 11 SCC 150**, **Ramesh Chandra Shah and Ors. vs. Anil Joshi and Ors.**, reported in **(2013) 11 SCC**

309, Chandigarh Administration vs. Jasmine Kaur and Ors., reported in **(2014) 10 SCC 521, Ranjan Kumar and Ors. vs. State of Bihar and Ors.,** reported in **(2014) 16 SCC 187, HC Pradeep Kumar Rai and Ors. vs. Dinesh Kumar Pandey and Ors.,** reported in **(2015) 11 SCC 493, Madras Institute of Development Studies and Ors. vs. K. Sivasubramanian and Ors.,** reported in **(2016) 1 SCC 454, Ashok Kumar and Ors. vs. State of Bihar and Ors.,** reported in **(2017) 4 SCC 357 and D. Sarojakumari vs. R. Helen Thilakom and Ors.,** reported in **(2017) 9 SCC 478.**

[51] Mr. Deb, learned counsel has also raised a challenge that in none of the writ petitions the policy containing the process of selection has been challenged. Thus, it has come to the fore that the petitioners are interested to reap the benefit of the selection process and hence, they have restricted their challenge to the aspect of award of 28 marks to the Honours Graduates who secured 40% to below 45%. According to Mr. Deb, learned counsel that tool of weightage as applied by the Selection Committee does not jeopardize the guidelines. The Selection Committee has exercised the powers inherent to them for finding out the best candidates out of the lot. The said tool

has been applied uniformly and in this regard, there is no challenge. That apart, the system as devised does not suffer from vice of irrationality or impropriety. He has further contended that the guidelines are for guidance. It does not oblige the strict enforceability. In this regard, Mr. Deb, learned counsel has referred to **K.A. Nagasaki vs Indian Airlines & Ors**, reported in **(2009) 5 SCC 551** wherein the apex court has enunciated that *"the Indian Airlines Corporation Employees Service Regulations, 1955 which are made in exercise of the powers conferred upon the Corporation by the Act are undoubtedly statutory in nature but the Recruitment and Promotion Rules are not statutory in their nature. These Rules are not framed in exercise of any Rule Making Power. Mere administrative rules are not legislation of any kind. They are in the nature of statements of policy and the practice of government departments, statutory authorities, whether published or otherwise. Statutory rules, which are made under the provisions of any enactment and regulations, subject to Parliamentary approval stand on entirely different footing. The administrative rules are always considered and have repeatedly been held to be rules of administrative practice merely, not rules of law and not delegated legislation and they have no*

statutory force. Mere description of such rules of administrative practice as 'rules' does not make them to be statutory rules. Such administrative rules can be modified, amended or consolidated by the authorities without following any particular procedure. There are no legal restrictions to do so as long as they do not offend the provisions of the Constitution or statutes or statutory rules as the case may be."

[52] In **Dilip Kumar Garg and another vs. State of U.P. and others**, reported in **(2009) 4 SCC 753**, the apex court has restated the law as enunciated in **Roop Chand Adlakha & others vs. Delhi Development Authority & others**, reported in **AIR 1989 SC 307**. In **Roop Chand Adlakha (supra)**, the apex court while taking note of the decision of the apex court in **State of Jammu and Kashmir vs. Triloki Nath Khosa and others**, reported in **AIR 1974 SC 1** and **Mohd. Shujat Ali and others vs. Union of India and others**, reported in **AIR 1974 SC 1613** has observed as follows:

" 7.If the differences in the qualification has a reasonable relation to the nature of duties and responsibilities, that go with and are attendant upon the promotional-post, the more advantageous treatment of those who possess higher technical qualifications can be legitimized on the doctrine of classification. There may, conceivably, be cases where the differences in the educational qualifications may not be sufficient to give any preferential treatment to one class of

candidates as against another. Whether the classification is reasonable or not must, therefore, necessarily depend upon facts of each case and the circumstances obtaining at the relevant time. When the state makes a classification between two sources, unless the vice of the classification is writ large on the face of it, the person assailing the classification must show that it is unreasonable and violative of Article."

[Emphasis added]

[53] It has been also held in **Dilip Kumar Garg** (*supra*) that provisions of Article 14 should not be stretched too far, otherwise it will make functioning of the administration impossible. The administrative authorities are in the best position to decide the requisite qualification and it is not for the court to sit over their decision like a court of appeal. Finally, it has been stated by the counsel that the selection committee had evolved another parameter providing a weightage to those candidates possessing higher qualification/Honours Degree apart from having 40% to below 45% marks in the basic qualification.

[54] To buttress the said submission, reliance has been placed on **Government of Andhra Pradesh etc. vs. P. Dilip Kumar and Anr. etc.**, reported in **(1993) 2 SCC 310**. In that case, the controversy as projected emerged from the challenge to the direct recruitment in the post of Deputy Executive Engineer. The relevant rule prescribed Bachelors Degree in

Engineering as minimum qualification and preference to holders of Post Graduate Degree in Engineering. Out of the qualified candidates in the written test and interview process first, the post Graduate Degree holders were selected and then the Bachelor Degree Holders. The said process was held not violative of Articles 14 & 16. It has been further observed in **P. Dilip Kumar** (supra) that the preference rule would apply when the post graduate and graduate candidates have secured the same marks. In that circumstances, it has been reiterated that classification on the basis of higher educational qualification to achieve higher administration efficiency is permissible under the constitutional scheme. But it has to be noted that in the cases in hand, there is no preference rule either in the recruitment rules or in the guidelines.

[55] In **Prem Singh and others vs. Haryana State Electricity Board and others**, reported in **(1996) 4 SCC 319**, it has been held by the apex court that ordinarily giving of preference to higher qualification implies that if other things are equal, the candidates with higher qualification will be preferred.

[56] **State of Haryana and another vs. Abdul Gaffar Khan and another**, reported in **(2006) 11 SCC 153** as referred, does not have any relevance in the present context.

[57] In **Surinder Singh vs. Union of India and others**, reported in **(2007) 11 SCC 599**, the apex court has examined the controversy where there was preferential rule. It has been observed that in the service jurisprudence the rule relating to preferential qualification not only refers to numeric superiority but is essentially related to better mental capacity, ability and maturity to shoulder the responsibility. For selection of the candidates with higher qualification serves the interest of efficient and effective administration. The basic object of prescribing a minimum qualification is to put a cut off level for a particular job in conformity to the minimum competency required for the performance of that job. It has been thereafter observed that the object of prescribing preferential qualification is to select the best amongst the better candidates who possess more competence than others.

[58] In **B. Ramakichenin @ Balagandhi vs. Union of India and others**, reported in **(2008) 1 SCC 362** it has been clearly laid that for achieving the object, rational criteria can be

considered by the Selection Committee when there is no rule that only those who have the minimum qualification will be considered and appointed to the post. It has been observed further that it is well settled rule of administrative law that an executive authority must rigorously be held obliged to the standards by which it professes its action to be judged and it must scrupulously observe those standards of pain of invalidation of an act in violation of them. A reference may be made to **William Vincent Vitarelli vs. Fred A. Seaton**, reported in **359 US 535** where Justice Frankfurter had observed thus:

"An executive agency must be rigorously held to the standards by which it professes its actions to be judged.... Accordingly, if dismissal from employment is based on a defined procedure, even though generous beyond the requirements that binds such agency, that procedure must be scrupulously observed.... This judicially evolved rule of administrative law is now firmly established and, if I may add, rightly so. He that takes the procedural sword shall perish with the sword."

The same principle has been restated in **Duddilla Srinivasa Sharma and others vs. V. Chrysolite**, reported in **(2013) 16 SCC 702**. It has been quite succinctly stated in **V. Chrysolite** (*supra*) having referred to a previous decision of the apex court in **S.B. Mathur vs. Chief Justice of Delhi High Court**, reported in **1989 Supp.(1) SCC 34** that the test laid down is that criteria adopted should be reasonable and based

on rational and intelligible differentia which should have nexus to the object sought to be achieved.

[59] State of Punjab and others vs. Anita and others, reported in **(2015) 2 SCC 170** has hardly any relevance in the present context as that case was for considering whether any higher qualification *ipso facto* can be treated as having the basis qualification.

[60] Mr. Deb, learned counsel has stated that the tool as devised by the Selection Committee has been equally applied and as such, there had been no violation of the equality clause. In **Haryana Public Service Commission vs. Amarjeet Singh and others,** reported in **1999 SCC (L & S) 1451,** it has been observed as follows:

"There was no grievance made before the court that different standards were adopted for different sets of candidates. The fault found by the Court was that although none of the candidates possessed any higher qualifications or specialized training, marks have been allocated to them and, therefore, the action of the appellants became arbitrary. Even though that was the standard adopted by the Public Service Commission and the same standard has been applied to all, though may be defective, did not prejudice respondents 1 and 2 or any of the candidates. When uniform process had been adopted in respect of all and selections had been made, it was highly inappropriate for the High Court to have examined the matter in further detail and to have allocated marks to the two candidates and thereafter directed the appellant Commission to select them."

[61] It has been contended that the court in the judicial review cannot exercise powers in the manner as if it were a

court of appeal unless the patent illegality is committed by the Selection Committee, the court should not interfere with the decision of the Selection Committee. In **Dalpat Abasaheb Solunke and others vs. Dr. B.S. Mahajan and others**, reported in **(1990) 1 SCC 305**, the apex court has held *inter alia* that it is needless to emphasize that it is not the function of the court to hear the challenge as appeals over the decision of the Selection Committee and to scrutinize the relative merits of the candidates. Whether a candidate is fit for a particular post or not, has to be decided by the duly constituted Selection Committee which is considered to have the expertise on the subject. The court has no such expertise. The decision of the Selection Committee can be interfered with only on limited grounds, such as illegality or patent material irregularity. The power of judicial review can be exercised to determine a question whether the departmental selection committee conducted the test fairly or not. When there is no allegation of mala fide or bias against any member of the committee, it has been observed in **Joginder Singh vs. Roshan Lal and others**, reported in **(2002) 9 SCC 765** that merely because there were large numbers of candidates who appeared in the course of two days, cannot *ipso facto* lead to the conclusion that the process

of selection was not fair or fair chance was not given. Normally experienced persons are appointed as members of the selection committee and how much time should be spent with a candidate would vary from person to person.

[62] Mr. Deb, learned counsel in this regard has referred to **Sadananda Halo** (*supra*) where the apex court had occasion to dwell upon the issues relating to interview of a large number of candidates in a day and referred that part of **Joginder Singh** (*supra*) as already discussed. It has been further observed in **Sadananda Halo** (*supra*) that a roving inquiry is not permissible. The High Court cannot engage itself into a non-permitted fact finding exercise. It is not for the High Court to place into a position of a fact-finding commission, that too, at the instance of the petitioners who were unsuccessful in the selection. Having referred to **United India vs. S. Vinodh Kumar: (2007) 8 SCC 100** and **Om Prakash Shukla vs. Akhilesh Kumar Shukla : 1986 Supp. SCC 285** it has been observed that the settled position of law is that in the event, a candidate appeared at the interview and participated therein, only because the result of the interview was not 'palatable' to him, he cannot turn around and subsequently contend that the

process of interview was unfair or there was some lacuna in the process. Even a reference has been made to **Raj Kumar & Ors. etc. vs. Shakti Raj & Ors. etc**, reported in **(1997) 5 SCC 527** where a view has been taken to show that the principle of estoppel by conduct or acquiescence has no application to the facts when it surfaces that the Government or the authority has committed glaring illegalities in the procedure of selection.

[63] As in one of the writ petitions, the claim of rounding off the marks has been raised, it has been argued that such rounding off is not permitted, unless there are express rules in this regard.

In **Orissa Public Service Commission and another vs. Rupasree Chowdhury and another**, reported in **(2011) 8 SCC 108**, the similar question was raised and it has been answered by the apex court by observing that the High Court has committed an error-apparent on the face of the records by allowing advantage to two more persons who secured marks between 45.5% and 45% to be called for the interview who were not even parties before it and who had not even shown interest. Subsequent to the declaration of results of

the examination, despite the said fact being noticed by the High Court, it directed to be called for interview only on the ground that the petitioners having such marks have secured more than 44.5% marks but less than 45% of marks in the examination in aggregate. The said judgment of the High Court was set aside. It thus shows that unless the rule provides, no rounding off is permissible. Even in **Bhanu Pratap vs. State of Haryana and others**, reported in **(2011) 15 SCC 304**, the apex court has observed that when emphasis is given in the rules itself to minimum marks to be obtained in qualifying examination, there cannot be any relaxation or rounding off in absence of any such power provided in the statute or any such stipulation made in the employment notice. There cannot be any relaxation or rounding off in absence of any power permitting rounding off.

[64] Finally, Mr. Deb, learned counsel by summing up his submissions has submitted that the petitioners have not made out any case for intervention by this court. According to Mr. Deb, learned counsel, the writ petitions are liable to be dismissed.

[65] Mr. T.D. Majumder, learned counsel appearing for the non-official respondents as noted, made his submissions, in

tune with what has been submitted by Mr. Bhattacharjee, learned G.A. and Mr. Deb, learned counsel for some non-official respondents.

[66] Mr. T.D. Majumder, learned counsel appearing for the non-official respondents, as noted, has placed his reliance on **Kumari Rashmi Mishra** (supra) where all the selected candidates were not impleaded as party in the writ petition in a case of general challenge to the selection but only a few had been impleaded as the parties. But impact of the decision would have affected many. Mr. Majumder, learned counsel has submitted that no steps have been taken in terms of Order I, Rule 8 of the CPC. Thus, the necessary parties were conspicuously not impleaded and hence, the writ petitioners are not entitled to any relief. In **Kumari Rashmi Mishra** (supra), the apex court has observed as follows:

13. It is not in dispute that all the 17 selected candidates were not impleaded as parties. Respondent Nos.3 and 4, although, purported to have been impleaded as parties, the same, as noticed hereinbefore, was done on a different premise. Allegations of favoritism against them having been made, indisputably they were necessary parties. In the writ petition, although, the appellant contended that they were being impleaded in their representative capacity; admittedly no step had been taken in terms of Order 1 Rule 8 of the Code of Civil Procedure or the principles analogous thereto.

14. The High Court did not go into the question as to whether any favoritism or nepotism had been shown in favour of the respondent Nos.3 and 4 by the members of the Selection Committee. Notices having been issued and the respondents having filed their responses before the High Court, we may presume that the contention in regard to favoritism or

nepotism allegedly shown by the Selection Committee in favour of respondent Nos.3 and 4 had not been pressed.

15. In the aforementioned situation, all the seventeen selected candidates were necessary parties in the writ petition. The number of selected candidates was not large. There was no difficulty for Appellant to implead them as parties in the said proceeding. The result of the writ petition could have affected the appointees. They were, thus, necessary and/or in any event proper parties.

16. In *Prabodh Verma vs. State of U.P.* : (1984) 4 SCC 251 this Court held :

"The first defect was that of non-joinder of necessary parties. The only respondents to the Sangh's petition were the State of Uttar Pradesh and its concerned officers. Those who were vitally concerned, namely, the reserve pool teachers, were not made parties not even by joining some of them in a representative capacity, considering that their number was too large for all of them to be joined individually as respondents. The matter, therefore, came to be decided in their absence. A High Court ought not to decide a writ petition under Article 226 of the Constitution without the persons who would be vitally affected by its judgment being before it as respondents in a representative capacity if their number is too large, and, therefore, the Allahabad High Court ought not to have proceeded to hear and dispose of the Sangh's writ petition without insisting upon the reserve pool teachers being made respondents to that writ petition, or at least some of them being made respondents in a representative capacity, and had the petitioners refused to do so, ought to have dismissed that petition for non-joinder of necessary parties."

[See also *All India SC & ST Employees Assn. vs. A. Arthur Jeon* : (2001) 6 SCC 380 and *Indu Shekhar Singh vs. State of U.P. & Ors.* : (2006) 8 SCC 129]

[Emphasis added]

[67] In **Ranjan Kumar and others vs. State of Bihar and others**, reported in **(2014) 16 SCC 187**, the apex court has dwelled on the similar question and held that no adverse order can be passed against the persons who are not made parties to the litigation. If the appointees were not impleaded,

the writ petition was defective and hence, no relief could have been granted to the writ petitioners.

[68] Mr. Majumder, learned counsel has relied on **Ashok Kumar Yadav vs. State of Haryana and others**, reported in **(1985) 4 SCC 414** to contend that the court cannot sit in judgment over the marks awarded by the interview boards unless it is proved or becomes obvious that the marking is plainly and indubitably arbitrary and actuated by oblique motives. If the assessment is patently arbitrary and arbitrariness is so stark that a reasonable person would not regard that as fair, interference may be irresistible. However, **Ashok Kumar Yadav** (*supra*) has been decided in a different perspective-fact. On the question of awarding weightage for the higher qualification, Mr. Majumder, learned counsel has relied on **Secy. (Health) Deptt. of Health & F.W and another vs. Dr. Anita Puri and others**, reported in **(1996) 6 SCC 282**, where the apex court has observed as under:

"The question for consideration is whether such sub-division of marks by the Commission on different facets and awarding only 2 1/2 Marks for higher qualification can be said to be arbitrary? Admittedly, there is no statutory rule or any guideline issued by the Government for the Commission for the purpose of evaluation of merit of the respective candidates. When the Public Service Commission is required to select some candidates out of number of applicants for certain posts, the sole authority and discretion is vested with the Commission. The Commission is required to envoie the relative fitness and merit of the candidate and then select

candidates in accordance With such evaluation. If, for that purpose the Commission prescribes marks for different facets and then evaluates the merit, the process to evaluation cannot be considered to be arbitrary unless marks allotted for a particular facet is on the face of it excessive. Weightage to be .given to different facets of a candidates as well .as to the - viva voce test vary from service to service depending upon the. requirement of the service itself...."

[Emphasis added]

[69] The other counsel appearing for the non-official respondents have adopted the submission of Mr. Deb, learned counsel and Mr. T.D. Majumder, learned counsel and they have referred to the material factual aspects in order to assist the court.

[70] Having appreciated the submission of the learned counsel for the parties and having scrutinized the averments and the records, this court finds that the pertinent questions, which have been noted, can be replied without much difficulty, inasmuch as such issues have been dealt by the apex court in its decisions.

[71] *Whether there had been deviation from the espoused principle of assessment?* This court has noticed that the official respondents have admitted that by the memorandum dated 12.01.2015, a mode for selection of candidates by interview has been delineated under Category-2, meaning for selection of candidates for Group-

C posts other than the persons with disabilities. Since the controversy has emanated on the allegation of violating the guidelines in respect of the marks to be allotted on verification of the educational qualifications. By the policy, the Interview Board has been suggested to provide the marks in the following manner:

- (a) 30% to 44% marks obtained in qualifying examination-14 marks.
- (b) 45% to 59% marks obtained in qualifying examination-28 marks.
- (c) 60% and above marks obtained in qualifying examination-40 marks.

It is also an admitted position that the Interview Board has followed the said principles but while assessing the Honours Graduate [the Graduation being the qualifying examination], the Interview Board has awarded 28 marks for securing 40% to 45% marks [2H] in the Honours Degree. The said marks are equal to the marks for the candidates who had secured 45% to 59% marks [2P] in the qualifying examination. The petitioners have challenged that such deviation is impermissible and detrimental to the candidates who secured 30% to 44% marks in the qualifying examination inasmuch as

having secured that much of marks, the Honours Graduates have been awarded 28 marks. It is beyond the authority of the Interview Board and hence, the selection of those candidates who had secured more marks than the writ petitioners for adding 14 marks by that means is liable to be set aside and cancelled.

[72] Two questions followed from this objection, viz. (i) whether the Interview Board in order to selecting the better candidates can devise an additional method or approach and (ii) whether the petitioners are estopped from raising this objection after appearing in the Interview Board. It has been shown that the Interview Boards inherited some inherent powers and they can travel beyond the general guidelines but without bringing about conflict with the general guidelines and devise some principles for making fair selection. It is also not disputed that the principle of adding the higher marks 28 to the Honours Graduate has been uniformly applied in the entire selection process. There had been no discrimination in awarding the higher marks and hence, it cannot be held that by devising that method of weightage for the Honours Graduate or the Post-Graduate, the Interview Board has acted in conflict with the

general guidelines. On the contrary, they have taken a liberty to give extra marks [weightage] to the Honours Graduate or the Post-Graduate by making an intelligible differentia, based on higher qualification. Hence, such tool cannot be held arbitrary, prejudicial or a grave departure from the espoused general guidelines.

[73] There is another aspect which has not been argued by the respondents, but may have some relevance, that there is a latent requirement of standardizing the marks of the Honours Graduate and the Graduate [in the pass course]. For devising that tool, the said aspect of standardization has been taken care of. This court, therefore, does not find any substance in the objection over the system of weightage. Accordingly, the said objection stands discarded.

[74] *Whether the principle of estoppel would operate against the writ petitioners in challenging the selection after their failure to come out successful in the said selection process?* The law has been well settled that the unsuccessful candidates cannot turn around and assail the selection process. There are, of course, exceptions carved out from the said general rules. In **Rajkumar** (*supra*), the apex court has

observed that exceptions can be made to the principle of estoppel when the authority committed glaring irregularities in the process of selection. Hence, the principle of estoppel by conduct or acquiescence has no manner of application when facts are such that there was substantive departure or glaring deviation, contrary to the principles of fairness. In these cases also, the writ petitioners have made allegations that the espoused principles of assessment have been manifestly violated by the official respondents. Hence, in these cases, principle of estoppel cannot be brought to estop the writ petitioners to get a decision on merit. Thus, the jurisprudential objection as to maintainability of the writ petitions on the ground of estoppel by conduct stands discarded.

[75] The counsel for the writ petitioners have urged that the mode of selection has been altered in the middle of the process. In this regard, reliance has been placed on **Maharashtra State Road Transport Corporation and others vs. Rajendra Bhimrao Mandve and others**, reported in **(2001) 10 SCC 51**, but the considered view of this court is that the devised method of granting weightage is not change in the criteria of selection, but it was a tool for the finer scrutiny

and that tool was used uniformly. In **Amarjeet Singh** (*supra*) the apex court has laid down the law that when there was no grievance for applying different standards adopted for different sets of candidates, the tool to allocate higher marks for higher qualifications or specialized training cannot be described arbitrary or changed by deviation. If that standard is applied to all uniformly that would not prejudice anyone 'where uniform process has been applied in respect of all and the selection has been made. It was highly inappropriate for the High Court to have examined the matter in further detail [**Amarjeet Singh** (*supra*)]'. In these cases, the tool that has been devised and applied uniformly is the tool for standardization between classes of candidates created by the Interview Board for the finer scrutiny. It cannot, therefore, be held that there is absence of intelligible differentia. On the contrary, the differentia has been made on the basis of the qualification. As such, this court is not inclined to hold that, that was a departure from the adverted process or such process was prejudicial to the writ petitioners, who had the minimum qualification. Even this cannot be called preferential treatment. The preferential marks can only be added when two candidates are found to have secured the equal marks on the basis of the minimum required qualification.

Therefore, the argument as launched by the counsel for the non-official respondents that for higher education, a preference has been given to the candidates who were having the Honours Degree cannot be accepted as 'sound concept'. For purpose of awarding marks on the basis of preference, first of all, there shall be specific rule in the recruitment rules. In absence, the Interview Board cannot exercise preference. Even though the said tool of weightage may appear to give preference but in the considered view of this court, this is clearly a tool of standardization.

[76] *Whether the writ petitions are hit by non-joinder of the necessary parties?* In two writ petitions as noted above, one petition under Order 1, Rule 8 of the CPC was filed but those were not pressed to treat the impleaded respondents as the representative of other selected candidates. As a result, the impleaded selected candidates cannot be treated as the representative of all the selected candidates. In view of the decision in **Pramode Verma** (*supra*), the writ petitioners might have impleaded a few selected candidates in representative capacity considering the large number of selected candidates. It is apparent that the principal dispute hovers around adding the

additional 14 marks. In absence of the persons who would be affected adversely the reliefs cannot be granted. Hence, the court is left with no other alternatives to hold that that the writ petitions are hit by non-joinder of necessary parties. Thus, it cannot be held maintainable.

[77] Mr. Deb, learned counsel has correctly contended that unless there is a specific rule, the principle of rounding off cannot be applied. Thus, claim of one of the writ petitioners as noted above for rounding off the mark to 60% cannot be acceded to.

[78] This court does not think that the objection as to the delay and laches have been raised seriously. Moreover, this court is of the view that there are no laches.

[79] *Whether holding the walk-in interview for interviewing a large number of candidates in a day is arbitrary or against the principle of fairness or against the principle of fairness?* The writ petitioners were well aware that in the walk-in interview, a large number of candidates would be interviewed but they did not raise any objection and without raising any objection they participated in the said process. Even no objection was raised before the final outcome of the walk-in

interview was published. Thus, the petitioners are estopped to raise any objection against the said process after participating without any demur. That apart, in **Sadanada Halo** (supra) the apex court has observed as follows:

41. The question of large number of candidates appearing for the selection process again came up before this Court in *Joginder Singh and others v. Roshan Lal and others* : (2002) 9 SCC 765 . A complaint was made in this case that 323 candidates appeared for the test in two days and on that basis a select list was prepared by the Departmental Promotion Committee. The High Court called this selection process as a farce on the ground that fair chance was never given to the candidates to show their worth. The Court observed in para 5 as under:

'On the facts on record we see no justification for the High Court to have come to this conclusion. The High Court in exercise of its jurisdiction under Article 226 of the Constitution is not supposed to act as an Appellate Authority over the decision of the Departmental Selection Committee. If the Committee has been properly constituted, as in this case, and the post is advertised and a selection process known to law which is fair to all, is followed then the High Court could have no jurisdiction to go into a question whether the Department Selection Committee conducted the test properly or not when there is no allegation of malafides or bias against any member of the Committee. Merely because there were a large number of candidates who appeared on two days, cannot ipso facto lead to the conclusion that the process of selection was a farce and fair chance was not given. Normally experienced persons are appointed as members of the Selection Committee and how much time should be spent with a candidate would vary from person to person. Merely because only two days were spent in conducting the interviews for the selection of Class IV posts cannot lead to the conclusion that the process of selection was not proper."

42. To sum up, these were the interviews for the post of Constables and the minimum educational standard was prescribed as 7th class pass. There were no requirements of testing the administrative or

management capacity of the candidates and/or any other quality which is required for the higher posts. All that was necessary was firstly to see their physical fitness in terms of physical endurance, their smartness in appearance and further to test their intelligence level as required for the post of constable including their general knowledge. We cannot ignore that thousands of candidates had turned up and what we find from the guidelines was, firstly these candidates had to fulfil physical standards in terms of height, etc., as also the minimum educational qualification. Obviously all the candidates could not have had those physical standards."

[Emphasis added]

[80] The Selection Committee/Interview Board was constituted of the Senior Administrative Officers for selecting the candidates for the post of RPM. For that post, no experience or expertise is required. Their aptitude and intelligence were to be assessed by the Selection Committee. Efficiencies in all other areas, related to their competence was supposed to be assessed by the method as provided by the memorandum dated 12.01.2015 and as such, the interview of a large numbers of candidate in a day by itself cannot be stated to be anomalous or not proper. In **Sadanada Halo** (supra) it has been categorically observed that a roving inquiry on the factual aspect is not permissible. While testing the fairness of the selection process wherein thousand of candidates were involved, the High Court should be slow in carry out an all-encompassing search to find out loopholes.

[81] Having observed thus, this court is not inclined to interfere with the selection and appointment of the non-official respondents to the post of RPM.

[82] In the result, the writ petitions are dismissed.

However, before parting the records, one fact which has come to the notice of this court may be noted. In W.P.(C) No.334 of 2018 [Smt.Sarmistha Chakraborty vs. State of Tripura & Ors.] it has been asserted by the petitioner that she is also Honours Graduate and secured 51% marks but in her case the additional 14 marks has not been allotted. She has been given 14 marks against the basic qualification instead of 28 marks considering her Honours Degree [2H]. After scrutiny of her marksheet as produced with the writ petition, it is found that the said petitioner had Honours Degree and she had secured 51% marks. In this regard, the official respondents have only stated that the petitioner is estopped from questioning the outcome of the selection. This court is not inclined to accept such reason when it is well established by the documents that the said writ petitioner had Honours Degree with 51% marks. On the other hand, the non-official respondents No.4 & 7 have stated that the petitioner was given 28 marks on her educational qualification. To obviate this

confusion as to whether the petitioner was awarded 28 marks for her qualification on considering her Honours Degree or not, a verification has to be made. If it is found that the petitioner is given only 14 marks by not considering her Honours Degree [or her 51% marks] the official respondents shall make the necessary amend in the tabulation sheet, if required. After such scrutiny, if it is found that the petitioner has secured more marks than the marks obtained by the candidates at the bottom of the select panel, she shall be appointed in the post of RPM within two months from the date when a copy of the judgment will be placed to the official respondents by the petitioner. If she is entitled to appointment, her appointment shall be dated back to the day of appointment of the non-official respondents. However, for the period from the day of deemed appointment to the day of actual appointment, the pay and allowances shall be notional. Actual financial benefit shall be available to the petitioner on the date of her appointment, if any, in the said process.

There shall be no order as to costs.

JUDGE